

HOUSING LAW

*Pursuant to the Constitution of the Socialist Republic of Vietnam;
The National Assembly promulgates the Housing Law.*

Chapter I GENERAL PROVISIONS

Article 1. Scope of regulation

1. This Law provides for house ownership, development, operation and management, use and transactions, and state management of housing in Vietnam, unless otherwise prescribed in Clause 2 of this Article.

2. Transactions of purchase, sale, lease-purchase or lease of commercial houses of enterprises, cooperatives, and unions of cooperatives engaged in real estate business, and transfer transactions of house purchase and sale contracts must comply with law regulations on real estate business.

Article 2. Interpretation of terms

In this Law, the terms and expressions below are construed as follows:

1. *House* means a construction work used for the residential purpose and to serve daily-life needs of a household or individuals. Houses used for the residential purpose and the non-residential purpose that is not prohibited by law are houses used for combined purposes.

2. *Individual house* means a house constructed on a separate residential land parcel under the lawful use rights of an organization or individual or on rented land or borrowed land of an organization or individual. Individual houses include villas, semi-detached houses and detached houses that are constructed for the residential purpose or combined purposes.

3. *Condominium* means a building with two or more stories and many apartments and having common passageways and stairways, sections under private ownership and sections under common ownership and a system of infrastructure facilities for common use by households, individuals and organizations. Condominiums include those constructed for the residential purpose and those constructed for combined residential and commercial purposes.

4. *Commercial house* means a house constructed for sale, lease-purchase, or lease under the market mechanism.

5. *Official-duty house* means a house used for lease to a person who is eligible to live in an official-duty house during the time he/she holds a position or performs a work assignment in accordance with this Law.

6. *House for resettlement* means a house to be allocated to a person that is subject to resettlement upon recovery of its/his/her residential land or demolition of its/his/her house by the State in accordance with law regulations.

7. *Social house* means a house constructed with the State's support for a person who is entitled to the housing support policy in accordance with this Law.

8. *Worker house in the industrial park* means a facility constructed on the area of commercial and service land within an industrial park in accordance with law regulations on industrial park management to be allocated to individuals who are employees in such industrial park during the time they are employed in accordance with this Law.

9. *House for the people's armed forces* means a social house constructed for sale, lease-purchase, or lease to a person in the people's armed forces in accordance with this Law.

10. *Old house* means a house constructed from 1994 onwards, including condominium.

11. *House being public property* means a house under the entire-people ownership represented and uniformly managed by the State.

12. *Housing investment project* means a collection of proposals related to the use of capital for new construction, reconstruction, renovation or repair of houses, and technical and social infrastructure facilities to meet residential needs in a certain location within a specified time and cost.

13. *Domestic organizations* include state authorities, units of people's armed forces, public non-business units, political organizations, socio-political organizations, socio-politico-professional organizations, social organizations, socio-professional organizations, economic organizations and other organizations in accordance with the civil law (hereinafter collectively referred to as organizations).

14. *Housing investment project owner* means an organization selected to carry out a housing investment project in accordance with this Law.

15. *Housing development* means investment in the construction of new houses or reconstruction or renovation of ready-built houses to increase their floor areas.

16. *House renovation* means the upgrading of the quality, expansion of the floor area or adjustment of the floor area structure of a ready-built house.

17. *House maintenance* means the regular maintenance and upkeep of a house, and repair of a house upon a damage or breakdown in order to maintain its quality, normal operation, and safety during the exploitation and use.

18. *House owner* means an organization or individual that has the right to own houses in accordance with this Law.

19. *Condominium owner* means an owner of an apartment or another floor area

other than an apartment in a condominium.

20. *Sections under private ownership in a condominium* means floor areas inside apartments or within other floor areas other than apartments in the condominium which are recognized as under the private ownership of condominium owners and equipment for private use by condominium owners inside their apartments or within other floor areas other than apartments in accordance with this Law.

21. *Sections under common ownership of a condominium* means floor areas of the condominium other than those under the private ownership of condominium owners and equipment for common use for the condominium in accordance with this Law.

22. *Lease-purchase of a house* means that a lessee pays in advance to a lessor a certain percentage of the value of the house put for lease-purchase as agreed, but not more than 50% of the value of the housing lease-purchase contract; the remaining amount shall be paid on a monthly basis as rental to the lessor within a given time limit. Upon the expiration of the lease-purchase term and full payment of the remaining amount, the lessee has the right to own such house.

23. *Ready-built house* means a house which has been completely built and has been accepted and put into use in accordance with law regulations on construction.

24. *Off-plan house* means a house which is under construction and has not been accepted and put into use in accordance with law regulations on construction.

Article 3. Prohibited acts

1. Infringing upon the house ownership rights of organizations and individuals.
2. Obstructing the performance of the responsibility for state management of houses, the exercise of the rights and performance of the obligations of organizations and individuals to own, use and transact houses.
3. Deciding on or approving investment policies or approving investment projects on house construction not in line with approved land use master plans, house construction master plans, urban master plans, housing development programs and plans.
4. Constructing houses on land that is not eligible for house construction in accordance with this Law; constructing or renovating houses not in conformity with land use master plans, house construction master plans, urban master plans, or design and floor area standards for each type of house subject to design and floor area standards as prescribed by a competent state agency. Improperly applying methods of calculating house use areas prescribed in this Law. Developing multi-story houses with many apartments of individuals not in accordance with this Law.
5. Illegally appropriating house floor areas; encroaching in any form upon space and sections under the common ownership or of other owners; renovating, expanding, demolishing, reconstructing a house subject to lease, lease-purchase, borrowing, permitted stay at, or authorized management without the owner's consent.
6. Signing capital mobilization documents and mobilizing capital for housing development when being ineligible for doing so in accordance with this Law and other relevant laws; using for improper purposes capital mobilized or house purchase

payments paid in advance for housing development.

7. Performing transactions of purchase and sale, lease-purchase, lease, accommodation lease, donation, exchange, mortgage, capital contribution, borrowing, permitted stay at, or authorized management of, houses in contravention of this Law and other relevant law regulations; handing over houses to purchasers or lessees while they fail to satisfy the requirements specified by this Law and law regulations on construction.

8. Other acts in management and use of condominiums, including:

a) Failing to contribute funds for maintenance of sections under common ownership of the condominiums (hereinafter referred to as funds for maintenance); managing and using funds for operating management and maintenance not in accordance with law regulations on housing;

b) Intentionally causing leakage; causing noise and vibration in excess of regulations; discharging waste, wastewater, exhaust gases, and toxic substances not in accordance with law regulations on environmental protection or the regulations on management and use of condominiums; painting or decorating the exterior of apartments and condominiums not in accordance with the regulations on design and architecture; herding and grazing cattle and poultry; slaughtering cattle in condominium;

c) Arbitrarily changing the utilities and purposes of sections under common ownership and use of the condominiums; using apartments for non-residential purposes; changing or damaging load-bearing structure; dividing or separating apartments without permission from competent state authorities;

d) Arbitrarily using floor areas and equipment under common ownership and use for private purposes; changing the use purpose of service quarter in a condominium for combined purposes without permission from competent state authorities;

dd) Causing disorder, unsafety, fire or explosion in the condominiums; trading in inflammable and explosive materials and industries and occupations that endanger the lives and property of condominium users in accordance with law regulations on fire prevention and fighting and other relevant law regulations.

e) Conducting business of discotheques, karaoke, bars; repairing motor vehicles; providing other polluting services in accordance with law regulations on environmental protection; providing restaurant services without ensuring compliance with requirements on fire prevention and fighting, having an escape route and complying with other business conditions in accordance with law regulations.

9. Using individual houses for trading in flammable or explosive materials, provision of polluting or noisy services or services affecting social order and safety and daily life in residential quarters in contravention of law regulations on business conditions.

Article 4. Housing development, management and use policies

1. The State shall formulate housing development policies, creating conditions for all people to have a residence through promoting the development of diverse types

of houses, including houses for sale, lease-purchase, and lease suitable to the needs and financial capabilities of individuals and households, providing capital support to renovate and reconstruct houses; The State shall invest in the construction of social houses with part or all of public investment capital (hereinafter referred to as public investment capital) for lease or lease-purchase.

2. The State shall create residential land areas through approving land use master plans and plans, construction master plans, urban master plans, master plans on functional zone construction.

3. The State shall promulgate mechanisms and policies on planning, land, finance, credit, research and application of science and technology, and new building materials to encourage all economic sectors to invest in housing development as well as encourage organizations and individuals to participate in housing development for sale, lease-purchase, and lease under the market mechanism.

4. The State shall promulgate preferential mechanisms and policies on land finance, provision of long-term loans at preferential interest rates, other financial incentives and budgetary support for implementation of policies on social housing, renovation or reconstruction of condominiums.

5. The State shall adopt policies to promote the research and introduction of model and typical designs for each type of house suitable to each area or region; and adopt policies to promote the development of energy-efficient housing.

6. People's Committees of provinces and centrally-run cities (hereinafter collectively referred to as provincial-level People's Committees) shall be responsible for planning on, arranging land areas for, and investing in, social housing construction in accordance with this Law and other relevant law regulations.

7. The State shall adopt policies on management and use of housing to ensure efficiency, safety, proper purposes and utilities of housing.

Article 5. General requirements on housing development, management and use

1. To meet housing needs of different subjects and suit the socio-economic conditions of the country, localities or regions in each period.

2. To conform to the national housing development strategy, land use master plans, land use plans, construction master plans, urban master plans, local housing programs and plans in each period, ensuring the synchronization of technical and social infrastructure; housing development based on economical use of resources; strengthening housing construction management.

3. To comply with the housing law; to conform to construction quality and technical standards and regulations for housing in accordance with law regulations; to satisfy requirements on fire prevention and fighting, architecture, landscape, sanitation, environmental protection and safety in the course of construction in accordance with law regulations; to enable response to natural disasters and climate change; to conserve energy and land resources.

4. In urban areas, housing development shall be mainly carried out under projects, with structures of housing types and floor areas suitable to market needs. In the

remaining areas, provincial-level People's Committees shall, based on the specific conditions of localities, specifically stipulate the locations and areas for housing development under projects. In grade-I urban centers, and wards, districts and cities of special-grade urban areas, condominiums shall be mainly developed.

5. In wards, districts and cities of special-grade, grade-I, grade-II and grade-III urban areas, housing investment project owners must construct houses for sale, lease-purchase, and lease. In the remaining areas, provincial-level People's Committees shall, based on the local conditions, determine the areas where housing investment project owners must construct houses for sale, lease-purchase, lease, or may transfer land use rights in the form of subdividing land plots to sell for individuals to construct their own houses. In the case where a housing investment project owner may transfer land use rights to an individual who constructs his/her own house, law regulations on real estate business and land shall be applied. In cases of auctioning land use rights to invest in housing investment projects in accordance with the Land Law, housing investment project owners must construct houses for sale, lease-purchase, lease.

6. Based on the housing needs and local conditions, the agencies competent to approve the master plans must plan and arrange land areas to develop social housing for low-income earners, poor households and households living just above the poverty line in urban areas, persons working in economic zones, industrial zones, export processing zones, and high-tech zones in accordance with this Law.

7. In rural, mountainous, border areas and islands, housing development must conform to programs on building of a new countryside, customs and traditions of each ethnicity, and natural conditions of each region; to step by step put an end to the nomadic cultivation and living, and ensure sustainable rural development; to encourage housing development under projects and construction of multi-story houses.

8. The management and use of housing must ensure the proper purposes and utilities, satisfy the requirements on fire prevention and fighting, sanitation, environment protection, security, order, social safety, and comply with regulations on housing document management, warranty, maintenance, renovation, and demolition of housing and relevant laws on housing management and use.

9. To satisfy other requirements on the development of each type of housing in accordance with this Law.

Chapter II

HOUSE OWNERSHIP

Section 1

GENERAL PROVISIONS ON HOUSE OWNERSHIP

Article 6. The right to have a residence and the right to own houses

1. Individuals have the right to have a residence through construction, purchase,

lease-purchase, lease, receipt as donation, inheritance, receipt as capital contribution, exchange, borrowing, permitted stay at, or authorized management of houses and other forms in accordance with law regulations.

2. Organizations and individuals that acquire lawful houses as prescribed in Clause 2, Article 8 of this Law have the right to own such houses in accordance with law regulations.

Article 7. Protection of house ownership

1. The State shall recognize and protect the lawful house ownership of house owners in accordance with this Law.

2. Houses under the lawful ownership of organizations and individuals may not be nationalized. In case of extreme necessity for national defense or security purposes, national interests, a state of emergency, or in response to a natural disaster, the State shall decide on prior purchase or demolition of houses under the lawful ownership of organizations and individuals.

In cases of prior purchase of houses, the State shall be responsible for paying at the market price. In cases of demolition of houses, the State shall be responsible for compensating, supporting and implementing resettlement policies for house owners in accordance with law regulations. In cases of compulsory purchase or requisition of houses, law regulations on compulsory purchase and requisition of property shall be applied.

Article 8. Subjects and conditions for owning houses in Vietnam

1. Subjects entitled to own houses in Vietnam include:

- a) Domestic organizations and individuals;
- b) Overseas Vietnamese in accordance with law regulations on nationality;
- c) Foreign organizations and individuals as prescribed in Clause 1, Article 17 of this Law.

2. Conditions for owning houses in Vietnam include:

a) Domestic organizations and individuals may own houses through construction, purchase, lease-purchase, receipt as donation, inheritance, receipt as capital contribution, exchange, receipt of houses for resettlement and other forms in accordance with law regulations.

b) Overseas Vietnamese permitted to enter Vietnam may own houses associated with residential land use rights in accordance with law regulations on land;

c) Foreign organizations and individuals may own houses through the forms prescribed in Clause 2, Article 17 of this Law.

3. The Government shall detail documents proving the subjects and conditions for owning houses prescribed in this Article.

Article 9. Recognition of house ownership

1. Organizations and individuals that fully meet the conditions and acquire lawful houses as prescribed in Article 8 of this Law shall have their house ownership

recognized by competent state authorities through being granted certificates of land use rights and ownership of houses and other land-attached assets (hereinafter collectively referred to as certificates), except for houses being public property.

Houses with ownership recognized in certificates must be ready-built houses. The order and procedures for grant of certificates to house owners shall be carried out in accordance with law regulations on land.

2. In case of house purchase and sale within a definite term as prescribed in Clause 1, Article 165 of this Law, the house purchaser shall be granted a certificate within the house ownership term as agreed. Upon the expiration of the house ownership term, the house ownership shall be returned to the owner who sold the house as agreed upon in the contract. If the house ownership term expires but the seller does not receive the house back, it shall be resolved in accordance with Article 166 of this Law and other relevant law regulations.

3. The agency competent to grant certificates shall clearly state house types and grades in the certificates in accordance with this Law and the construction law. In cases of condominium apartments, it shall also state construction floor areas and apartment use areas. In cases of houses constructed under projects, it shall state the correct names of housing construction investment projects that have been approved or decided on investment policies by the competent agencies.

4. For houses constructed under projects for sale or lease-purchase, certificates shall be granted to the purchasers or lessees rather than the housing investment project owner, unless the housing investment project owner needs to be granted the certificates for houses not yet put for sale or lease-purchase. A project owner that constructs houses for lease shall be granted certificates for such houses.

Article 10. Rights of house owners and house users

1. A house owner that is a domestic organization or individual or an overseas Vietnamese has the following rights:

- a) The right to inviolability of houses under its/his/her lawful ownership;
- b) To use houses for the residential purpose and other purposes not banned by law;
- c) To be granted certificates for houses under its/his/her lawful ownership in accordance with this Law and the land law;
- d) To sell, put for lease-purchase, donate, exchange, bequeath, mortgage, contribute as capital in accordance with this Law, land laws and other relevant laws; to transfer house purchase and sale contracts, lease, lend, permit stay at, or authorize management of, its/his/her houses, and other rights in accordance with law regulations. In case of donation or bequeathal of houses to subjects ineligible to own houses in Vietnam, such subjects are only entitled to the value of such houses.

In the case where the Land Law has other regulations on the rights of house owners associated with residential land use rights applicable to overseas Vietnamese, such regulations shall be applied;

dd) To use public-utility facilities in the housing area in accordance with this Law

and relevant laws.

Condominium owners have the right to commonly own and use sections under the common ownership and infrastructure facilities for common use of their condominiums, except works constructed for commercial purposes or handover to the State in accordance with law or under house purchase and sale or lease-purchase contracts;

e) To maintain, renovate, demolish or reconstruct houses in accordance with this Law and the construction law;

g) To have its/his/her house ownership protected in accordance with Article 7 of this Law;

h) To file complaints, denunciations or lawsuits against infringements upon its/his/her lawful ownership and other violations of the housing law;

i) Other rights as prescribed by law.

2. A house owner that is a foreign organization or individual has the rights prescribed in Article 20 of this Law.

3. A house user other than the house owner may exercise the rights in managing and using the house as agreed with the house owner.

Article 11. Obligations of house owners and house users

1. A house owner that is a domestic organization or individual, or an overseas Vietnamese has the following obligations:

a) To use houses for proper purposes; to make and keep dossiers of houses under its/his/her ownership;

b) To conduct fire prevention and fighting and ensure environmental sanitation and social order and safety in accordance with law;

c) To fully comply with law when selling, lease or lease-purchase of, donating, exchanging, bequeathing, mortgaging, contributing as capital, lending, permitting stay at, or authorizing management of its/his/her houses, or transferring house purchase and sale contracts. Any transaction on a house which is a common property of husband and wife must also comply with the Law on Marriage and Family. In case of house purchase and sale for a certain term as prescribed in Clause 1, Article 165 of this Law, the house must be returned at the end of the term as prescribed in Clause 2, Article 9 of this Law.

In the case where the Land Law has other regulations on the obligations of house owners associated with residential land use rights applicable to overseas Vietnamese, such regulations shall be applied;

d) To strictly comply with law and refrain from affecting or causing damage to the State's or public interests and lawful rights and interests of other organizations and individuals when maintaining, renovating, dismantling or reconstructing its/his/her houses. In cases of house purchase and sale within a definite term as prescribed in Clause 1, Article 165 of this Law, it must be agreed upon by related parties;

dd) To buy fire and explosion insurance premiums for houses subject to compulsory fire and explosion insurance in accordance with law regulations on fire

safety and insurance business;

e) To abide by legally effective decisions of competent state authorities on handling of violations, settlement of housing-related disputes, complaints or denunciations, compensation, support, resettlement, relocation and demolition of houses;

g) To allow related parties and competent persons to inspect, supervise and maintain the systems of equipment and technical infrastructure facilities and areas under the common ownership or for common use;

h) To perform the financial obligation toward the State when having its/his/her house ownership recognized, conducting housing-related transactions and in the course of using its/his/her houses in accordance with law.

i) Other obligations as prescribed by law.

2. A house owner that is a foreign organization or individual has the obligations prescribed in Clause 1 of this Article and Article 21 of this Law; the ownership representative of a house being public property has the obligations prescribed in Clause 1 of this Article and the responsibilities prescribed in Article 15 of this Law.

3. A house user that is not the house owner shall perform the obligations in the management and use of houses as agreed with the house owner and as prescribed by this Law and other relevant laws.

Article 12. Time of determination of house ownership

1. In cases of direct investment in housing construction, the time of house ownership determination is when the housing construction is completed in accordance with law regulations on construction.

2. In cases of house purchase and sale or house lease-purchase other than the cases prescribed in Clause 4 of this Article, the time of house ownership determination is when the purchaser or lessee makes full payment for the purchase or lease-purchase and takes over the house, unless otherwise agreed by the parties.

3. In cases of contribution as capital, donation or exchange of a house, the time of house ownership determination is when the party receiving the capital contribution, donated or exchanged house takes over the house from the capital contributor, house donor or exchanger, unless otherwise agreed by the parties.

4. In cases of house purchase and sale or lease-purchase between the housing investment project owner and the purchaser or lessee, the time of house ownership shall be determined in accordance with law regulations on real estate business.

5. In cases of house inheritance, the time of house ownership shall be determined in accordance with the civil laws.

6. Other cases shall comply with relevant laws.

7. Housing transactions prescribed in Clauses 2, 3 and 4 of this Article must comply with the conditions on housing transactions and shall be conducted under valid contracts in accordance with this Law.

Section 2

HOUSES BEING PUBLIC PROPERTY

Article 13. Houses being public property

1. Houses being public property include:

a) Official-duty houses, including central official-duty houses and local official-duty houses in accordance with law regulations on housing;

b) Houses constructed, or commercial houses purchased, by the State for the resettlement purpose in accordance with law regulations on housing but the resettlement has not yet been arranged;

c) Social houses and houses for the people's armed forces that are constructed by the State to allocate to persons eligible for social housing policies in accordance with law regulations on housing;

d) Houses other than the cases prescribed at Points a, b and c of this Clause that are constructed with the state budget capital or originates from the state budget capital or are under the ownership by the entire people as prescribed the law regulations in each period and are being rented to households and individuals in accordance with law regulations on housing;

dd) Houses of other owners that are put under the public ownership in accordance with law regulations and do not fall into the cases prescribed at Point d of this Clause.

2. The development, management and use of houses being public property shall be carried out in accordance with this Law. In cases where this Law has no applicable provisions, the Law on management and use of public property shall be applied.

Article 14. Representatives of owners of houses being public property

1. The Ministry of Construction shall represent the owners of official-duty houses and social houses invested with the central budget capital; and student houses managed by public education institutions under the Ministry of Construction.

2. The Ministry of National Defense and the Ministry of Public Security shall represent the owners of official-duty houses, houses for the people's armed forces purchased or constructed by the Ministry of National Defense and the Ministry of Public Security, and student houses managed by public education institutions under the Ministry of National Defense and the Ministry of Public Security. The Ministry of National Defense shall represent the owners of the houses prescribed at Point d, Clause 1, Article 13 of this Law under its management and lease, except for the cases of transferring such houses to provincial-level People's Committees for management in accordance with law.

3. Ministries, ministerial-level agencies, governmental agencies, and other central agencies (hereinafter referred to as central agencies) shall represent the owners of official-duty houses and student houses managed by public education institutions under such agencies.

4. Provincial-level People's Committees shall represent the owners of houses

constructed with the local funding sources prescribed in Clause 1, Article 113 of this Law under their management and houses assigned to them for management in their localities.

Article 15. Responsibilities of ownership representatives of houses being public property

1. For houses being public property constructed with the capital sources prescribed at Point a, Clause 1, Article 113 of this Law, their ownership representatives shall assume the following responsibilities:

a) Deciding on subjects eligible for rent of official-duty houses, rent and transfer of the right to rent or purchase houses in the cases prescribed at Point d, Clause 1, Article 13 of this Law; deciding on subjects eligible for rent, rent-purchase, and purchase of social houses and houses for the people's armed forces; and deciding on subjects eligible for allocation of houses for resettlement;

b) Selecting house management and operation units and house maintenance units;

c) Deciding on maintenance, renovation, demolition and reconstruction of houses; Approving plans for relocation, forced relocation, compensation, support, resettlement and temporary accommodation under competence;

d) Issuing or deciding on rental rates, lease-purchase prices, sale prices, exemption or reduction of rentals and house purchase payments;

dd) Deciding on the change of house utilities in accordance with Article 124 of this Law;

e) Deciding on the use of funds collected from business activities for the floor areas used to provide services in houses for resettlement, thereby supporting funds for house maintenance, operation and management;

g) Deciding on house recovery, and enforcement of house recovery;

h) Other responsibilities as prescribed by law.

2. For houses being public property invested with the capital sources prescribed at Point b, Clause 1, Article 113 of this Law, their ownership representatives shall carry out the responsibilities prescribed at Points c, dd, e, g and h, Clause 1 of this Article.

3. The ownership representatives of houses being public property may assign house management agencies to select house operation and management units and house maintenance units, and decide on house maintenance, unless otherwise prescribed in Clause 2 of this Article. The Ministry of National Defense and the Ministry of Public Security may also assign houses management agencies to exercise the rights prescribed at Points a and g, Clause 1 of this Article.

4. The Government shall detail the responsibilities of house management agencies, house operation and management units in the management and use of houses being public property.

Section 3

VIETNAM-BASED HOUSE OWNERSHIP OF FOREIGN ORGANIZATIONS AND INDIVIDUALS

Article 16. Areas where foreign organizations and individuals are eligible to own Vietnam-based houses

1. Foreign organizations and individuals shall be entitled to own houses in housing construction investment projects as prescribed in Article 17 of this Law, except for projects in areas subject to national defense and security assurance in accordance with Vietnamese law.

2. The Ministry of National Defense and the Ministry of Public Security shall notify areas subject to national defense and security assurance for provincial-level People's Committees to identify and publicly announce on the Portals of provincial-level People's Committees and provincial-level housing management agencies the list of housing construction investment projects in the areas where foreign organizations and individuals are entitled to own houses.

Article 17. Foreign organizations and individuals eligible to own Vietnam-based houses and forms of Vietnam-based house ownership

1. Foreign organizations and individuals that are entitled to own houses in Vietnam include:

a) Foreign-invested economic organizations that invest in the construction of houses under projects in Vietnam in accordance with this Law and other relevant laws;

b) Foreign-invested economic organizations, branches and representative offices of foreign enterprises, foreign investment funds and foreign bank branches that are operating in Vietnam (hereinafter collectively referred to as foreign organizations);

c) Foreigners permitted to enter Vietnam.

2. Foreign organizations and individuals prescribed in Clause 1 of this Article are entitled to own Vietnam-based houses, including condominiums and individual houses, in the following forms:

a) Organizations prescribed at Point a, Clause 1 of this Article are entitled to own houses through implementing housing investment projects in Vietnam;

b) Organizations and individuals prescribed at Points b and c, Clause 1 of this Article are entitled to own houses through purchase or rent-purchase of commercial houses from housing investment project owners, or receipt as donation or inheritance of commercial houses in housing investment projects not in areas subject to national defense and security assurance as prescribed in Article 16 of this Law;

c) Organizations and individuals prescribed at Points b and c, Clause 1 of this Article are entitled to own houses through purchase or rent of houses from foreign organizations and individuals that have already owned houses as prescribed at Point b of this Clause.

Article 18. Conditions for foreign organizations and individuals to own

Vietnam-based houses

1. With regard to the foreign-invested economic organizations prescribed at Point a, Clause 1, Article 17 of this Law, they must be housing investment project owners in accordance with this Law and law regulations on real estate business.

2. With regard to the foreign organizations prescribed at Point b, Clause 1, Article 17 of this Law, they must have an investment certificate or investment registration certificate or papers proving they are permitted to operate or establish in Vietnam and such papers must remain valid at the time of signing housing transactions (hereinafter referred to as investment certificate) granted by a competent Vietnamese state agency in accordance with law regulations.

3. With regard to the foreign individuals prescribed at Point c, Clause 1, Article 17 of this Law, they are not entitled to diplomatic or consular immunities and privileges in accordance with law regulations.

Article 19. Number of Vietnam-based houses that foreign organizations and individuals are entitled to own

1. Foreign organizations and individuals prescribed at Points b and c, Clause 1, Article 17 of this Law may only purchase, rent-purchase, or receive as donation or inheritance, and own no more than 30% of the number of apartments in a condominium. In cases of individual houses, including villas and semi-detached houses, in an area with a population size equivalent to a ward, they may only purchase, rent-purchase, or receive as donation or inheritance and own no more than 250 houses.

2. In cases where there are many condominiums in an area with a population size equivalent to a ward or in cases of individual houses in a street, foreign organizations and individuals may purchase, rent-purchase, or receive as donation or inheritance and own no more than the number of apartments or individual houses prescribed in Clause 1 of this Article.

3. The Government shall provide the requirements on areas subject to national defense and security assurance, criteria for converting population size to the equivalent of a ward, number of houses that foreign organizations and individuals may own, extension of house ownership term, and house management and ownership of foreign organizations and individuals in Vietnam.

Article 20. Rights of house owners being foreign organizations and individuals

1. Foreign-invested economic organizations prescribed at Point a, Clause 1, Article 17 of this Law may exercise the rights of house owners prescribed in Article 10 of this Law. In cases where they construct houses on rented land, they are only entitled to lease such houses.

2. Foreign organizations and individuals prescribed at Points b and c, Clause 1, Article 17 of this Law have the rights of house owners as Vietnamese citizens but shall comply with the following provisions:

a) They may purchase, rent-purchase, or receive as donation or inheritance and own houses in accordance with the number prescribed in Article 19 of this Law and

must be granted a certificate for such houses;

b) In cases of receipt as donation or inheritance of houses other than the cases prescribed at Point b, Clause 2, Article 17 of this Law or in excess of the number of houses prescribed in Article 19 of this Law or in an area subject to national defense and security assurance prescribed in Article 16 of this Law, they are only entitled to the value of such houses;

c) Foreign individuals may own houses as agreed in house purchase and sale or rent-purchase or donation or inheritance transactions for no more than 50 years from the date they are granted the certificates and may enjoy the extension once for no more than 50 years if they wish so; The house ownership duration shall be clearly stated in the certificates.

If a foreign individual is married to a Vietnamese citizen living in Vietnam, he/she is entitled to own houses and has the rights of a house owner as a Vietnamese citizen.

If a foreign individual is married to an overseas Vietnamese permitted to enter Vietnam, he/she is entitled to own houses and has the rights of a house owner as an overseas Vietnamese;

d) Foreign organizations may own houses as agreed in house purchase and sale or rent-purchase or donation or inheritance transactions within the term stated in their investment certificates, including also extended duration. The house ownership duration shall be counted from the date they are granted the certificates and clearly stated in such certificates;

dd) Before the expiration of the house ownership duration prescribed in this Law, the house owners may directly, or authorize other organizations or individuals to, donate or sell their houses to subjects eligible to own houses in Vietnam. Upon the expiration of the house ownership duration, if the owners fail to sell or donate their houses, such houses shall be public property.

If the party receiving or purchasing a house is a subject prescribed at Points a and b, Clause 1, Article 8 of this Law, it has the rights prescribed in Clause 1, Article 10 of this Law.

Article 21. Obligations of house owners being foreign organizations and individuals

1. Foreign-invested economic organizations and individuals prescribed at Point a, Clause 1, Article 17 of this Law have the obligations of house owners as prescribed in Article 11 of this Law.

2. Foreign organizations and individuals prescribed at Points b and c, Clause 1, Article 17 of this Law have the obligations of house owners as Vietnamese citizens but must comply with the following provisions:

a) Foreign individuals are entitled to lease out their houses for use for purposes not banned by law but shall notify in writing the lease to the housing management agency of districts, towns, provincial-level cities, or centrally-run cities where their houses are located before the lease under regulations of the Minister of Construction, and pay taxes on house lease in accordance with law regulations.

If a foreign individual is married to a Vietnamese citizen living in Vietnam, he/she has the obligations of a house owner as a Vietnamese citizen.

If a foreign individual is married to an overseas Vietnamese permitted to enter Vietnam, he/she has the obligations of a house owner as an overseas Vietnamese;

b) Foreign organizations are only entitled to use their houses as residences for their employees;

c) To make payments for house purchase or rent-purchase via credit institutions and foreign bank branches operating in Vietnam;

d) In the case where foreign individuals are compelled to exit or leave Vietnam by competent Vietnamese agencies, or foreign organizations are forced to terminate operations in Vietnam due to violations of Vietnamese law during the use of houses under their ownership, such houses shall be handled according to the decision of competent Vietnamese agencies.

Article 22. Cases in which foreign organizations and individuals are not granted certificates for houses

1. Foreign organizations and individuals falling into the following cases shall not be granted certificates for houses but may only sell or donate such houses to those eligible to own Vietnam-based houses:

a) In cases where foreign organizations and individuals receiving donation or inheritance of houses do not fall into the cases prescribed at Point b, Clause 2, Article 17 of this Law or in excess of the number of houses as prescribed in Article 19 of this Law or in an area subject to national defense and security assurance as prescribed in Article 16 of this Law;

b) In cases where foreign organizations and individuals receiving donation or inheritance of Vietnam-based houses but foreign organizations do not operate in Vietnam, or foreign individuals are not permitted to enter Vietnam.

2. The subjects prescribed at Point a, Clause 1 of this Article may directly, or authorize other organizations or individuals, to sell or donate houses. The subjects prescribed at Point b, Clause 1 of this Article may authorize other organizations and individuals residing and operating in Vietnam to sell or donate houses.

3. If the subjects inheriting houses include both organizations and individuals eligible to own Vietnam-based houses and those ineligible to own Vietnam-based houses, the parties must agree on how to handle the inheritance.

a) To allow organizations and individuals eligible to own Vietnam-based houses to inherit such houses; Organizations and individuals ineligible to own Vietnam-based houses shall be entitled to the value of such houses corresponding to the inherited property;

b) To donate or sell such houses to organizations or individuals eligible to own Vietnam-based houses to enjoy the value.

NATIONAL HOUSING DEVELOPMENT STRATEGIES, PROVINCIAL-LEVEL HOUSING DEVELOPMENT PROGRAMS AND PLANS

Section 1

NATIONAL HOUSING DEVELOPMENT STRATEGIES

Article 23. Grounds for formulation of national housing development strategies

1. The national socio-economic development strategy; and the national master plan.
2. The country's conditions for socio-economic development.
3. Results of implementing the national housing development strategy in the previous period; and the housing status.
4. Requirements on housing development for subjects during the phase of formulating the national housing development strategy.

Article 24. Contents of the National Housing Development Strategy

The national housing development strategy must have the following main contents:

1. Housing development viewpoints;
2. Housing development objectives, including:
 - a) General objectives are to meet housing requirements for all subjects, ensuring sustainable and transparent real estate market development;
 - b) Specific objectives include housing area development; housing quality improvement; development of commercial houses, social houses, houses for the people's armed forces, official-duty houses, houses for resettlement, houses constructed under national target programs or public investment programs on housing; houses for individuals; renovation and reconstruction of condominiums; the objectives within the vision of the national housing development strategy include total housing area and increased area of social houses, houses for the people's armed forces, and house quality;
3. Tasks and solutions to implement the national housing development strategy include: land planning and fund development; housing development and management under programs and plans; capital sources and taxes, reform of administrative procedures, investment procedures; real estate market development and other tasks and solutions;
4. Responsibilities of ministries, ministerial-level agencies, provincial-level People's Committees and relevant agencies and organizations in implementing the national housing development strategy.

Article 25. The national housing development strategy's period and approval authority

1. The national housing development strategy's period is 10 years and has a vision consistent with the national socio-economic development strategy. The national housing development strategy must be approved in the first year of the period.

2. The Ministry of Construction shall assume the prime responsibility for, and coordinate with ministries, ministerial-level agencies, relevant agencies and organizations in, formulating the national housing development strategy and submit it to the Prime Minister for approval.

3. Basic targets for housing development in the national housing development strategy, including per-capita housing area and housing quality in urban areas, rural areas and nationwide, must be included in the tasks of national socio-economic development in each period.

4. Provincial-level People's Committees shall be responsible for organizing the development and approval of provincial-level housing development programs and plans in accordance with this Law to implement the national housing development strategy.

Section 2

PROVINCIAL-LEVEL HOUSING DEVELOPMENT PROGRAMS AND PLANS

Article 26. Grounds for formulation and period of provincial-level housing development programs and plans

1. Grounds for formulation of a provincial-level housing development program include:

- a) National housing development strategy;
- b) Land use master plan, construction master plan, urban master plan;
- c) Conditions for local socio-economic development; results of implementation of the provincial-level housing development program in the previous period; housing status; housing needs during the formulation phase of the provincial-level housing development program.

2. Grounds for formulation of a provincial-level housing development plan include:

- a) Provincial-level housing development program;
- b) Local socio-economic development plan;
- c) Results of implementation of the provincial-level housing development plan in the previous period; housing status; housing needs during the formulation phase of the provincial-level housing development plan.

3. Based on local conditions, provincial-level People's Committees may develop and approve separate plans for the development of social houses, houses for resettlement, renovation and reconstruction of condominiums.

4. The period of a provincial-level housing development programs and plan shall be determined as follows:

- a) The period of the provincial-level housing development program is 10 years, corresponding to the period of the national housing development strategy;
- b) The period of the provincial-level housing development plan is 05 years and the first period of the provincial-level housing development plan shall be determined according to the beginning of the period of the provincial-level housing development program.

Article 27. Contents of provincial-level housing development programs and plans

1. The contents of a provincial-level housing development program include:
 - a) Evaluating the current status of housing floor area and quality of individual houses and condominiums; current status of house types under projects, houses under national target programs or public investment programs on housing, and self-built houses by individuals; current state of the residential real estate market;
 - b) Analyzing and evaluating the achievements, problems, difficulties, obstacles, and causes in implementing the provincial-level housing development program in the previous period;
 - c) Estimating land area for developing social houses, houses for resettlement, official-duty houses, renovation and reconstruction of condominiums. Estimating the total needs for increased housing floor area in the province or centrally-run city during the period of the provincial-level housing development program, which delineates the housing area needs of each group of beneficiaries of social housing support policies and each type of houses developed under projects;
 - d) Determining general and specific objectives for housing development in the province or centrally-run city;
 - dd) Orienting housing development targets during the program period, including per-capita housing area in urban areas, rural areas and in provinces and centrally-run cities; minimum residential floor area; expected housing floor area to be completed and put into use during the program period; housing quality in urban and rural areas;
 - e) Determining needs for state budget capital and other capital sources for housing development;
 - g) Determining solutions to implement the program, including solutions on planning, land fund, capital and tax sources, reform of administrative procedures, investment procedures and other solutions;
 - h) Areas expected for housing development by district-level administrative units;
 - i) Responsibilities of People's Committees at all levels and local authorities in implementing the provincial-level housing development program.
2. The contents of a provincial-level housing development plan include:
 - a) Targets on per-capita housing area, housing floor area completed and put into use for houses under projects, houses under national target programs or public investment program in housing;
 - b) Targets on housing quality in urban and rural areas in provinces and centrally-

run cities;

c) Needs for state budget capital and other capital sources for housing development;

d) Solutions to implement plans under the national housing development strategy and provincial-level housing development program;

dd) Responsibilities of People's Committees at all levels and local authorities in implementing provincial-level housing development plans.

Article 28. Adjustments to provincial-level housing development programs and plans

1. A provincial-level housing development program shall be adjusted when there is any change in one of the contents prescribed at Points c, d, dd or h, Clause 1, Article 27 of this Law due to the adjustment of provincial-level master plans or approval of provincial-level master plans in the new period or establishment, dissolution, merger, division, or adjustment of boundaries of provincial-level administrative units.

2. An adjusted provincial-level housing development program must specify the following contents:

a) The need to adjust the program;

b) Adjusted contents; and capital sources for implementation of such contents;

c) Solutions for implementation of adjusted contents;

d) Responsibilities of People's Committees at all levels and local authorities in implementing the adjusted program.

3. A provincial-level housing development plan may be adjusted when there is one of the following grounds:

a) The contents of an approved provincial-level housing development program are adjusted;

b) The contents related to housing in an approved provincial-level socio-economic development plan are adjusted;

c) In the cases prescribed in Clause 4, Article 65 of this Law, if the plan on renovation and reconstruction of condominiums is formulated and approved together with the provincial-level housing development plan.

4. An adjusted provincial-level housing development plan must specify the following contents:

a) Purpose and request for adjustment;

b) Adjusted contents; capital sources for implementation of such contents;

c) Solutions for implementation of adjusted contents;

d) Responsibilities of People's Committees at all levels and local authorities in implementing the adjusted plan.

5. When adjusting provincial-level housing development programs and plans, provincial-level People's Committees must maintain the period of approved programs

and plans.

Article 29. Development and approval of provincial-level housing development programs and plans

1. A provincial-level housing development program or plan shall be formulated and approved as follows:

a) The provincial-level People's Committee shall formulate the provincial-level housing development program and submit it to the People's Council of the same level for adoption. After it is adopted by People's Councils of the same level, the provincial-level People's Committee shall approve and organize the implementation of such program.

b) Based on the approved provincial-level housing development program, the provincial-level People's Committee shall organize the construction, approval and implementation of the provincial-level housing development plan. In the case where the plan uses budget capital for housing development, it must be consistent with the approved medium-term public investment plan.

2. After approving the provincial-level housing development program and plan, the provincial-level People's Committee must publicize such program and plan on its portal and local mass media, send them to the provincial-level housing management agency for publication on this agency's portal, and submit them to the Ministry of Construction.

3. The Government shall detail the contents, order, and procedure for construction, approval, change, construction costs, and adjustments to provincial-level housing development programs and plans; and conformity of contents of housing investment project with provincial-level housing development programs and plans upon appraisal of investment policies.

Chapter IV HOUSING DEVELOPMENT

Section 1 GENERAL PROVISIONS

Article 30. Forms of housing development

1. Housing development under housing investment projects include:

- a) Investment project on construction of an independent house or housing cluster;
- b) Investment project on construction of an independent house for combined purposes or a housing cluster for combined purposes;
- c) Investment project on construction of housing quarters with complete technical and social infrastructure and other works in service of housing needs;

- d) Investment project on construction of housing infrastructure to transfer land use rights to individuals for construction of their own houses;
- dd) Investment project on construction of urban areas with housing;
- e) Multi-purpose land use projects that reserve certain land areas for house construction.

2. Individuals shall develop housing in accordance with Section 5 of this Chapter.

Article 31. Types of houses developed under housing investment projects and housing area standards

1. Houses developed under housing investment projects include the following types:

- a) Development of commercial houses;
- b) Development of social houses, worker houses in industrial parks, and houses for the people's armed forces;
- c) Development of official-duty houses;
- d) Development of houses for resettlement;
- dd) Renovation and reconstruction of condominiums;
- e) Development of mixed-use houses prescribed in this Clause in accordance with to this Law.

2. Houses must be designed and constructed in accordance with this Law and must conform to construction standards and regulations; Condominium apartments shall be designed and constructed as self-contained apartments having floor areas not lower than the areas under the national technical regulations on condominiums; For rural areas, housing construction must also be consistent with customs, practices, and rural housing architecture of each region, and must include auxiliary works to serve daily needs, production of households and individuals.

Article 32. Land areas for housing development

1. Land areas for housing development must be determined in urban master plans, master plans on construction of industrial parks, master plans on construction of tertiary education institutions, and other construction master plans in accordance with law regulations on planning, urban master plans, construction and other relevant laws.

2. The arrangement of land areas for housing development must be consistent with land use master plans, land use plans, and the need for land areas for housing development in the areas under the approved provincial-level housing development programs and plans in accordance with this Law and land laws.

3. The arrangement of land areas for development of commercial houses, official-duty houses, and houses for resettlement must comply with the provisions of Clauses 1 and 2 of this Article, and Sections 2, 3 and 4 of this Chapter.

4. The arrangement of land areas for development of social houses, worker houses in industrial parks, and houses for the people's armed forces must comply with the provisions of Clauses 1 and 2 of this Article and Chapter VI of this Law.

Article 33. Requirements on housing investment projects

1. The housing investment projects prescribed in Clause 1, Article 30 of this Law must ensure the following general requirements:

a) To conform to approved provincial-level housing development programs and plans, comply with contents of decided or approved investment policies, and meet the requirements prescribed in Article 5 of this Law; to implement in accordance with the approved detailed planning;

b) The division of component projects (if any) and investment phases must be determined in investment policies, construction feasibility study reports, and construction investment decisions in accordance with law regulations on investment, public investment and construction;

c) Housing investment projects and zones therein must have Vietnamese names; Owners of investment projects on construction of social houses, houses for the people's armed forces, and houses for resettlement must also name their projects in Vietnamese. In the case where the owners of commercial housing investment projects or investment projects on renovation or reconstruction of condominiums need to give foreign-language names to their projects and zones therein, they shall write full Vietnamese names of these projects before foreign names. The names of projects and zones therein shall be stated in the approved investment policies or project contents, and used throughout the course of construction investment and post-construction management and use of the projects.

d) Housing investment project owners shall fully implement approved contents of their projects. In cases of adjustment to project contents that requires adjustment to the investment policies, the housing investment project owners must carry out procedures to adjust the investment policies in accordance with law regulations before adjusting the project contents;

dd) The acceptance and handover of houses, technical and social infrastructure works under projects must be carried out in accordance with this Law, construction laws and other relevant laws; ensure quality and safety in construction, operation, exploitation and use of works, requirements for fire prevention and fighting, and environmental protection. In zones affected by climate change, they must also meet the requirements for natural disaster prevention and response and climate change response in accordance with law regulations;

e) Housing investment projects that apply energy-saving or resource-saving technologies, green buildings or smart urban areas must meet the technical requirements, standards and regulations in accordance with law regulations; condominiums must have telecommunications and information infrastructure systems designed and installed in accordance with law regulations.

2. Investment projects on construction of mixed-use houses prescribed at Point b, Clause 1, Article 30 of this Law must comply with the requirements prescribed in Clause 1 of this Article and the following requirements:

a) Clearly identifying the residential purpose and use for office or commercial purposes, services, or other purposes in decided or approved project investment policies;

b) In approved project contents, clearly identifying whether or not to separate different functional zones. In the case where it is possible to separate functional zones, designing and constructing separately equipment systems for common use in each functional zone and equipment systems for common use in the entire mixed-use house to ensure requirements in operation management after being put into use;

c) Ensuring complete technical and social infrastructure systems inside and outside the project scope.

3. Housing investment projects prescribed at Points c, d, dd and e, Clause 1, Article 30 of this Law must comply with the requirements prescribed in Clause 1 of this Article and the following requirements:

a) Having complete technical and social infrastructure systems that meet planning criteria in accordance with law regulations on planning and ensuring connection with the general technical infrastructure system of the area;

b) Identifying responsibilities for investment, construction, management, and post-investment use of technical and social infrastructure of projects in the project investment policies in accordance with law regulations on investment, public investment and construction;

c) In the case where land use rights may be transferred for individuals to construct their own houses in accordance with this Law and other relevant laws, the approved project contents must clearly identify the zones and locations where project owners must conduct investment in housing construction, zones and locations where project owners may transfer land use rights for individuals to construct their own houses or that the entire projects subject to the cases where land use rights may be transferred for individuals to construct their own houses.

4. In addition to the requirements prescribed in Clauses 1, 2 and 3 of this Article, housing investment projects must also meet other requirements corresponding to each type of housing investment project prescribed in Articles 49, 53, 60, 81, 95 and 105 of this Law and other relevant law regulations.

Article 34. Phases of housing investment projects

1. A housing investment project includes the phases of project preparation, implementation, completion and putting the project's works into operation and use in accordance with law regulations on housing, investment, public investment, construction and other relevant laws.

2. The Government shall detail Clause 1 of this Article.

Article 35. Housing investment project owners and conditions for being housing investment project owners

1. Housing investment project owners include:

a) Enterprises or cooperatives and cooperative unions, including foreign-invested economic organizations established and operating under Vietnamese law, that have real estate business functions (hereinafter referred to as real estate business enterprises) and satisfy the conditions prescribed in Clause 2 of this Article;

b) Organizations investing in housing construction that use capital sources

prescribed in Clause 5, Article 112, Clause 1, Article 113 of this Law and satisfy the conditions prescribed in Clause 3 of this Article.

2. For the cases prescribed at Point a, Clause 1 of this Article, housing investment project owners must satisfy the following conditions:

a) Having equity capital in accordance with law regulations on real estate business for implementation of each housing investment project;

b) Having land use rights for implementation of each type of housing investment projects in accordance with this Law or being eligible for land allocation or lease in accordance with the Land Law;

c) Having the capacity and experience for implementation of housing investment projects in accordance with law regulations.

3. For the cases prescribed at Point b, Clause 1 of this Article, housing investment project owners shall be organizations assigned by investment deciders to manage and use capital for implementation of housing investment projects.

4. Based on each type of housing investment projects, the selection of housing investment project owners must comply with Clauses 1, 2, 3 of this Article and other relevant regulations of this Law.

Section 2

DEVELOPMENT OF COMMERCIAL HOUSES UNDER PROJECTS

Article 36. Owners of commercial housing investment projects

1. Owners of commercial housing investment projects must be enterprises engaged in real estate business that satisfy the conditions prescribed at Points a and c, Clause 2, Article 35 of this Law and fall into the cases prescribed in Clause 2 or Clause 3 of this Article.

2. Being eligible for land allocation or lease due to winning the auction of land use rights, winning the bidding to select investors for implementation of projects using land; other cases approved by investors when organizing auctions or bidding in accordance with law regulations on investment.

3. Being approved for investment policies and investors to be owners of commercial housing investment projects when the investors have land use rights through agreements on receiving the rights to use land eligible for commercial housing investment projects, or have the rights to use land eligible for commercial housing investment projects in accordance with the Land Law.

Article 37. Implementation of commercial housing investment projects

1. The implementation of housing investment projects must comply with this Law, construction laws and other relevant laws.

2. Investors of housing investment projects must construct houses and technical and social infrastructure systems in conformity with approved master plans, contents

and project schedule. In the case where a project has investment phases, the construction must be carried out in accordance with the approved investment phases.

3. For technical and social infrastructure systems that must be handed over to local authorities or functional agencies for management under the approved investment policies and project contents, the handover must be carried out after completing the construction investment; The agencies or organizations receiving the transfer shall be responsible for receiving it for management, maintenance, operation, exploitation and use according to the approved purposes and utilities. For technical and social infrastructure systems invested in and constructed by the State, the organizations assigned to invest in construction of technical and social infrastructure systems must carry out the projects in conformity with approved project contents and schedules.

4. The handover of houses to purchasers or lessee-purchasers shall only be performed after completing the acceptance of housing projects according to the approved design and acceptance of technical infrastructure of housing areas invested in and constructed according to the approved project schedules. In the case where the investors of housing investment projects must construct social infrastructure in service of housing needs under the project investment policies, they must complete construction and acceptance of such projects according to the approved project schedules before handing over such houses. In cases of handing over raw-built houses, the entire exterior of such houses must be completed.

When handing over condominiums, owners of housing investment projects must have complete housing handover dossiers in accordance with the regulations of the Government.

5. The acceptance of houses and technical and social infrastructure systems under projects shall be carried out in accordance with law regulations on construction.

Article 38. Rights of owners of commercial housing investment projects

1. To request relevant agencies and organizations to carry out procedures in accordance with law regulations in the course of approving investment policies, formulating, appraising and implementing projects.

2. To sell, put for lease-purchase and lease houses; to mobilize capital and collect payments for sale or lease-purchase of houses, and rentals in accordance with this Law, laws on real estate business and contents of signed contracts.

3. To exercise the rights of land users and trade in products of their projects in accordance with the approved investment policies and project contents.

4. To transfer part or the whole of their projects in accordance with law regulations on real estate business, land, and investment.

5. To manage and operate technical and social infrastructure systems within projects that do not have to be handed over to the State under the approved investment policies and project contents.

6. To request competent state authorities to grant certificates for houses constructed under their projects in accordance with Article 9 of this Law and the land law.

7. To enjoy the State's preferential policies in the implementation of their projects in accordance with law.

8. To exercise other rights in accordance with the law.

Article 39. Obligations of owners of commercial housing investment projects

1. To formulate, approve and implement their projects in accordance with the approved investment policies, project contents, provisions of this Law, construction laws and other relevant laws.

2. To make deposits or have bank guarantees on deposit obligations to implement their projects in accordance with law regulations on investment; to pay guarantee money for house transactions in accordance with the real estate business law; to ensure the financial capacity for project implementation in accordance with law regulations.

3. To construct houses and technical and social infrastructure works in assigned projects strictly according to detailed master plans, approved investment policies, and to approved design, housing area standards and project contents.

4. In the case where land use rights may be transferred for individuals to construct their own houses in accordance with this Law, owners of housing investment projects may only transfer the land use rights after the technical infrastructure systems have been completed and accepted and put into use in accordance with law regulations on construction and real estate business for the areas eligible for transfer land use rights.

5. To report on the implementation status and results of project implementation periodically and at the end of the projects in accordance with law regulations on housing and real estate business.

6. To sign contracts and documents related to capital mobilization for implementation of housing investment projects in accordance with this Law, laws on real estate business and other relevant laws. Not to authorize or assign parties participating in investment cooperation, joint venture, association, business cooperation, capital contribution or other organizations or individuals to sign housing lease, lease-purchase, or purchase and sale contracts, and deposit contract for transactions on housing or land use rights business within their projects.

7. To fulfill their commitments in project product trading contracts; to ensure the quality of works in accordance with law regulations on construction; to hand over transacted houses and title documents thereof to customers and carry out house purchase and sale, lease, lease-purchase and trade in land use rights in accordance with this Law, laws on real estate business and other relevant laws.

8. Within 50 days from the date of handover of houses to purchasers or from the time when lessees make full payments as agreed upon, to submit dossiers to competent state authorities for request of granting certificates to house purchasers or lessees, unless the latter voluntarily carry out the procedures to apply for certificates.

9. To conduct house warranty in accordance with this Law and the construction law; to perform the financial obligations toward to the State in accordance with law.

10. To abide by legally effective handling decisions of competent authorities on handling violations of the law in the housing development, capital mobilization,

advance payment by customers, performance of housing transactions and other activities prescribed in this Law.

11. To pay compensations if causing damage to customers or to organizations, individuals investing in the construction of houses.

12. To fulfill the obligations prescribed in Clauses 2 and 3, Article 83 of this Law.

13. To fulfill other obligations in accordance with law regulations.

Section 3

DEVELOPMENT OF OFFICIAL-DUTY HOUSES

Article 40. Land areas for construction of official-duty houses

1. Land areas for construction of official-duty houses shall be specifically determined in approved construction master plans.

2. With regard to official-duty houses of central agencies, the Ministry of Construction shall assume the prime responsibility for, and coordinate with provincial-level People's Committees in, determining local land areas for their construction, unless otherwise prescribed in Clause 3 of this Article. Provincial-level People's Committees shall allocate land areas for official-duty house construction at the request of the Ministry of Construction.

3. With regard to official-duty houses for persons of the people's armed forces in accordance with this Law, the Ministry of National Defense and the Ministry of Public Security shall assume the prime responsibility for, and coordinate with the Ministry of Construction and provincial-level People's Committees of localities that need to construct official-duty houses in, determining land areas for their construction.

4. With regard to local official-duty houses, provincial-level People's Committees shall allocate land areas for their construction when making and approving master plans in accordance with law regulations.

5. The State shall not collect land use levy for land areas used for construction of official-duty houses prescribed in this Article.

Article 41. Forms and plans for official-duty housing development

1. The State shall invest capital from its budget, including the central budget and local budgets, to build official-duty houses and to purchase or rent commercial houses for use as official-duty houses.

2. Central agencies shall be responsible for identifying the official-duty house demands and contents prescribed at Points a, b and c, Clause 5 of this Article of the agencies or sectors under their management, and send them to the Ministry of Construction for appraising and developing their five-year official-duty housing development plans to submit to the Prime Minister for approval, unless otherwise prescribed in Clause 3 of this Article.

3. The Ministry of National Defense and the Ministry of Public Security shall

assume the prime responsibility for, and coordinate with the Ministry of Construction in, developing five-year official-duty housing development plans for persons of the people's armed forces in accordance with this Law to submit to the Prime Minister for approval.

4. Provincial-level People's Committees shall prepare and approve the contents of official-duty housing development prescribed in Clause 5 of this Article for persons eligible to rent local official-duty houses in provincial-level housing development plans in accordance with law regulations.

5. An official-duty housing development plan prescribed in this Article shall include the following main contents:

a) Number and job position of persons eligible to rent official-duty houses in accordance with this Law;

b) Demand for land areas for construction of official-duty houses;

c) Type of houses, number of each type of houses, total housing floor area that they need to construct, purchase or rent commercial houses for use as official-duty houses during the plan phase;

d) Estimated capital sources to invest in construction of official-duty houses, purchase and rent commercial houses for use as official-duty houses for 05 years;

dd) Responsibilities of agencies in charge of implementation and relevant ministries, branches and localities.

6. Official-duty housing development plans and contents shall serve as the basis for establishing investment projects on construction of official-duty houses, purchase and rent of commercial houses for use as official-duty houses.

Article 42. Decisions on investment policies, decisions on investment, and decisions on owners of official-duty housing investment projects

1. Investment policies of official-duty housing investment projects shall be decided as follows:

a) The Prime Minister shall decide on the investment policies of official-duty housing investment projects at the request of the Ministry of Construction to arrange for rent to persons of central agencies, unless otherwise prescribed at Point b of this Clause;

b) The Minister of National Defense and the Minister of Public Security shall decide on the investment policies of official-duty housing investment projects to construct official-duty houses after obtaining the consensus of the Ministry of Construction to arrange for rent to persons of the people's armed forces;

c) Provincial-level People's Council shall decide on the investment policies or assign provincial-level People's Committees of the same level to decide on the investment policies of official-duty housing investment projects to arrange for rent to persons working in the localities.

2. For the cases prescribed at Points a and b, Clause 1 of this Article, the persons competent to decide on the investment policies shall decide on investment and owners of official-duty housing investment projects. For the cases prescribed at Point c, Clause

1 of this Article, chairpersons of provincial-level People's Committees shall decide on investment and owners of official-duty housing investment projects.

3. The Government shall detail this Article.

Article 43. Purchase or rent of commercial houses for use as official-duty houses

1. In the case where there are not enough local official-duty houses for persons eligible for rent but there are local commercial houses under projects that ensure quality in accordance with law regulations on construction, types and area standards of official-duty houses, the competent agencies prescribed in Article 14 of this Law may purchase or rent such commercial house for use as official-duty houses.

2. Before establishing projects on purchase commercial houses for use as official houses, the competent agencies shall decide on investment policies according to the following regulations:

a) The Ministry of Construction shall report to the Prime Minister for deciding on the investment policies of projects on purchase of commercial houses used for lease to persons prescribed at Points a, e and g, Clause 1, Article 45 of this Law, and persons of central agencies prescribed at Point b, Clause 1, Article 45 of this Law;

b) The Ministry of National Defense and the Ministry of Public Security shall report to the Prime Minister for deciding on the investment policies of projects on purchase of commercial houses used for lease to persons prescribed at Point d, Clause 1, Article 45 of this Law;

c) Provincial-level People's Council shall decide on the investment policies or assign People's Committee of the same level to decide on the investment policies of projects on purchase of commercial houses used for lease to persons prescribed at Points c and dd, Clause 1, Article 45 of this Law, and persons prescribed at Point b, Clause 1, Article 45 of this Law.

3. After competent authorities decide on investment policies, projects on purchase of commercial houses for use as official-duty houses shall be implemented as follows:

a) With regard to projects on purchase of commercial houses to rent to persons of central agencies, except the cases of the people's armed forces, the Ministry of Construction shall report to the Prime Minister for investment decision or the Minister of Develop for investment decision if authorized by the Prime Minister;

b) With regard to projects on purchase of commercial houses to rent to persons of the people's armed forces, the Minister of National Defense and the Minister of Public Security shall decide on investment after obtaining the consensus of the Ministry of Construction;

c) With regard to projects on purchase of commercial houses to rent to persons of localities, provincial-level housing management agencies shall report to Chairpersons of provincial-level People's Committees to decide on investment;

d) Main contents of projects on purchase of commercial houses for use as official-duty houses prescribed in this Clause include location, type, number of houses, use area of each type of house, house purchase price, related costs, capital sources for house

purchase, payment methods for house purchase, agencies signing house purchase contracts, project implementation schedules, agencies in charge of housing management after purchase, responsibilities of relevant agencies in the project implementation;

dd) Purchase prices of commercial houses for use as official-duty houses shall be decided by investment deciders on the basis of reference to market house purchase and sale prices and results of price appraisal by price appraisal units at the time of house purchase.

4. Rent of commercial houses for use as official-duty houses is specified as follows:

a) In cases of houses used for lease to persons of central agencies, the Ministry of Construction shall report to the Prime Minister for consideration and decision; The Ministry of Construction shall directly sign rental contracts with house owners to arrange official-duty houses for such persons;

b) In cases of houses used for lease to persons of the people's armed forces, the Ministry of National Defense and the Ministry of Public Security shall report to the Prime Minister for consideration and decision; the Ministry of National Defense and the Ministry of Public Security shall directly sign rental contracts with housing owners to arrange official-duty houses for such persons;

c) In cases of houses used for lease to local persons, provincial-level housing management agencies shall report to provincial-level People's Committees for consideration and decision; provincial-level housing management agencies shall directly sign rental contracts with housing owners to arrange official-duty houses for such persons;

d) Main contents of written proposals to rent commercial houses for use as official-duty houses prescribed in this Clause include location, type and number of houses, use area of each type of houses, rental price, rental term, related costs, capital sources for rent of houses, agencies in charge of paying rental, agencies in charge of signing rental contracts and managing houses after the rent.

5. The Government shall detail this Article.

Article 44. Types and area standards of official-duty houses

1. Official-duty houses include villas, semi-detached houses and condominium apartments with different area standards suitable to each group of persons eligible for rent of official-duty houses in accordance with this Law.

2. Area standards and norms of interior equipment for official-duty houses shall be prescribed by the Prime Minister and adjusted as appropriate in each period at the proposal of the Ministry of Construction.

Article 45. Persons eligible and conditions for rent of official-duty houses

1. Persons eligible to rent official-duty houses include:

a) Leaders of the Party and the State who are entitled to official-duty houses while they hold office;

b) Cadres and civil servants of agencies of the Party, the State and socio-political

organizations that are other than those prescribed at Point a of this Clause and transferred, rotated or seconded from local agencies to central agencies and hold the position of Deputy Head or equivalent or higher position in governmental agencies; transferred, rotated or seconded from central agencies to local agencies or from a locality to another to hold the position of Deputy Chairperson of district-level People's Committees or Deputy Director of provincial-level Departments and equivalent or higher position;

c) Cadres, civil servants, and public employees of agencies of the Party, the State and socio-political organizations that do not fall into the cases prescribed at Points a and b of this Clause and are transferred, rotated, or seconded to work in communes in deep-lying or remote areas, areas with particularly difficult socio-economic conditions, border areas or islands;

d) Officers, professional soldiers, and non-commissioned officers of the people's armed forces who are transferred, rotated, and seconded based on the national defense and security requirements; public security workers or defense workers, civil servants, and public employees, persons engaged in cipher work or other work in cipher organizations who receive salaries from the state budget of the people's armed forces, and are transferred, rotated, and seconded to work in communes in deep-lying or remote areas, areas with particularly difficult socio-economic conditions, border areas or islands; except the cases where the persons prescribed at this Point must live in barracks of the people's armed forces as prescribed by the law;

dd) Teachers, doctors, and medical staff who work in rural areas or communes in deep-lying or remote areas, areas with particularly difficult socio-economic conditions, border areas or islands;

e) Scientists who are assigned to manage particularly important national scientific and technological tasks prescribed in the Science and Technology Law; talents who have made important contributions to the country and are recognized by competent authorities in accordance with law regulations;

g) Based on actual conditions, the Prime Minister shall decide on persons other than the cases prescribed at Points a, b, c, d, dd and e of this Clause who are eligible for official-duty houses at the request of the Ministry of Construction on the basis of synthesizing proposals from ministries, central agencies and organizations, and provincial-level People's Committees.

2. Conditions for rent of official-duty houses are prescribed as follows:

a) For persons prescribed at Point a, Clause 1 of this Article, official-duty houses shall be allocated to meet security requirements;

b) Persons prescribed at Points b, c, d, dd, e and g, Clause 1 of this Article may rent official-duty houses if they own no houses or have not yet purchased, rent-purchased or rented social houses in localities where they work or own houses in localities where they work but such houses have a per-capita housing area lower than the minimum housing area.

The Government shall detail this Point.

1. Necessary expenses for the operation, maintenance and lease management in the course of use of official-duty houses shall be accurately and fully accounted.

2. Land use levy for land areas for and depreciation costs of investment in the construction of official-duty houses or payments for purchase of commercial houses for use as official-duty houses shall be excluded.

3. Official-duty house rental rates shall be decided by competent agencies prescribed in Article 14 of this Law and considered and adjusted as appropriate in each period.

4. In case of renting commercial houses for use as official-duty houses, lessees shall pay rentals at rates lower than commercial house rental rates.

5. The Government shall detail the determination of official-duty house rental rates, and the order and procedures for renting official-duty houses.

Article 47. Rights and obligations of official-duty house lessees

1. The lessee of an official-duty house has the following rights:

a) To take over the house and its fixtures and equipment as agreed upon in the rental contract;

b) To use the house for himself/herself and his/her family members during the time he/she holds a position or performs a work assignment;

c) To request the house management and operation unit to promptly repair damage not caused by his/her fault;

d) To renew the rental contract upon the expiration of the rent term if he/she remains eligible and still fully meets the conditions for renting official-duty houses in accordance with Article 45 of this Law;

dd) To exercise other housing rights as prescribed by law and agreed upon in the rental contract.

2. The lessee of an official-duty house has the following obligations:

a) To use the house for the residential purpose and meeting his/her own and his/her family members' daily-life needs during the rent term;

b) To preserve the house and its fixtures and equipment; not to renovate, repair or demolish the house without permission. For official-duty houses being condominium apartments, to comply with regulations on management and use of condominiums;

c) Not to sub-lease, lend or authorize others to manage the house;

d) To pay rentals under the rent contract signed with the lessor and pay other expenses for other daily-life services as charged by service providers;

dd) To return the house to the agency or organization assigned to manage the official-duty house within 90 days from the date of retirement according to the regime prescribed in the retirement decision or from the date of transfer to another locality to work according to the transfer decision or when no longer eligible for rent of the official-duty house in accordance with Article 45 of this Law. Past the time limit prescribed at this Point, if the lessee fails to return the house, the agency competent to lease the

official-duty house shall decide to recover and compel to hand over the house in accordance with Clause 2, Article 127 of this Law. The revocation and forcible handover of the official-duty house must be publicly announced on the mass media;

e) When returning the official-duty house, the lessee must hand over the house and its fixtures and equipment as agreed upon in the rental contract;

g) To perform other obligations as prescribed by law and agreed upon in the rental contract.

Section 4

DEVELOPMENT OF HOUSES FOR RESETTLEMENT

Article 48. Arrangement of resettlement houses

1. Forms of arrangement of houses for resettlement include:

a) Constructing houses under projects for lease, lease-purchase or sale to resettled people.

b) Ordering or purchasing commercial houses constructed under projects for lease, lease-purchase or sale to resettled people.

c) Allowing resettled people to purchase, rent-purchase, or rent social houses built under the projects;

d) Offering funds to resettled people to purchase, rent-purchase, or rent houses on their own;

dd) Arranging houses for resettled people in condominium renovation and reconstruction projects in accordance with Chapter V of this Law;

e) Arranging resettlement in accordance with the law regulations on land.

2. The Government shall specify the beneficiaries and conditions for being entitled to houses for resettlement; the process and procedures for purchase, rent-purchase, and rent of houses for resettlement.

Article 49. Principles of development of houses for resettlement

1. Houses for resettlement of those who have to be relocated to new residences must be arranged before the recovery and clearance of their houses, unless otherwise they voluntarily hand over such houses before houses for resettlement are arranged for them. Publicity, transparency, and harmonization of the interests of the State, people whose houses are recovered or cleared, and investors during the process shall be ensured in accordance with the law. The houses for resettlement must have conditions equal to or better than the houses being recovered or cleared.

2. In case of clearing houses to construct other structures in accordance with approved master plans in grade-I urban centers, wards, urban districts, or cities affiliated to special-grade urban centers, the resettlement of people whose houses are cleared shall be one of the forms prescribed at Points b, c and d, Clause 1, Article 48 of this Law if they wish to resettle in grade-I urban centers, wards, urban districts, or cities affiliated

to special-grade urban centers. In the case where people do not wish to resettle in grade-I urban centers, wards, urban districts, or cities affiliated to special-grade urban centers, depending on local conditions, the resettlement shall be one of the forms prescribed in Clause 1, Article 48 of this Law.

In the case where social houses are purchased or rent-purchased for resettlement, the resettled people shall be prioritized beneficiaries of social houses.

3. In case of clearing houses to construct other structures in accordance with approved master plans in areas not prescribed in Clause 2 of this Article, depending on local conditions and demands of resettled people, the resettlement shall be one of the forms prescribed in Clause 1, Article 48 of this Law.

4. In case of house clearance for implementation of commercial or social housing investment projects, if people whose houses are cleared need to resettle on the spot, owners the housing investment projects shall arrange commercial or social houses in their projects for resettlement.

5. In case of demolishing a condominium to carry out a project for renovation or reconstruction of another condominium or a condominium complex (hereinafter referred to as a condominium renovation or reconstruction project), the compensation, support and resettlement shall comply with Chapter V of this Law.

6. In case of constructing houses for resettlement under projects, separate projects must be established and approved instead of combined projects covering commercial houses, official-duty houses, or social houses, except condominium renovation or reconstruction projects. In rural areas, projects on construction of houses for resettlement must include the allocation of land areas for production of people eligible for resettlement.

7. In the case where resettled people are compensated with land use rights, the law regulations on land shall prevail.

Article 50. Land areas for implementation of projects on construction of houses for resettlement

1. The arrangement of land areas for implementation of projects on construction of houses for resettlement must adhere to the requirements prescribed in Article 32 of this Law and the law regulations on land.

2. The land areas for establishing projects on construction of houses for resettlement shall be determined in the zoning plans or detailed construction plans at a scale of 1/500 on the principles prescribed in Article 49 of this Law.

3. The determination of financial obligations regarding land for implementation of projects on construction of houses for resettlement is carried out in accordance with law regulations on land.

Article 51. Owners of projects on construction of houses for resettlement

1. Owners of projects on construction of houses for resettlement include specialized project management boards under the provincial-level People's Committees, provincial-level land development organizations, provincial-level housing management authorities, and district-level People's Committees or real estate enterprises. Unless

otherwise prescribed in Clause 4 of this Article, the owners of projects on construction of houses for resettlement shall be decided in accordance with Clauses 2 and 3 of this Article.

2. For projects on construction of houses for resettlement using public investments, the provincial-level housing management authorities shall propose one of the units prescribed in Clause 1 of this Article to be the project owners, except real estate enterprises, and report such proposal to the provincial-level People's Committees for the latter to decide on the project owners.

3. The authority to decide on the owners of projects on construction of houses for resettlement without the funding sources prescribed in Clause 2 of this Article is prescribed as follows:

a) In case of construction of houses for resettlement for national important projects, the Prime Minister shall decide on the project owners thereof or authorize the responsibility for decision to the Minister of Construction;

b) In case of constructing houses for resettlement for projects other than those prescribed at Point a of this Clause, the provincial-level People's Committees shall decide on the owners of the housing investment projects, unless otherwise prescribed at Point c of this clause;

c) Law regulations prescribing that bidding must be organized to select investors to be the owners of housing investment projects shall prevail in this case.

4. In the case of clearing or demolishing and reconstructing a condominium, the owner of such housing investment project shall be selected in accordance with Article 68 of this Law.

Article 52. Ordering or purchase of commercial houses and arrangement of social houses for resettlement

1. For the ordering or purchase of commercial houses for resettlement, units assigned to arrange houses for resettlement shall sign house purchase and sale contracts or contracts to place purchase orders for commercial houses with owners of housing investment projects for resettled people in accordance with the following regulations:

a) In the case where the units assigned to arrange resettlement sign commercial house purchase and sale contracts with the owners of housing investment projects, the resettled peoples shall directly sign the house purchase and sale, or rent-purchase, or rent contracts with the units assigned to arrange resettlement and receive houses handed over by such units;

b) In the case where units assigned to arrange houses for resettlement sign contracts to place house purchase orders with owners of housing investment projects, people to be resettled shall directly sign house purchase and sale contracts with such project owners based on the agreed contents in the contracts to place house purchase orders.

The provincial-level People's Committees must determine the number of houses to be ordered to meet the demand for resettlement in their localities. The people to be resettled shall be responsible for receiving the houses in under the commercial house

purchase contracts;

c) Owners of commercial housing investment projects shall carry out procedures to request competent state authorities to grant certificates to resettled people who are arranged to purchase or rent-purchase houses prescribed at Points a and b of this Clause unless the latter voluntarily carry out procedures to apply for certificates.

2. In the case where social houses are used for resettlement, the units assigned to arrange the resettlement shall introduce the social houses in their localities so that the resettled people can sign contracts for lease, lease-purchase, or purchase of social houses in accordance with this Law.

3. The Government shall detail the ordering and purchase of commercial houses and the arrangement of social houses for resettlement, the process and procedures for handing over houses and the management and use of houses for resettlement.

Article 53. Requirements for houses for resettlement

1. Houses for resettlement must satisfy design requirements, construction standards and regulations in accordance with law regulations on construction.

2. In case of investing in construction of houses under projects for resettlement, the requirements for housing investment projects prescribed in Article 33 of this Law shall be satisfied. Owners of housing investment projects are not allowed to change the design, housing area and auxiliary facilities (if any) for resettlement after the resettlement plans are approved.

3. Houses shall be handed over to resettled people in accordance with Clauses 3 and 4, Article 37 of this Law.

4. The following organizations and individuals shall take responsibility for the quality of houses for resettlement:

- a) Owners of projects on construction of houses for resettlement;
- b) Owners of housing investment projects where houses are used for resettlement;
- c) Organizations and individuals involved in the construction of houses for resettlement in accordance with the law.

5. Provincial-level housing management authorities shall guide and inspect the management of the quality of houses for resettlement in their localities.

Section 5

DEVELOPMENT OF HOUSES OF INDIVIDUALS

Article 54. Requirements for development of houses of individuals

1. It must be consistent with construction master plans and comply with law regulations on construction.

2. Houses must be built so as that they can be connected to the local common technical infrastructure systems and the construction of houses shall meet the sanitation,

environmental, architectural, and landscape requirements as well as not affect the legitimate rights and interests of the owners of adjacent structures and those who have other rights to such structures. The construction and renovation of houses must be combined with the preservation and conservation of traditional house architecture and align with customs, practices, and production conditions of each locality and region as well as protect natural landscapes and historical and cultural relics. The construction of houses under projects must conform to approved construction detailed plans of such projects.

3. Individuals may only be allowed to construct houses on residential land which they have the rights to use or which are allocated to them by the State, including land allocated as compensation, land of which the use rights are received through transfer, land rented or borrowed from other organizations or individuals.

4. In areas where artistic, cultural and historical values need to be preserved, provincial-level People's Committees shall consider and provide partial or full funding from their budgets in accordance with law regulations on the State budget for individuals to conserve, maintain or renovate their houses.

Article 55. Methods of development of houses of individuals

1. Individuals in rural areas may construct houses by the following methods:

a) Constructing houses on their own or hiring other organizations or individuals to construct houses or receiving assistance from other organizations and individuals for construction of houses;

b) Hiring units or individuals with construction capacity to construct houses, in cases where construction is required by the construction law to be carried out by such units or individuals;

c) Cooperating with and assisting one another in constructing houses.

2. Individuals in urban areas shall construct houses by the methods prescribed at Points a and b, Clause 1 of this Article and the following methods:

a) Cooperating with one another in renovating and embellishing urban areas, including houses, or in renovating and reconstructing condominiums in accordance with this Law;

b) Cooperating with and assisting one another in constructing houses by contributing land use rights, funds, labor, materials and efforts of members of the cooperative group.

Members of cooperation groups shall agree on methods of contribution of land use rights, capital, labor, materials, and endeavor, implementation schedule, their rights and obligations, and commit to fulfilling agreements of their cooperation groups.

Article 56. Responsibilities of individuals for housing development

1. Comply with law regulations on construction in house construction and renovation.

2. Comply with law regulations on environmental protection during the process of constructing and renovating houses.

3. To ensure safety for people and property of owners and users of adjacent construction works during the construction or renovation of houses. If causing damage, to pay compensations in accordance with law.

4. Individuals investing in the construction of multi-story houses with multiple apartments for sale, lease-purchase, or lease must also comply with Article 57 of this Law.

5. To perform other responsibilities for housing development in accordance with law.

Article 57. Development of multi-story houses with multiple apartments by individuals for sale, lease-purchase, or lease

1. Individuals, who have the rights to use residential land as prescribed in Clause 3, Article 54 of this Law and construct houses in the following cases, must meet the conditions to be owners of housing investment projects. Such construction investment shall comply with the law regulations on construction and other relevant law regulations applicable to housing investment projects:

a) Houses with 02 or more stories each of which contain apartments designed and constructed for sale, for lease-purchase, or for combined purpose of sale, lease-purchase, and lease thereof;

b) Houses with 2 stories or more and 20 apartments or more for lease.

2. Apartments prescribed in Clause 1 of this Article shall be granted certificates in accordance with law regulations on land, and can be sold, lease-purchased, or leased in accordance with this Law and law regulations on real estate business.

3. Individuals, who have the rights to use residential land as prescribed in Clause 3, Article 54 of this Law and construct houses with less than 20 apartments on 02 stories or more, each of which contain apartments designed and constructed for lease, must:

a) Meet the requirements for constructing multi-story multi-apartment houses for individuals in accordance with regulations of the Minister of Construction;

b) Meet the requirements for fire safety in accordance with law regulations on fire safety for multi-story multi-apartment houses of individuals;

c) Meet the conditions prescribed by the provincial-level People's Committees on roads for fire-fighting vehicles to perform fire-fighting tasks in places where there are multi-story multi-apartment houses of individuals.

4. If there are apartments for sale or lease-purchase in multi-story multi-apartment houses of individuals prescribed in Clause 3 of this Article, the conditions prescribed in Clause 1 of this Article must be met.

5. The house operation management prescribed in Clauses 1 and 3 of this Article shall comply with the Regulations on management and use of condominiums issued by the Minister of Construction (hereinafter referred to as the Regulations on management and use of condominiums).

6. People's Committees at all levels, within the scope of their duties and powers, shall be responsible for examining and inspecting the satisfaction of the requirements

and conditions prescribed in Clauses 1 and 3 of this Article.

7. The Government shall detail this Article.

Chapter V

RENOVATION OR RECONSTRUCTION OF CONDOMINIUMS

Section 1

GENERAL PROVISIONS

Article 58. Useful life of condominiums

1. The useful life of a condominium shall be determined under its design dossier and as its actual useful life according to the inspection findings of the competent authority. The useful life of a condominium determined under its design dossier must be clearly stated in the appraisal document of the competent authority in accordance with law regulations on construction.

2. The useful life of a condominium shall start from when the condominium is accepted and put into use in accordance with law regulations on construction.

3. When the useful life of a condominium determined under its design dossier as prescribed in Clause 1 of this Article has expired, or the useful life under the design dossier has not expired but the condominium is damaged or at risk of collapse and the safety for condominium owners and users cannot be ensured, the provincial-level People's Committee must direct the inspection and evaluation of the quality of such condominium in accordance with Article 61 of this Law.

4. The announcement of condominiums whose useful life expires shall comply with this Law and law regulations on construction.

Article 59. Condominiums subject to demolition

1. Condominiums which shall be demolished in accordance with Clause 2 of this Article include:

a) Condominiums which have expired useful life as prescribed in Article 58 of this Law and must be demolished;

b) Condominiums which must be demolished within their useful life as prescribed in Article 58 of this Law.

2. Cases where a condominium must be demolished:

a) The condominium is damaged by fire or explosion and no longer meets the safety conditions for continued use;

b) The condominium is damaged due to natural disasters or enemy activities and no longer meets the safety conditions for continued use;

c) The main force-bearing structure of the condominium is in an overall dangerous state or at risk of collapse, or does not meet the conditions for continued use,

and requires urgent relocation of the condominium owners and users;

d) The condominium exhibits severe damage, poses danger due to compromised sections of the main load-bearing structure, and manifests one of the following issues: the technical infrastructure systems for fire safety, water supply, drainage, wastewater treatment, power supply and internal traffic fail to meet applicable standards and technical regulations, or there exists a potential risk of unsafe operation and utilization so that the condominium must be consequently demolished to safeguard the well-being of the condominium owners and users and adhere to the requirements for urban renovation and embellishment.

dd) The condominium displays impairment in one of the main structures of the building, such as foundations, columns, walls, beams and joists, which, although not meeting the standard requirements for normal use, is not subject to demolition in accordance with Points c and d of this Clause but is located within an area slated for renovation and construction in tandem with the condominiums that necessitate demolition as prescribed in this Clause under the approved construction master plans.

Article 60. Principles of renovation or reconstruction of condominiums

1. If the multi-owner condominiums and the condominiums being public property subject to demolition in accordance with Clause 2, Article 59 of this Law are reconstructed under the approved master plans, they must adhere to the principles of prescribed in this Article.

Renovation and reconstruction of single-owner condominiums that are not public property shall comply with law regulations on construction.

2. The renovation and reconstruction of condominiums must be under projects and associated with urban renovation and embellishment, ensuring the connection of the condominiums to technical and social infrastructure systems, aligning with the approved construction and land use master plans, land use plans, provincial-level housing development programs, and condominium renovation and reconstruction plans.

In cases where the demolition of condominiums prescribed at Points a and b, Clause 2, Article 59 of this Law is not included in the approved condominium renovation and reconstruction plans, the provincial-level People's Committees must arrange temporary residences and relocate condominium owners and users. After relocation, the provincial-level People's Committees must add such demolition to the local apartment renovation and reconstruction plans.

3. The renovation and reconstruction of condominiums must comply with this Law, law regulations on construction, law regulations on investment, law regulations on public investment and other relevant law regulations.

4. In the case where the condominium is reconstructed under the approved master plan, the condominium owners shall be resettled on the spot, unless they do not want to. In the case where the condominium is not reconstructed under the approved master plan, the condominium owners shall be entitled to monetary compensation or resettlement to another location within the same commune, ward, or township (referred to collectively as commune-level localities). If there are no available houses for resettlement within the commune-level locality, they shall be resettled within the same district-level locality. In

the case where no houses for resettlement are available in the district-level locality, they shall be resettled in neighboring localities, unless the owners wish to purchase or rent-purchase social houses.

If the current lessees of a condominium being public property do not want to continue renting such condominium after it is reconstructed, the ownership representative of such public property may choose the form of compensation prescribed in Clause 7, Article 70 of this Law.

5. Resettled people may retain the ownership of resettlement houses under the compensation, support, resettlement, and temporary residence arrangement plans (hereinafter referred to as compensation and resettlement plans) in accordance with Article 71 of this Law after the renovation and reconstruction.

6. In case of renovation or reconstruction of condominium complexes as prescribed in Clause 2, Article 59 of this Law, the provincial-level People's Committees shall decide to implement one or more projects but the connection to the technical and social infrastructure systems and the compliance with the approved detailed construction master plans of the entire condominium complexes shall be guaranteed.

7. Owners of condominium renovation or reconstruction projects shall be selected only after condominium renovation or reconstruction plans are approved in accordance with Article 65 of this Law.

8. Owners of condominium renovation or reconstruction projects may be allowed to divide such projects into phases. However, the condominiums specified at Points a, b, and c, Clause 2, Article 59 of this Law must be demolished for reconstruction first, followed by the remaining condominiums.

The scope of a condominium renovation or reconstruction project shall be determined in accordance with the detailed master plans or under the decision and approval of the project investment policy by the competent authority.

9. The decision or approval, and adjustment of investment policies for condominium renovation or reconstruction projects shall comply with Article 67 and Article 69 of this Law.

10. Land recovery, land allocation, land lease, change of land use purposes (if any) for implementation of condominium renovation or reconstruction projects shall comply with law regulations on land, unless otherwise the condominium owners agree to transfer land use rights to the owners of the condominium renovation or reconstruction projects in accordance with Clause 11 of this Article.

11. The agreement to transfer land use rights for implementation of a condominium renovation or reconstruction project shall be made when the following conditions are met:

- a) The project is not prescribed in Clauses 1 and 3, Article 68 of this Law;
- b) The project's land area is solely under the common use of condominium owners;
- c) The agreement to transfer land use rights for implementation of the project for resettlement on the spot under the compensation and resettlement plan has been agreed

upon by all condominium owners with the owner of the condominium renovation or reconstruction project.

The transfer of land use rights prescribed in this Point is exempt from tax obligations.

12. Provincial-level People's Committees shall be responsible for allocating funds from the local budgets following the process and procedures prescribed in law regulations on State budget to carry out the following tasks:

a) Inspect and evaluate the quality of condominiums being public property; inspect and evaluate the quality of other condominiums, except single-owner condominiums that are not public property;

b) Prepare, appraise and approve condominium renovation or reconstruction master plans;

c) Organize the construction and approval of condominium renovation or reconstruction plans;

d) Implement condominium renovation or reconstruction projects using local budgets in their localities.

13. The arrangement of temporary residences for condominium owners shall comply with Article 72 of this Law.

14. The Government shall detail Clause 11 of this Clause.

Article 61. Inspection and evaluation of the quality of condominiums

1. The provincial-level People's Committees shall direct the provincial-level housing management authorities to assume the prime responsibility for and coordinate with local authorities and the district-level People's Committees of the localities where the condominiums are located in inspecting and evaluating condominiums constructed in their localities. Condominium complexes shall be wholly inspected and evaluated before they are included in condominium renovation or reconstruction plans.

Condominium owners shall be responsible for coordinating with the authorities prescribed in this Clause and inspection participants in inspecting and evaluating the quality of their condominiums in accordance with this Law and the law regulations on construction.

2. The organizations assigned to inspect and evaluate the quality of condominiums must clearly determine the quality of condominiums that must be demolished in accordance with Clause 2, Article 59 of this Law or are not subject to demolition in the reports on inspection results sent to the provincial-level housing management authorities. The inspection and evaluation of quality of condominiums shall comply law regulations on construction and this Law.

3. After receiving the reports on inspection results, the provincial-level housing management authorities must consider issuing findings on the quality inspection of the condominiums. The inspection findings must clearly state details of the inspection in accordance with law regulations on construction and determine that whether or not the inspected condominium is subject to demolition as prescribed in Clause 2, Article 59 of this Law. In the case where the condominiums are not subject to demolition, the

inspection findings must clearly state the period of continued use until the condominiums must be demolished.

4. Inspection findings must be publicly posted on the electronic web portals of the provincial-level housing management authorities.

Article 62. Forms of renovation or reconstruction of condominiums

1. Real estate enterprises shall invest in or contribute funds with condominium owners in the cases prescribed in Clause 2, Article 59 of this Law for demolition and reconstruction of condominiums, unless otherwise prescribed in Clauses 2 and 3 of this Article.

2. The provincial-level People's Councils shall decide to use the local budgets in accordance with law regulations on public investment to implement condominium renovation or reconstruction projects in their localities that are not prescribed in Clause 3 of this Article in the following cases:

- a) The entire condominiums are public property;
- b) The condominiums are subject to demolition as prescribed at Point b, Clause 2, Article 59 of this Law, except the entire single-owner condominiums that are not public property.
- 3. The renovation and reconstruction of condominiums being public property whose ownership are represented by the Central-level authorities shall comply with law regulations on public investment.

Article 63. Preferential mechanisms for implementation of condominium renovation or reconstruction projects

1. Owners of condominium renovation or reconstruction projects without funding sources prescribed in Clause 1, Article 62 of this Law are entitled to the following preferential mechanisms:

a) To be exempt from land use levies and land rentals for land areas subject to land use levies and land rentals within the scope of condominium renovation or reconstruction projects, including: land area of existing condominiums or individual houses (if any), land area for construction of business, service, commercial, public facilities, land area with technical infrastructure, transportation, social infrastructure facilities and other structures, including land area within the scope of the condominium renovation or reconstruction projects where public property is located.

The project owners may not carry out procedures to determine land prices, calculate land use levies, and exempt land rentals, nor carry out procedures to request exemption from land use levies and land rentals;

b) To trade the remaining houses after arranging areas for resettlement, service and business within the scope of the project. Owners of condominium renovation or reconstruction projects may not pay land use levies or land rentals when selling apartments in renovated or constructed condominiums on the land area of existing condominiums after resettlement arrangements have been completed.

For the business areas that are not entitled to exemption from land use levies or land rentals as prescribed at this Point and Point a of this Clause, the owners of

condominium renovation or reconstruction projects shall fulfill their financial obligations in accordance with the legal regulations on land;

c) To obtain loans in accordance with the law from the Land Development Fund and other extra-budget State-run financial funds; to receive advance funding for compensation, support, and resettlement when carrying out site clearance; to collect payments for purchase and lease-purchase of off-plan houses and service and business areas within the scope of the projects for implementation thereof;

d) To receive financial support from the local budgets to construct technical and social infrastructure facilities within the scope of the projects under decisions of the provincial-level People's Councils;

dd) To receive tax and credit incentives, and other incentives in accordance with the law.

2. Owners of condominium renovation or reconstruction projects prescribed in Clauses 2 and 3, Article 62 of this Law are entitled to incentives prescribed at Points a and dd, Clause 1 of this Article.

3. The Government shall detail Points a and b, Clause of this Article.

Section 2

CONDOMINIUM RENOVATION OR RECONSTRUCTION MASTER PLANS AND DETAILED PLANS

Article 64. Requirements for condominium renovation or reconstruction master plans

1. Competent State authorities shall be responsible for establishing, appraising, approving, and adjusting detailed master plans for condominium renovation or reconstruction projects and publicly announce such master plans in accordance with law regulations on urban master plans and construction.

2. The detailed master plans for condominium renovation or reconstruction projects shall outline the land use norms for the designated construction areas as well as the population size or land area eligible for conversion to the construction of service and commercial facilities, offices, or other social infrastructure facilities with the aim to ensure optimal socio-economic and environmental efficiency while fostering investors' engagement in the projects.

3. Based on the lists and locations of condominiums that must be demolished for reconstruction in accordance with this Law, the provincial-level People's Committees shall decide to plan for reconstruction of the entire condominium complex or gather a number of condominiums in the same commune or district or the neighboring district-level localities all together under one project to ensure socio-economic and environmental efficiency, which shall be associated with urban renovation and embellishment.

approved master plans cannot be reconstructed and gathered all together under one project as prescribed in this Clause, the provincial-level People's Committees shall allocate local budgets following the process and procedures prescribed in law regulations on State budget for the relocation, compensation, support and resettlement of the owners and users of such condominiums and organize auctions of the land areas where the condominiums subject to demolition are located for construction in accordance with approved master plans, unless otherwise prescribed by the Law on Land.

4. The preparation, appraisal, and approval of detailed master plans for condominium renovation or reconstruction projects can be done simultaneously with the inspection and evaluation of quality of the condominiums.

Article 65. Requirements for condominium renovation or reconstruction plans

1. The provincial-level People's Committees can prepare and approve condominium renovation and reconstruction plans in conjunction with the provincial-level housing development plans, or prepare and approve them separately as a basis for implementing condominium renovation or reconstruction projects.

2. Provincial-level housing management authorities shall construct on their own or hire consultancies in accordance with law regulations on bidding to develop condominium renovation or reconstruction plans and report them to the provincial-level People's Committees for approval.

3. Condominium renovation or reconstruction plans shall only be approved after findings on inspection and evaluation of the quality of condominiums are made by the provincial-level housing management authorities in accordance with this Law.

4. In the case where after the condominium renovation or reconstruction plans have been approved, more condominiums are subject to demolition or the provincial-level housing development programs have been adjusted with reference to the approved condominium renovation or reconstruction plans, the provincial-level People's Committees shall make adjustments to the plans.

5. Approved condominium renovation or reconstruction plans, including adjusted plans, must be publicly posted on the electronic web portals of the provincial-level People's Committees and district-level People's Committees of the localities where the condominiums subject to renovation or reconstruction are located; sent to the commune-level People's Committees of the localities where the condominiums subject to renovation or reconstruction are located for them to notify the condominium owners and users as well as sent to the Ministry of Construction.

Article 66. Details of condominium renovation or reconstruction plans

A condominium renovation or reconstruction plan shall contain the following main details:

1. The list and locations of condominiums and condominium complexes that need to be renovated and reconstructed, which must determine the demolition period for each type of condominium prescribed in Clause 2, Article 59 of this Law.

In case of renovation or reconstruction of a condominium complex, it is necessary to estimate the time required for relocating, demolishing, and reconstructing the initial condominium within the complex, followed by the remaining condominiums in the same condominium complex;

2. Estimated funds for renovation and reconstruction of condominiums and condominium complexes in the locality;

3. Responsibilities of authorities and People's Committees at all levels in implementing the condominium renovation or reconstruction plan.

Section 3

DECISION ON INVESTMENT POLICIES AND APPROVAL OF INVESTMENT POLICIES, OWNERS OF CONDOMINIUM RENOVATION AND RECONSTRUCTION PROJECTS

Article 67. Decision on and approval of investment policies

1. For condominiums prescribed in Clauses 2 and 3, Article 62 of this Law, the decision on investment policies and adjustment of investment policies shall comply with law regulations on public investment.

2. For condominiums not prescribed in Clause 1 of this Article, after the condominium owners have selected the investors to implement the projects at the condominium meetings, the selected investors shall be responsible for submitting dossiers and following the process and procedures for approval of investment policies and approval of themselves as project owners in accordance with Clauses 1 and 4, Article 69 of this Law without the need to comply with the Law on Investment, unless otherwise the approval of investment policies and investors falls under the competence of the Prime Minister in which Clause 3, Article 69 of this Law shall prevail.

3. For the cases prescribed in Clause 3, Article 68 of this Law, the provincial-level housing management authorities shall prepare dossiers and submit them to the provincial-level People's Committees for approval of the investment policies following the process and procedures prescribed in Clause 2 and Clause 5, Article 69 of this Law, unless otherwise the approval of investment policies falls under the competence of the Prime Minister in which Clause 3, Article 69 of this Law shall prevail.

4. For condominium renovation or reconstruction projects prescribed in Clauses 2 and 3 of this Article, if their investment policies must be adjusted in accordance with the Law on Investment, the authorities competent to approve investment policies shall be also competent to adjust such investment policies. The process and procedures for adjusting investment policies shall comply with Article 69 of this Law with respect to adjusted details.

Article 68. Owners of condominium renovation or reconstruction projects

1. Owners of condominium renovation or reconstruction projects prescribed in Clauses 2 and 3, Article 62 of this Law shall be decided in accordance with law regulations on public investment and construction.

2. For condominiums other than those prescribed in Clause 1 of this Article, the selection of owners for condominium renovation or reconstruction projects shall comply with Clause 2, Article 67 of this Law.

3. In the case where prescribed in Clause 2 of this Article, if an investor cannot be selected to implement the project within the time limit prescribed by the Government, the provincial-level housing management authority shall, after approving the investment policy as prescribed in Clause 3, Article 67 of this Law, organize bidding to select investors for condominium renovation or reconstruction projects in accordance with the following regulations:

a) In the case where there is only 01 interested investor in accordance with the law regulations on bidding, the competent authority shall carry out procedures to approve such investor as the owner of the condominium renovation or reconstruction project when such investor meets the conditions and criteria prescribed by the Government;

b) In the case where there are 02 or more interested investors, the owner of the condominium renovation or reconstruction project shall be selected through bidding in accordance with law regulations on bidding;

4. Owners of condominium renovation or reconstruction projects prescribed in Clauses 2 and 3 of this Article have the rights prescribed in Clauses 1, 2, 3, 5, 6, 7 and 8, Article 38 of this Law and are entitled to preferential mechanisms prescribed in Article 63 of this Law.

5. Owners of condominium renovation or reconstruction projects prescribed in Clauses 2 and 3 of this Article have the obligations prescribed in Clauses 1, 3, 5, 6, 8, 9, 10, 11 and 13, Article 39 of this Law and the following obligations:

a) To ensure financial capacity to implement the projects in accordance with the law;

b) To fully implement commitments in the contracts on sales of the projects' products; to ensure the quality of works in accordance with law regulations on construction; to hand over the houses along with documents related to the house transaction to the customers and carry out transactions of sale and purchase, lease-purchase and lease of houses in accordance with this Law, the law regulations on real estate business and other relevant law regulations;

c) To demolish condominiums in accordance with Article 75 of this Law.

d) To arrange temporary residences, compensation, support, and resettlement for owners and users of demolished condominiums under the approved compensation and resettlement plans in accordance with this Law.

6. The Government shall detail this Article.

Article 69. Dossiers, process and procedures for approval of owners of condominium renovation or reconstruction projects

1. A dossier of request for approval of the investment policy and approval of the investor as the owner of the condominium renovation or reconstruction project shall comprise of:

- a) A written request for approval of the project's investment policy;
- b) The proposed investment project, which shall contain the following main details: its investor, investment objectives, investment size, invested funds and fund raising plan, the location, duration, and implementation schedule, proposed land use demand, preliminary evaluation of environmental impacts in accordance with law regulations on environmental protection (if any), information about certificates of condominium owners, proposed investment incentives, and the written record of comments the selection of the investor;
- c) The compensation and resettlement plan that has been agreed upon by the condominium owners and the investor;
- d) A written agreement to transfer land use rights of the condominium owners to the investor in the cases prescribed in Clause 11, Article 60 of this Law;
- dd) Documents on the investor's legal status and documents proving the investor's financial capacity;
- e) Other relevant documents (if any)

2. A dossier of request for approval of the investment policy proposed by the provincial-level housing management authority shall comprise of:

- a) A submittal covering the request for approval of the project's investment policy;
- b) The proposed investment project, which shall contain the following main details: its investment objectives, investment size, invested funds, the location, duration, and implementation schedule; the status quo of land use at the project's location, proposed land use demand, preliminary evaluation of environmental impacts in accordance with law regulations on environmental protection (if any), the form of selection of the owner of the condominium renovation or reconstruction project; the preferential mechanisms and incentive policies;
- c) Other relevant documents (if any)

3. In the case where the approval of the investment policies and the approval of investors as owners of the condominium renovation or reconstruction projects fall under the competence of the Prime Minister in accordance with the Investment Law, the dossiers shall comply with Clauses 1 and 2 of this Article, and the process and procedures shall comply with the Law on Investment.

4. The approval of the investment policy and approval of the investor by the provincial-level People's Committees shall be conducted following the below process and procedures:

- a) The investor selected by condominium owners in accordance with Clause 2, Article 67 of this Law shall submit a dossier prescribed in Clause 1 of this Article to the provincial-level housing management authority;
- b) Within 03 working days from the date of receiving a complete dossier, the provincial-level housing management authority shall be responsible for sending it to relevant State authorities for their appraisal and comments on the project;

c) Within 15 days from the date of receiving the request for appraisal, the authorities whose appraisal and comments are required shall send their comments on the details under their ambit to the provincial-level housing management authority. Within 25 days from the date of receiving all documents prescribed in Clause 1 of this Article, the provincial-level housing management authority shall prepare an appraisal report and submit it to the provincial-level People's Committee;

d) Within 07 working days from the date of receiving all documents and the appraisal report, the provincial-level People's Committee shall consider approving the compensation and resettlement plan and approve the investment policy and at the same time approve the investor as the owner of the condominium renovation or reconstruction project. In case of disapproval, the provincial-level People's Committees shall issue a written notice clearly stating the reason.

5. An investment policy of a project prescribed in Clause 3, Article 67 of this Law shall be approved by the provincial-level People's Committee following the process and procedures below:

a) The provincial-level housing management authority shall be responsible for preparing the documents prescribed in Clause 2 of this Article and sending them to relevant State authorities for appraisal and comments;

b) Within 15 days from the date of receiving the request for appraisal, the authorities whose appraisal and comments are required shall send their comments on the details under their ambit to the provincial-level housing management authority. Within 25 days from the date of receiving all documents prescribed in Clause 2 of this Article, the provincial-level housing management authority shall prepare an appraisal report and submit it to the provincial-level People's Committee;

c) Within 07 working days from the date of receiving all documents and the appraisal report, the provincial-level People's Committee shall consider approving the investment policy. In case of disapproval, the provincial-level People's Committee shall issue a written notice clearly stating the reason.

6. The Government shall detail this Article.

Section 4

COMPENSATION AND RESETTLEMENT PLANS

Article 70. Principles for making compensation and resettlement plans

1. Preparation and approval of compensation and resettlement plans for implementation of condominium renovation or reconstruction projects shall only be done after the detailed master plans have been approved.

2. For projects prescribed in Clause 1, Article 68 of this Law, the compensation and resettlement plans shall comply with law regulations on public investment. For projects prescribed in Clause 3, Article 68 of this Law, the provincial-level People's Committees shall assign the responsible organizations to prepare and submit compensation and resettlement plans to the provincial-level People's Committees for

approval.

3. In the case where the selection of owners for condominium renovation or reconstruction projects is not prescribed in Clause 2 of this Article, the real estate enterprises registering as project owners of condominium renovation or reconstruction projects shall prepare compensation and resettlement plans for condominium owners to opt for.

4. Publicity, transparency, objectivity, and compliance with the approved compensation and resettlement plans must be guaranteed during the compensation, support, resettlement and arrangement of temporary residences. The area of the apartment for resettlement must not be smaller than the apartment area prescribed in the national technical regulations on condominiums. Expenses for compensation, support, resettlement and arrangement of temporary residences shall be included in the total investment in the projects.

5. Lessees of renovated and reconstructed condominiums being public property shall be allowed to rent the reconstructed condominiums unless they do not want to. In the case where ownership of condominiums involves a combination of public property ownership and other ownership forms, the representative of public property ownership may agree on compensation, either in the monetary form or through housing arrangements, with the owner of the condominium renovation or reconstruction project.

6. The arrangement of houses for resettlement be conducted under contracts for purchase and sale, lease-purchase, and lease of houses for resettlement in accordance with this Law.

7. The form of compensation for condominium owners shall be clearly stated in the compensation and resettlement plans in accordance with the following regulations:

a) For condominiums prescribed in Clause 10, Article 2 of this Law, the condominium owners can opt for compensation with houses for resettlement or monetary compensation equal to the value of houses for resettlement in the case they do not want to receive houses for resettlement;

b) For condominiums not specified in Clause 10, Article 2 of this Law, if condominium owners refrain from contributing funds for the renovation or reconstruction of such condominiums, they are entitled to compensation equivalent to the value of the land use rights within the corresponding land area, which shall be commensurate to the proportion of land use rights determined in accordance with law regulations on land applicable at the time of the preparation of compensation and resettlement plans, and must transfer their land use rights to the owners of the condominium renovation and reconstruction projects. In the case where condominiums are specified at Point dd, Clause 2, Article 59 of this Law, owners are entitled to compensation covering the value of their land use rights and the remaining value of their apartments in accordance with the regulations of the Government.

8. For areas other than apartments within condominium complexes that must be renovated or reconstructed, their owners shall be compensated, supported, resettled, and provided with temporary residences in accordance with the regulations of the Government.

Article 71. Details and authority to approve compensation and resettlement plans

1. A compensation and resettlement plan shall contain the following main details:
 - a) Name of the owner of the condominium renovation or reconstruction project if such project owner has been selected;
 - b) Names and addresses of condominium owners and users;
 - c) Location and area of the condominium to be renovated or reconstructed; location and areas of houses to be arranged for resettlement;
 - d) Forms of arrangement of houses for resettlement, including arrangement of houses for resettlement on the spot or at another location, or purchase or rent-purchase of local social houses, or provision of funds in accordance with this law;
 - dd) Coefficient K of apartment area, for condominiums prescribed in Clause 10, Article 2 of this Law; land prices used to calculate compensations (if any); house rent rates applicable after the condominium is reconstructed (if any);
 - e) The value of the apartment determined using the coefficient K prescribed at Point dd of this Clause; funds contributed to construct the apartment following the project's schedule or as a lump sum after the apartment is handed over, for condominiums other than those prescribed in Clause 10, Article 2 of this Law; the value of houses for resettlement in case of resettlement in another location;
 - g) The agreement to transfer land use rights for implementation of condominium renovation or reconstruction projects in the cases prescribed in Clause 11, Article 60 of this Law;
 - h) Plan for handling of the remaining apartments after resettlement has been arranged;
 - i) The difference (if any), which must be paid by the owner of the condominium renovation or reconstruction project or the condominium owners, between the value of the houses for resettlement and that of the houses that the condominium owners may receive under the compensation and resettlement plan;
 - k) Duration of the project; Deadline for compensation, support, resettlement and arrangement of temporary residences; Deadline for handing over houses for resettlement in the form prescribed at Point d of this Clause;
 - l) Funds for support of relocation and rent of temporary residences, and other relevant funds (if any);
 - m) Funds for maintenance of reconstructed condominium, which shall comply with this Law;
 - n) Compensation and resettlement for areas other than apartments (if any).
2. The provincial-level People's Committees shall approve compensation and resettlement plans within their ambit, inspect and urge owners of condominium renovation or reconstruction projects to properly implement the approved compensation and resettlement plans.

Article 72. Arrangement of houses for resettlement and temporary residences

1. Houses for resettlement of condominium owners shall be arranged in accordance with the following regulations:

a) In the case where the condominium is reconstructed under the approved master plan, the condominium owners shall be resettled on the spot in accordance with the approved compensation and resettlement plan.

For condominiums prescribed in Clause 10, Article 2 of this Law, condominium owners shall receive compensations calculated by the coefficient K prescribed at Point dd, Clause 1, Article 71 of this Law.

For condominiums other than those prescribed in Clause 10, Article 2 of this Law, condominium owners must contribute funds to reconstruct their condominiums, unless otherwise the condominiums are prescribed in Clauses 2 and 3, Article 62 of this Law. Under agreements, funds to reconstruct the condominiums shall be paid following the project schedules or as a lump sum after the apartments are handed over and shall be determined in the compensation and resettlement plans;

b) In the case where the condominium is not reconstructed under the approved master plan, the condominium owners shall receive houses for resettlement in accordance with Clause 4, Article 60 of this Law.

2. For lessees, the resettlement shall be arranged under agreements in the house lease contracts. If the condominiums on lease are public property, lessees may rent them again after they are renovated and reconstructed, unless otherwise agreed upon by the lessees and the ownership representatives of such public property.

3. Temporary residences shall only be arranged for condominium owners who need houses for resettlement.

4. Temporary residences must satisfy the requirements and conditions in terms of infrastructure to serve the daily needs of the owners. In the case where the condominiums currently on lease are public property, the provincial-level People's Committees of the localities where the condominium renovation or reconstruction projects are located shall be responsible for arranging temporary residences or providing funds for the lessees to find residences on their own during the implementation of the projects.

In the case prescribed at Point b, Clause 2, Article 59 of this Law, the provincial-level People's Committees shall be responsible for arranging temporary residences during the implementation period of the projects.

In the cases prescribed at Points a and c, Clause 2, Article 59 of this Law, the provincial-level People's Committees shall be responsible for arranging temporary residences until the owners of the condominium renovation or reconstruction projects are selected. After the project owners are selected, such project owners shall be responsible for arranging temporary residences during the implementation period of the projects.

In the cases prescribed at Points d and dd, Clause 2, Article 59 of this Law, owners

of condominium renovation or reconstruction projects shall be responsible for arranging temporary residences during the implementation period of the projects.

5. In addition to the resettlement prescribed in Clause 1 or Clause 2 of this Article, depending on local conditions, the provincial-level People's Committees decides to provide financial support to resettled people from the local budgets following the process and procedures prescribed in law regulations on State budget.

6. The Government shall detail the preparation and approval of condominium renovation and reconstruction plans and the investment in such projects; the relocation and coercive relocation of condominium owners and users; the compensation, support, resettlement, and arrangement of temporary residences; the contribution of funds by condominium owners to invest in reconstruction of their condominiums.

Section 5

RELOCATION, COERCIVE RELOCATION AND DEMOLITION OF CONDOMINIUMS

Article 73. Relocation of condominium owners and users

1. For condominiums subject to demolition as prescribed at Points a and b, Clause 2, Article 59 of this Law, the provincial-level People's Committees must issue decisions on urgent relocation and relocate the condominium owners and users, who are subject to relocation, to temporary residences.

2. For condominiums subject to demolition as prescribed at Points c, d and dd, Clause 2, Article 59 of this Law, the provincial-level People's Committees shall issue relocation decisions in accordance with the approved compensation and resettlement plans.

3. A relocation decision shall contain the following main details:

- a) Names and addresses of condominium owners and users subject to relocation;
- b) Deadline for relocation;
- c) Location of temporary residences;
- d) Relocation methods.

dd) Funding for relocation, including funds for moving people and assets; funds for supporting rent of temporary residences and other relevant funds (if any);

e) Responsibilities of relevant authorities, organizations and individuals in enforcing the relocation decision.

4. The provincial-level People's Committees must send the relocation decisions to the condominium owners and users subject to relocation and publicly post such decisions on the electronic web portals of the provincial-level People's Committees, district-level People's Committees, provincial-level housing management authorities of the localities where the condominiums are located, and on local mass media.

5. Condominium owners and users and relevant organizations and individuals

shall be responsible for the relocation under the decisions of the provincial-level People's Committees.

6. Funding for relocation shall be applied as follows:

a) For the cases prescribed in Clause 1 of this Article, it shall be covered by the local budgets;

b) For the cases prescribed in Clause 2 of this Article, it shall be determined in the total project investments and paid by the owners of the condominium renovation or reconstruction projects. The owners of condominium renovation or reconstruction projects shall be responsible for refunding relocation funds to State authorities in cases where the State authorities have relocated people from the demolished condominiums before selecting such owners for condominium renovation or reconstruction projects.

Depending on local conditions, the provincial-level People's Committees shall decide to subsidize the relocation with funds from the local budgets following the process and procedures prescribed in the law regulations on State budget.

Article 74. Coercive relocation of condominium owners and users

1. Past the relocation deadlines under relocation decisions of provincial-level People's Committees, if the condominium owners or user fail to relocate, the provincial-level People's Committees will issue decisions on coercive relocation.

2. A decision on coercive relocation shall contain the following main details:

a) Names and addresses of condominium owners and users subject to coercive relocation;

b) Time of coercive relocation;

c) Location of temporary residences;

d) Coercive relocation methods.

dd) Funding for coercive relocation;

e) Responsibilities of relevant authorities, organizations and individuals in enforcing coercive relocation.

3. The district-level People's Committees of the localities where the condominiums are located shall be responsible for enforcing coercive relocation under the coercive relocation decisions of the provincial-level People's Committees.

4. Funding for coercive relocation shall be applied as follows:

a) For the cases prescribed in Clause 1, Article 73 of this Law, it shall be covered by the local budgets;

b) For the cases prescribed in Clause 2, Article 73 of this Law, it shall be determined in the total project investments and paid by the owners of the condominium renovation or reconstruction projects. The owners of condominium renovation or reconstruction projects shall be responsible for refunding coercive relocation funds to State authorities in cases where the State authorities have coercively relocated people from the demolished condominiums before selecting such owners for condominium renovation or reconstruction projects.

Depending on local conditions, the provincial-level People's Committees shall decide to subsidize the coercive relocation with funds from the local budgets following the process and procedures prescribed in the law regulations on State budget.

Article 75. Demolition of condominiums

1. After completing the relocation, condominium owners and users as well as project owners of condominium renovation or reconstruction projects shall be responsible for organizing the demolition of condominiums in accordance with the following regulations:

a) Project owners of condominium renovation or reconstruction projects may conduct the demolition on their own if they are capable of doing so in accordance with law regulations on construction or hire other organizations with construction capacity to conduct the demolition;

b) Before conducting the demolition, the owners of the condominium renovation or reconstruction projects shall prepare demolition plans and send them to the provincial-level housing management authorities for appraisal and approval. Within 30 days from the date of receiving the demolition plans at the request of the owners of the condominium renovation or reconstruction projects, the management authority provincial-level housing authorities shall be responsible for organizing the appraisal and approval of such demolition plans in accordance with law regulations on construction;

c) The owners of condominium renovation or reconstruction projects shall organize the demolition under the demolition plans approved by the provincial-level housing management authorities.

2. In the case where a condominium must be urgently demolished to ensure the safety of adjacent structures, the provincial-level housing management authority shall be responsible for preparing a demolition plan and reporting it to the provincial-level People's Committee for decision and then organizing the demolition.

3. The funds for demolition of condominiums shall be determined in the total project investment. Owners of condominium renovation or reconstruction projects shall be responsible for refunding the funds for urgent demolition prescribed in Clause 2 of this Article to the State authorities that have conducted the urgent demolition of condominiums.

4. The process and procedures for demolition of condominiums must comply with law regulations on construction.

Chapter VI

POLICIES ON SOCIAL HOUSES

Section 1

GENERAL PROVISIONS

Article 76. Beneficiaries entitled to social housing support policies

1. People with meritorious services to the revolution and relatives of martyrs eligible for housing improvement support in accordance with the Ordinance on preferential treatment of people with meritorious services to the revolution.

2. Poor households and households living just above the poverty line in rural areas;

3. Poor households and households living just above the poverty line in rural areas frequently hit by natural disasters or affected by climate change;

4. Poor households and households living just above the poverty line in urban areas;

5. Low-income earners in urban areas;

6. Workers and employees currently employed by enterprises, cooperatives, and unions of cooperatives inside and outside industrial parks.

7. Commissioned officers, warrant officers, non-commissioned officers of the people's armed forces, employees of the Public Security Forces, civil servants, on-duty workers and public employees in the field of national defense; people in charge of cipher work and other people whose salaries are paid by the State budget currently working in cipher organizations.

8. Cadres, civil servants and public employees as defined by law regulations on cadres, civil servants and public employees.

9. Beneficiaries who returned official-duty houses in accordance with Clause 4, Article 125 of this Law, unless otherwise the official-duty houses are recovered due to violation of this Law.

10. Households and individuals that are subject to land recovery or house clearance or demolition as prescribed by law and have not yet received any compensations in houses or residential land from by the State.

11. Students and undergraduates of universities, academies, senior colleges, junior colleges, vocational schools, and special schools in accordance with the law; students at public boarding schools for ethnic minorities.

12. Enterprises, cooperatives, unions of cooperatives in industrial parks.

Article 77. Forms of implementation of social housing support policies

1. Support in the form of sale, lease-purchase or lease of social houses to the beneficiaries prescribed in Clauses 1, 4, 5, 6, 8, 9 and 10, Article 76 of this Law. Beneficiaries prescribed in Clause 7, Article 76 of this Law may not be entitled to housing support policies for the people's armed forces.

Depending on local conditions, the provincial-level People's Committees can regulate the sale, lease-purchase, and lease of social houses to the beneficiaries prescribed in Clauses 2 and 3, Article 76 of this Law.

2. Support provided under the national target programs or public housing investment programs for the beneficiaries prescribed in Clauses 1, 2 and 3, Article 76

of this Law to construct new houses or repair or renovate ready-built ones.

3. Donation of houses to beneficiaries prescribed in Clauses 1, 2 and 3, Article 76 of this Law. The exemption or reduction of land use levies of land used for building houses prescribed in this Clause shall comply with the law regulations on land.

4. Support in the form of sale, lease-purchase, and lease of houses for the people's armed forces to the beneficiaries prescribed in Clause 7, Article 76 of this Law who are not yet entitled to the policies prescribed in Clause 1 of this Article.

5. Preferential loan support from the State through the Vietnam Bank for Social Policies and credit institutions designated by the State for the beneficiaries prescribed in Clauses 1, 2, 3, 4, 5, 6, 7 and 8 Article 76 of this Law to purchase or rent-purchase social houses or construct houses on their own or renovate or repair their houses. Beneficiaries prescribed in Clause 7, Article 76 of this Law are entitled to preferential loans to purchase and rent-purchase houses for the people's armed forces.

The Government shall detail this Clause.

6. Beneficiaries prescribed in Clause 11, Article 76 of this Law may rent social houses during their studying periods.

7. Beneficiaries prescribed in Clause 12, Article 76 of this Law may rent worker accommodations in industrial parks and sublet them to the workers of such enterprises, cooperatives, or unions of cooperatives in such industrial parks in accordance with Section 3 of this Chapter.

8. Workers currently employed by enterprises, cooperatives, and unions of cooperatives in industrial parks shall rent worker accommodations in such industrial parks in accordance with Section 3 of this Chapter.

Article 78. Conditions for enjoying social housing support policies

1. Beneficiaries prescribed in Clauses 1, 4, 5, 6, 7, 8, 9 and 10, Article 76 of this Law purchasing or rent-purchasing social houses must fully meet the following conditions:

a) Housing conditions: Beneficiaries prescribed in Clauses 1, 4, 5, 6, 7, 8, 9 and 10, Article 76 of this Law, in order to purchase or rent-purchase social houses, must own no houses in the provinces or municipalities where such social housing investment projects are located, or have neither purchased or lease-purchased social houses, nor enjoyed the housing support policies in any form in the provinces or municipalities where such social housing investment projects are located, or they may own houses in the provinces or municipalities where such social housing investment projects are located but the average floor area per person of such houses is lower than the regulatory minimum floor area. Beneficiaries prescribed at Points b, c, d, dd, e and g, Clause 1, Article 45 of this Law must not be currently staying in official-duty houses. The Government shall detail this Point;

b) Income conditions: beneficiaries prescribed in Clauses 5, 6, 7 and 8, Article 76 of this Law, in order to purchase or rent-purchase social houses, must meet the income conditions as prescribed by the Government. Beneficiaries prescribed in Clause 4, Article 76 of this Law must be poor households and households living just above the

poverty line in urban areas in accordance with the regulations of the Government.

2. Beneficiaries prescribed in Clauses 1, 4, 5, 6, 7, 8, 9, 10 and 11, Article 76 of this Law, if renting social houses, may not satisfy the housing and income conditions prescribed in Clause 1 of this Article.

3. Conditions for beneficiaries to be entitled to preferential loan support from the State through the Vietnam Bank for Social Policies and credit institutions designated by the State are prescribed as follows:

a) Beneficiaries prescribed in Clauses 1, 2, 3, 4, 5, 6, 7 and 8, Article 76 of this Law, in order to obtain loans for purchase or lease-purchase of social houses, shall sign social house purchase or lease contracts and meet the loan conditions prescribed in law regulations on credit institutions;

b) Beneficiaries prescribed in Clause 7, Article 76 of this Law, in order to obtain loans for purchase or lease-purchase of houses for the people's armed forces, shall sign contracts on purchase or lease of houses for the people's armed forces and meet the loan conditions prescribed in law regulations on credit.

4. Beneficiaries prescribed in Clauses 1, 2 and 3, Article 76 of this Law, in order to receive support prescribed in Clause 2, Article 77 of this Law, must meet the conditions prescribed in the decisions approving the national target programs or the respective housing public investment programs of competent State authorities.

5. In order for the beneficiaries prescribed in Clause 6, Article 76 of this Law to rent worker accommodations in industrial parks, they must meet the conditions prescribed in Clause 2, Article 93 of this Law.

6. Beneficiaries prescribed in Clause 7, Article 76 of this Law, in order to purchase or rent-purchase houses for the people's armed forces, must meet the conditions prescribed at Point a, Clause 1 of this Article and the income conditions prescribed in the Government's regulations. In case of renting houses for the people's armed forces, they may not meet the housing and income conditions.

7. Beneficiaries prescribed in Clause 12, Article 76 of this Law, in order to rent worker accommodations in industrial parks and sublet them to individuals who are workers of such enterprises, cooperatives, or unions of cooperatives, must meet the conditions prescribed in Clause 1, Article 93 of this Law.

8. In the case where the beneficiaries prescribed in Clause 2 and Clause 3, Article 76 of this Law are entitled to purchase or rent-purchase of social houses in accordance with Clause 1, Article 77 of this Law, they shall meet the housing conditions prescribed at Point a, Clause 1 of this Article, have not yet benefited from the housing support policies prescribed in Clause 3, Article 77 of this Law, and are in poor households and households living just above the poverty line as prescribed in the regulations of the Government.

In case of renting social houses, they may not meet the housing and income conditions prescribed in this Clause.

9. The Minister of Construction shall issue sample documents proving the beneficiaries prescribed in Clauses 1, 2, 3, 4, 5, 6, 8, 9, 10 and 11, Article 76 of this

Law; and sample documents proving their eligibility for social housing support policies.

The Minister of National Defense and the Minister of Public Security shall issue sample documents proving that the beneficiaries prescribed in Clause 7, Article 76 of this Law are eligible for social housing support policies under management.

Article 79. Principles of implementation of social housing support policies

1. The implementation of social housing support policies must adhere to the following principles:

a) The State shall make housing development policies and facilitate everyone to have residences;

b) Coordination among the State, enterprises, population communities, family clans and beneficiaries entitled to support in the implementation of policies;

c) Publicity, transparency, and strict inspection and supervision by competent State authorities, population communities and the Vietnam Fatherland Front;

d) Provision of support to eligible beneficiaries that fully meet the conditions prescribed in this Law;

dd) In the case where one beneficiary is entitled to different support policies, the policy with the highest support level will prevail. In the case where multiple beneficiaries satisfy the same standards and conditions, support will be provided in order of priority to people with meritorious services to the revolution, relatives of martyrs, people with disabilities, resettled people who are entitled to purchase and rent-purchase social houses, women;

e) In the case where a household has members entitled to different support policies, the whole household is entitled to only one support policy.

2. Provincial-level People's Committees shall organize, examine and inspect the implementation of social housing support policies in their localities.

3. Section 2 of this Chapter do not apply to the development of worker accommodations in industrial parks, the development of houses for the people's armed forces, or the construction, renovation, and repair of houses by individuals on their own, unless otherwise Sections 3, 4 and 5 of this Chapter make references whereby regulations in Section 2 of this Chapter is applicable.

Section 2

DEVELOPMENT OF SOCIAL HOUSES FOR SALE, LEASE-PURCHASE, OR LEASE

Article 80. Forms of development of social houses

1. The State invests in building social houses with public investments for lease and lease-purchase.

2. The State invests in building social houses with funding sources prescribed at Point b, Clause 1, Article 113 of this Law for sale, lease-purchase, and lease.

3. Enterprises, cooperatives, and unions of cooperatives invest in building social houses for sale, lease-purchase, or lease to beneficiaries prescribed in Clause 1, Article 77 of this Law.

4. The Vietnam General Confederation of Labor is the governing body of the social housing investment projects with trade union's financial resources for workers and employees eligible for social house rental policies.

5. Foreign-invested economic entities involved in social housing development by contributing funds or investing in the construction of social houses or cooperating in business with domestic enterprises, cooperatives, unions of cooperatives to jointly implement investment projects to build social houses for sale, lease-purchase, or lease in accordance with this Law, the law regulations on land and real estate, and other relevant law regulations.

6. Individuals build social house for lease to beneficiaries prescribed in Clause 1, Article 77 of this Law.

Article 81. Types of project and requirements on social housing investment projects

1. Social housing investment projects include projects prescribed at Points a, b, c, dd and e, Clause 1, Article 30 of this Law.

2. Social housing investment projects as prescribed in Clause 1 of this Article must be built on land for social housing development prescribed in Clause 6, Article 83 of this Law and meet the requirements prescribed in Article 33 of this Law. Social houses shall be handed over in accordance with Clauses 3 and 4, Article 37 of this Law.

3. Owners of social housing investment projects must build houses for sale, lease-purchase, or lease, and are not allowed to transfer land use rights for individuals to build their own houses.

Article 82. Types and area standards of social houses

1. Types and area standards of social houses are prescribed as follows:

a) Social houses are project-based condominiums constructed in conformity with approved construction detailed plans. Within social housing investment projects in ethnic minority-inhabited and mountainous communes as prescribed by the Prime Minister, social houses can be individual houses;

b) In the case where the social houses are condominiums, they shall be designed and constructed in accordance with national technical regulations on condominiums and area standards of social houses.

c) In the case where the social houses are individual houses, they shall be designed and constructed in accordance with law regulations on construction and area standards of social houses.

d) In the case where an individual builds social houses in accordance with Clause 6, Article 80 of this Law, he/she may build a multi-story house with many apartments or individual houses in accordance with this Law.

2. The Government shall detail this Article.

Article 83. Land for development of social houses

1. Provincial-level People's Committees must allocate enough land areas for social housing development in accordance with approved provincial-level housing development programs and plans, including: land areas for development of detached social houses; land areas for construction of social houses within the scope of commercial housing investment projects as prescribed in Clauses 2 and 3 of this Article.

In rural areas, the provincial-level People's Committees shall, depending on local conditions, allocate land areas for social housing development.

2. In special-grade, grade-1, grade-2 and grade-3 urban centers, pursuant to the Government's regulations, the provincial-level People's Committees shall decide that owners of commercial housing projects shall reserve part of residential land areas in their projects in which a technical infrastructure system has been built for construction of social houses or allocate social housing land areas in which a technical infrastructure system has been built outside the scope of the commercial housing investment projects in such urban areas or pay amounts equivalent to the value of the land areas in which a technical infrastructure system has been built for construction of social houses.

3. For urban centers other than those prescribed in Clause 2 of this Article, the provincial-level People's Committees shall, depending on local conditions, stipulate criteria for commercial housing investment projects whose owners shall reserve part of residential land areas in their projects in which a technical infrastructure system has been built for construction of social houses or allocate social housing land areas in which a technical infrastructure system has been built outside the scope of the commercial housing investment projects in such urban areas or pay amounts equivalent to the value of the land areas in which a technical infrastructure system has been built for construction of social houses.

4. The land areas reserved for social housing development prescribed in Clause 1 of this Article must be allocated in a demand-based manner as identified in the approved provincial-level housing development programs and plans, and must ensure connection with the technical and social infrastructure system of the localities where the projects are located and in accordance with the living and working needs of beneficiaries of social housing policies prescribed in this Law.

Provincial-level People's Committees are responsible for investing in the construction of technical infrastructure systems in addition to social housing investment projects.

5. Depending on the social housing demand identified in the provincial-level housing development programs and plans, during the process of preparing local budget estimates, the provincial-level People's Committees shall report the People's Councils at the same level on the allocation of budget to invest in social housing investment projects in the respective localities, pay compensations, provide support, implement the resettlement plans, invest in technical infrastructure outside the social housing investment projects, connect the technical infrastructure systems of social housing investment projects to the technical infrastructure system outside such projects, and ensure well-coordinated social infrastructure inside and outside the scope of projects.

6. Land for development of social housing projects includes:

- a) Land allocated by the State for construction of houses for sale, lease-purchase or lease;
- b) Land leased by the State for construction of houses for lease;
- c) Residential land area reserved for the construction of social houses prescribed in Clauses 2 and 3 of this Article;
- d) Land owned by enterprises, cooperatives, and unions of cooperatives implementing social housing investment projects in accordance with Point c, Clause 4, Article 84 of this Law.

7. Individuals may use land use rights as prescribed in Clause 3, Article 54 of this Law to build social houses.

8. The Government shall detail Clause 2 of this Clause.

Article 84. Owners of social housing investment projects

1. Owners of social housing investment projects invested with funding sources prescribed in Clause 1, Article 113 of this Law shall be determined in accordance with law regulations on public investment and construction

Owners of social housing investment projects under the investment decision authority of the Chairpersons of the provincial-level -level People's Committees shall be recommended by the provincial-level housing management authorities in accordance with the law regulations on public investment and construction.

2. Owners of social housing investment projects invested with trade union's financial resources shall be determined in accordance with law regulations on public investment and construction applicable to public investment projects.

3. In the case where commercial housing investment projects have land areas earmarked for the construction of social houses in accordance with Clauses 2 and 3, Article 83 of this Law, owners of such commercial housing investment projects shall directly invest in the construction of social houses, unless the State allocates these land areas to other organizations for construction of social houses.

4. Owners of social housing investment projects not invested with the funding sources prescribed in Clauses 1 and 2 of this Article who are not owners of commercial housing investment projects directly investing in the construction of social houses shall be selected as follows:

a) In the case where there is only 01 interested investor in accordance with the law regulations on bidding, the competent authority shall carry out procedures to approve such investor as the owner of the social housing investment project when such investor meets the conditions and criteria prescribed by the Government;

b) In the case where there are 02 or more interested investors, the owner of the social housing investment project shall be selected through bidding in accordance with law regulations on bidding;

c) The investors have their investment policies approved and themselves also approved as owners of the social housing investment projects when they obtain land use

rights through agreements on receiving use rights of the type of land eligible for social housing investment projects or they are currently reserving land use rights for the type of land eligible for social housing investment projects in accordance with the Law on Land.

5. Owners of social housing investment projects prescribed in Clauses 3 and 4 of this Article have the rights prescribed in Clauses 1, 2, 3, 5, 6, 7 and 8, Article 38, Clause 2, Article 85 and Clause 2, Article 88 of this Law.

6. Owners of social housing investment projects prescribed in Clauses 3 and 4 of this Article have the obligations prescribed in Clauses 1, 3, 5, 6, 8, 9, 10, 11 and 13, Article 39, Clause 3, Article 81, Clause 4, Article 87 of this Law and the following obligations:

a) To make deposits or obtain bank guarantees on deposit obligations to implement the projects in accordance with the law regulations on investment; to ensure financial capacity to implement the projects in accordance with the law;

b) To fully implement commitments in the contracts on sales of the projects' products; to ensure the quality of works in accordance with law regulations on construction; to hand over the houses along with documents related to the house transaction to the customers and carry out transactions of sale and purchase, lease-purchase and lease of houses in accordance with this Law, the law regulations on real estate business and other relevant law regulations.

7. The Government shall detail this Article.

Article 85. Incentives for owners of social housing investment projects for sale, lease-purchase, or lease

1. Owners of social housing investment projects invested with public investments are entitled to the incentives prescribed at Points a and b, Clause 2 of this Article. Owners of social housing investment projects invested with trade union's financial resources are entitled to the incentives prescribed at Points a, b, e, g and h, Clause 2 of this Article.

2. Owners of social housing investment projects without funding sources prescribed in Clause 1 of this Article are entitled to the following incentives:

a) Be exempt from land use levies and land rentals for the entire land area of the projects. The owners may not carry out procedures to determine land prices, calculate land use levies, and exempted land rentals, and may not carry out procedures to request exemption from land use levies and land rentals, unless otherwise prescribed at Point d of this Clause;

b) Receive incentives for value-added taxes and corporate income taxes in accordance with law regulations on taxation;

c) Enjoy a maximum profit of 10% of the total investment for the social housing construction area;

d) Reserve maximum 20% of the total residential land areas in their projects in which a technical infrastructure system has been built for construction of service and business words and commercial houses. Owners of social housing investment projects

may conduct separate accounting for and may not include investments in construction of service and business works or commercial houses in the cost of social houses as well as may enjoy all profits gained from such service and business works or commercial houses. In the case of investing in commercial housing, the owners must pay land use levies for the area used for construction of commercial houses in accordance with law regulations on land.

In the case where in the detailed plans of social housing investment projects approved by competent State authority, land areas within the projects are not earmarked for construction of service and business works or commercial houses, the project owners may reserve maximum 20% of the total residential floor area of the projects for such construction. Owners of social housing investment projects may conduct separate accounting for and may not include investments in construction of such service and business works or commercial houses in the cost of social houses as well as may enjoy all profits gained from such service and business works or commercial houses;

dd) Receive loans at preferential interest rates. In the case of building social houses for lease, owners can get loans with lower interest rates and longer loan periods than that for those building social houses for sale or lease-purchase in accordance with the Prime Minister's regulations from time to time;

e) Get support from the provincial-level People's Committees to connect their projects' technical infrastructure systems with the local technical infrastructure systems, thereby ensuring well-coordinated social infrastructure inside and outside the scope of projects;

g) The provincial-level People's Councils shall, depending on local conditions, promulgate mechanisms to support the implementation of social housing investment projects in localities under their authority in accordance with relevant law regulations;

h) Other incentives prescribed by the law (if any).

3. In the case where owners of commercial housing investment projects directly invest in building social houses within the scope of such commercial housing investment projects, they will enjoy the incentives prescribed in Clause 2 of this Article applicable to the land areas prescribed in Clause 2 and Clause 3, Article 83 of this Law in which such owners directly invest.

4. Individuals are entitled to preferential loans prescribed Clause 2 of this Article to build or renovate and repair houses themselves so that they can enjoy support policies on social houses for lease.

5. The Government shall detail Points c, d and dd, Clause 2 and Clause 3 of this Article.

Article 86. Determination of rental rates and rent-purchase prices of social houses invested with public investments or trade union's financial resources

1. In the case where of lease of social houses, lease prices must include all expenses for house maintenance and all housing construction capital recoveries within at least 20 years from the signing date of lease contracts;

2. In the case where of lease-purchase of social houses, lease-purchase prices

must include all housing construction capital recoveries within at least 5 years from the signing date of lease-purchase contracts. The maintenance expenses payable by the lessee-purchasers shall be excluded.

3. Rental rates or lease-purchase prices of social houses shall not include incentives prescribed in Clause 1, Article 85 of this Law.

4. Competent authorities defined in Article 14 of this Law shall set rental rates or lease-purchase prices of social houses.

5. The Vietnam General Confederation of Labor decides the rental rates of social houses invested and built with trade union's financial resources.

Article 87. Determination of selling prices, rent-purchase prices, and rental rates of social houses invested not with public investments or trade union's financial resources

1. The selling prices of social houses shall be determined as follows:

a) All housing construction capital recoveries shall be included, including: investments in building social houses, compensations, support and resettlement costs, investments in construction of technical and social infrastructure by the owners of social housing investment projects (if any) within the scope of projects, unless the houses are built for business purposes or must be handed over to the State for management in accordance with the approved projects; loan interests (if any); reasonable and valid corporate expenses, including sales expenses, corporate management expenses, and payments with sufficient invoices and supporting documents directly related to the investment projects in accordance with law regulations; profits prescribed at Point c, Clause 2, Article 85 of this Law;

b) The incentives prescribed at Points a, b, dd, g and h, Clause 2, Article 85 of this Law and maintenance expenses payable by the purchasers prescribed in Article 152 of this Law shall not be included.

2. The rent-purchase prices of social houses shall be determined in accordance with Clause 1 of this Article.

3. The rental rates of social houses, including house maintenance expenses, shall be agreed upon by the owners of social housing investment projects with the lessees in accordance with the price frames prescribed by the provincial-level People's Committees.

4. Owners of social housing investment projects shall devise options of selling prices and lease-purchase prices of social houses on the principles prescribed in Clause 1 of this Article and submit them to the in-charge authorities of the provincial-level People's Committees for appraisal thereof at the time the houses are eligible to be sold or lease-purchased in accordance with law regulations on housing.

5. For social houses built by individuals, the rental rates must be consistent with the price frames prescribed by the provincial-level People's Committees.

6. The Government shall detail this Article.

Article 88. Principles of sale, lease-purchase and lease of social houses

1. Sale, lease-purchase, or lease of social houses shall comply with this Law.
2. Owners of social housing investment projects may opt for the form of sale or lease-purchase of off-plan houses or sale, lease-purchase, or lease of ready-built houses. Owners of social housing investment projects when selling or leasing houses shall not fulfill the obligation to guarantee off-plan houses nor to go through real estate exchanges.
3. The sale or lease-purchase of future social houses must meet the following conditions:
 - a) Dossiers of housing investment projects and technical designs of the houses have been approved and construction licenses have been granted, for projects requiring construction licenses;
 - b) House foundations have been completely constructed in accordance with the law regulations on construction and the road, water supply and drainage, daily-life and public lighting electricity supply systems in housing areas put up for sale or lease-purchase have been completely constructed under approved construction detailed plans, design dossiers and implementation schedules of the projects; mortgage has been released, in case the owner put the houses in mortgage, unless otherwise purchasers or lessees-purchasers and mortgagees agree that the mortgage shall not be released.
 - c) A written notice has been issued by the provincial-level house management authority that the houses fully meet the conditions for sale or lease-purchase, except social houses constructed with public investments.
4. The sale, lease-purchase, or lease of available social houses by owners of social housing investment projects must comply with the following conditions:
 - a) In housing areas for sale, lease-purchase or lease, the construction of technical infrastructure systems and social works has been completed under approved construction detailed plans, design dossiers and implementation schedules of the projects. If the owner of the social housing investment project has put the houses in mortgage, such mortgage shall be released before the sale or lease-purchase of such houses, unless otherwise purchasers or lessee-purchasers and the mortgagee agree that the mortgage shall not be released;
 - b) A written notice has been issued by the provincial-level house management authority that the houses fully meet the conditions for sale, lease-purchase or lease, except social houses constructed with public investments;
 - c) The houses fully meet the conditions prescribed at Points b and c, Clause 1, Article 160 of this Law.
5. Social houses built by individuals for lease must only comply with Article 56 of this Law.
6. Each beneficiary prescribed in Clauses 1, 2, 3, 4, 5, 6, 8, 9 and 10, Article 76 of this Law may be allowed to purchase or rent-purchase 01 social house. Beneficiaries prescribed in Clause 7, Article 76 of this Law may be allowed to purchase or rent-purchase only 01 social house or 01 house for the people's armed forces.
7. Each beneficiary prescribed in Clauses 1, 2, 3, 4, 5, 6, 8, 9, 10 and 11, Article

76 of this Law may be allowed to rent 01 social house at a time. Beneficiaries prescribed in Clause 7, Article 76 of this Law may be allowed to rent only 01 social house or 01 house for the people's armed forces at a time.

8. Lessees or lessee-purchasers of social houses may only use such social houses for themselves and their family members during the lease or lease-purchase term. If lessees or lessee-purchasers no longer need to rent or rent-purchase houses, they shall terminate contracts and return such houses.

9. The owner of an investment project to build social housing for lease may sell this housing in accordance with the market mechanism after 10 years from the date of acceptance and put into use to those in need if the project is suitable for the project. construction planning, urban planning and land law regulations. The owner of such social housing investment project must pay land use levies in accordance with the Government's regulations and other taxes in accordance with law regulations on taxation. For social houses that are public assets, Clause 2, Article 125 of this Law shall apply.

10. In the case where the sale or lease-purchase of social houses is against the regulations of this Law on beneficiaries or conditions for purchase or rent-purchase of social houses, the contracts for purchase, sale or lease-purchase of such houses are invalid and the purchasers or lessee-purchasers must hand over the houses to the owners of the social housing investment projects or the social house management units. In the case where the houses are not handed over, the provincial-level People's Committees where the houses are located shall coercively recover such houses.

The proceeds from sale of social houses shall be handled in accordance with civil law regulations. The proceeds from lease-purchase of social houses shall be handled in accordance with Clause 1, Article 175 of this Law. The coercive recovery of social houses shall comply with the Government's regulations.

Article 89. Sale, lease-purchase, lease of social houses

1. The sale of social houses must comply with the following regulations:

a) Future social houses can only be sold when Clause 3, Article 88 of this Law is complied with. Available social houses can only be sold when Clause 4, Article 88 of this Law is complied with;

b) Purchase and sale of social houses shall be conducted under a contract which must contain the details prescribed in Article 163 of this Law;

c) Advance payments shall be made by social house purchasers in accordance with agreements in house purchase and sale contracts and in proportion to the house construction completion percentage and in conformity with approved project implementation schedules. However, the first advance payment, including deposit (if any), must not exceed 30% of the contract value and all payments together must not exceed 70% of the contract value until the houses are handed over to purchasers and 95% of the contract value until purchasers are granted certificates for such houses.

d) The purchasers of social houses may not be allowed to resell the houses within at least 05 years from the date of fully making payments for the purchase, unless otherwise prescribed at Point dd of this Clause;

dd) Within 05 years from the date on which the social house purchasers paid in full for the purchase, if they wish to sell such houses, the houses can only be resold to the owner of the social housing investment project or beneficiaries eligible to purchase social houses at the maximum selling prices equal to the selling prices of such social houses in the sales contracts signed with the owner of the social housing investment project. The payment of personal income tax shall comply with law regulations on taxation.

e) After 05 years from the date on which the social house purchasers paid in full for the purchase, they can resell such houses in accordance with the market mechanism to those in need if the houses are granted certificates. The sellers may not pay land use levies and must pay income tax in accordance with law regulations on taxation, unless the sellers must pay land use levies in accordance with the Government's regulations and must pay income tax in accordance with law regulations on taxation for the social houses that are individual houses.

2. The lease-purchase of social housing is conducted in accordance with Points a and b, Clause 1 of this Article and the following regulations:

a) The time limit for making payments for the lease-purchase of a social house is at least 5 years from the signing date of the lease-purchase contract;

b) The lessee-purchasers of social houses may not be allowed to resell the houses within 05 years from the date of fully making payments for the lease-purchase within the time limit prescribed at Point a of this Clause, unless otherwise prescribed at Point c of this Clause;

c) Within 05 years from the date on which the lessee-purchasers fully paid for the lease-purchase of the houses, if they wish to sell such houses, the houses can only resold to the house management authorities in the case of rent-purchase of social houses invested with public investments or resold to the owner of the social housing investment project in the case of rent-purchase of social houses invested not with public investments or resold to beneficiaries eligible to purchase social houses at maximum selling prices equal to the selling prices of such social houses in the sales contracts signed with the house management authorities or the owner of the social housing investment project. The payment of personal income tax shall comply with law regulations on taxation.

d) After 05 years from the date on which the lessee-purchasers fully paid for the lease-purchase of the houses within the time limit prescribed at Point a of this Clause, the lessee-purchasers may resell such houses in accordance with the market mechanisms under Point e, Clause 1 of this Article.

3. The lease of social houses must comply with the following regulations:

a) Available social houses can only be leased when Clause 4 or Clause 5, Article 88 of this Law is complied with;

b) Lease of social houses shall be conducted under a contract which must contain the details prescribed in Article 163 of this Law;

c) Contracts for rent of future social houses cannot be signed. For houses that fully meet the conditions prescribed at Points a and b, Clause 3, Article 88 of this Law, the owner of the social housing investment project may only sign down payment

contracts and collect down payments for house rent not exceeding 12 months' temporarily calculated house rental. The signing of down payment contracts for house rent must ensure eligible beneficiaries and conditions for rent of social houses prescribed in this Law. After the houses meets the conditions prescribed in Clause 4, Article 88 of this Law, the owner of the social housing investment project may sign contracts for rent of such houses with the lessees.

4. The Government regulates the process and procedures for sale, lease-purchase, and lease of social houses.

Article 90. Operation management of social houses

1. Units managing the operation of social houses invested with public investments shall be selected by the competent authorities prescribed in Article 14 of this Law in accordance with Clause 5, Article 125 of this Law. Units managing the operation of social houses invested with trade union's financial resources shall be selected by the Vietnam General Confederation of Labor under its authority. In the case where there are 02 or more units registering, the unit managing the operation of social houses can be selected in accordance with law regulations on bidding.

2. Units managing the operation of social houses constructed not with public investments or trade union's financial resources shall be determined as follows:

a) For social houses for lease, owners of social housing investment projects may organize by themselves the house operation management or hire or authorize capable units to manage the operation of such houses in accordance with this Law;

b) For social houses for lease-purchase, within the lease-purchase term owners shall manage the house operation under Point a of this Clause. After lessee-purchasers make full lease-purchase payments to owners, the operation management shall be conducted in accordance with Point c of this Clause;

c) For social houses for sale, purchasers shall manage the house operation, for individual houses. For condominiums, the operation management must comply with regulations of this Law on condominium operation management.

3. The management and operation of social houses is entitled to the preferential mechanism applicable to public services.

4. Units managing the operation of social houses may provide other services not banned by law in such social houses in order to reduce the house operation management service price.

Section 3

DEVELOPMENT OF WORKER ACCOMMODATIONS IN INDUSTRIAL PARKS

Article 91. Beneficiaries of accommodation support policies for workers in industrial parks

1. Workers currently employed by enterprises, cooperatives, and unions of

production cooperatives in industrial parks.

2. Industrial park developers; enterprises, cooperatives, and unions of production cooperatives in industrial parks investing in building worker accommodations.

Article 92. Forms of development of worker accommodations in industrial parks

1. Industrial park developers invest in building worker accommodations in industrial parks.

2. Enterprises, cooperatives, and unions of production cooperatives in industrial parks invest in construction or rent worker accommodations in industrial parks to sublet them to their workers.

Article 93. Conditions for workers in industrial parks to rent accommodations

1. Enterprises, cooperatives, and unions of production cooperatives in industrial parks that rent worker accommodations in industrial parks must have contracts on rent of premises in industrial parks and be conducting production and business in such industrial parks and have hiring or employment contracts with the beneficiaries prescribed in Clause 1, Article 91 of this Law.

2. Beneficiaries prescribed in Clause 1, Article 91 of this Law renting worker accommodations in industrial parks must have labor contracts and confirmations from the enterprises, cooperatives, or unions of production cooperatives in such industrial parks, or the industrial park developers.

3. Beneficiaries shall be considered and allowed to rent worker accommodations in industrial parks by the owners of investment projects to build worker accommodations in the industrial parks. In the case where an enterprise, cooperative, or union of production cooperatives in an industrial park rents worker accommodations in an industrial park to sublet them to its own workers, such enterprise, cooperative, or union shall consider and approve the beneficiaries. Industrial park management boards shall, within their competence, check the beneficiaries allowed to rent worker accommodations in industrial parks.

Article 94. Planning and allocation of land for development of worker accommodations in industrial parks

1. Based on provincial-level land use plans and master plans as well as provincial-level housing development programs and plans, in the process of formulating and adjusting industrial park construction master plans, competent authorities shall decide on the allocation of land in the service and business land areas of the industrial parks to build worker accommodations and public service and utility facilities to serve workers working at enterprises, cooperatives and unions of production cooperatives in such industrial parks. The land areas allocated for worker accommodations in industrial parks and public service and utility facilities shall be situated at a safe distance from the production areas within the industrial parks, ensuring environmental safety.

2. The Government shall provide conditions to ensure environmental safety, scale and ratio of land areas for development of worker accommodations in industrial parks.

Article 95. Types and requirements for investment projects in construction of worker accommodations in industrial parks

1. An investment project to build worker accommodations in an industrial park is a type of investment project to build a new accommodation building or a cluster of workers' accommodation buildings in an industrial park.

2. Investment projects to build worker accommodations in industrial parks prescribed in Clause 1 of this Article must meet the following requirements:

- a) Be in accordance with industrial park construction master plans;
- b) Meet the demand for housing of workers in industrial parks as determined in the provincial-level housing development programs and plans;
- c) Ensure well coordination of technical and social infrastructure systems, enough functional quarters and spaces to serve accommodation needs including: health care, cultural activities, playgrounds, fitness, sports, services, commerce and public utilities;
- d) Have fences and paths to separate them from production areas in the industrial parks in order to ensure security and safety;
- dd) Assess environmental impacts in accordance with law regulations on environmental protection.

3. The investment policies and investors in projects to build worker accommodations in industrial parks must be approved in accordance with regulations applicable to housing investment projects under the law regulations on investment as well as the quality, area standards, and rent rates of worker accommodations in industrial parks shall be managed and controlled, all by the management boards of the industrial parks.

Article 96. Types, design and construction standards of worker accommodations in industrial parks

1. Being condominiums constructed in conformity with construction detailed plans approved by competent State authorities.

2. Being designed and built to ensure construction standards and regulations; Prioritize the application of new construction technologies to reduce costs and save energy.

Article 97. Owners of investment projects in construction of worker accommodations in industrial parks

1. Industrial park developers must determine the demand for rent of worker accommodations in industrial parks, prepare and submit master plans to competent authorities for approval, and invest in building technical and social infrastructure for worker accommodations in such industrial parks.

2. After completing the construction of technical and social infrastructure for worker accommodations, industrial park infrastructure developers can invest on their own or lease land to enterprises, cooperatives, or unions of production cooperatives in the industrial parks to invest, in building worker accommodations in such industrial parks.

Article 98. Incentives for owners of investment projects in construction of worker accommodations in industrial parks and enterprises, cooperatives, and unions of cooperatives renting accommodations in industrial parks to sublet them to their workers

1. Owners of investment projects in construction of worker accommodations in industrial parks may be entitled to the incentives prescribed at Points a, b, dd, g and h, Clause 2, Article 85 of this Law and the following incentives:

a) Investments in construction of technical infrastructure and social infrastructure of worker accommodations in industrial parks are included in infrastructure investments of the industrial park;

b) Investments in construction of worker accommodations in industrial parks are considered deductible expenses when determining taxable income in accordance with law regulations on corporate income tax.

2. In the case where enterprises, cooperatives, and unions of production cooperatives in industrial parks that rent worker accommodations in industrial parks to sublet them to their own workers, the rentals of worker accommodations in the industrial parks are considered reasonable expenses in production costs when calculating corporate income taxes in accordance with law regulations on taxation.

Article 99. Rent rates of worker accommodations in industrial parks

The rent rates for worker accommodations in industrial parks shall be agreed upon by the lessors and the lessees according to the price frames prescribed by the provincial-level People's Committees.

Article 100. Principles for lease and operation management of worker accommodations in industrial parks

1. Principles for lease of worker accommodations in industrial parks include:

a) An individual who is a worker in an industrial park is only allowed to rent 01 worker accommodation in such industrial park at the same time and is not allowed to sublet such accommodation or transfer the rent contract thereof;

b) After terminating the labor contract, the lessee must hand over the worker accommodation in the industrial park to the lessor;

c) Enterprises, cooperatives, and unions of production cooperatives in industrial parks are only allowed to rent worker accommodations in industrial parks to sublet them to individuals who are workers of such enterprises, cooperatives, and unions of production cooperatives.

2. The lessor of worker accommodations in the industrial park is responsible for renting to the proper beneficiaries who are workers in such industrial park.

3. The operation management of worker accommodations in industrial parks must comply with Point e, Clause 2, Article 90 of this Law.

4. The Government shall detail the rental, management and use of worker accommodations in industrial parks.

Section 4

HOUSING DEVELOPMENT FOR THE PEOPLE'S ARMED FORCES

Article 101. Beneficiaries of housing support policies for the people's armed forces

1. Beneficiaries prescribed in Clause 7, Article 76 of this Law may be entitled to housing support policies for the people's armed forces.

2. The Minister of National Defense and the Minister of Public Security issue sample documents proving that beneficiaries are eligible for housing support policies for the people's armed forces under their management.

Article 102. Housing development for the people's armed forces

The Ministry of National Defense and the Ministry of Public Security are responsible for determining housing demand for the beneficiaries prescribed in Clause 7, Article 76 of this Law under their management and sending the results to the provincial-level People's Committees for them to incorporate into the provincial-level housing development plans.

Article 103. Forms of housing development for the people's armed forces

1. The State invests in building houses for the people's armed forces with public investments for the beneficiaries prescribed in Clause 7, Article 76 of this Law to purchase, rent-purchase, or rent.

2. The State invests in building houses for the people's armed forces with funding sources prescribed at Point b, Clause 1, Article 113 of this Law for the beneficiaries prescribed in Clause 7, Article 76 of this Law to purchase, rent-purchase, or rent.

3. Real estate enterprises invest in building houses for the people's armed forces for the beneficiaries prescribed in Clause 7, Article 76 of this Law to purchase, rent-purchase, or rent.

Article 104. Land for housing development for the people's armed forces

The allocation of land for housing development for the people's armed forces in the local social housing development land areas in accordance with Article 83 of this Law shall be decided by the provincial-level People's Committees, which shall ensure the connectivity to the technical and social infrastructure systems of the areas where the projects are located and the satisfaction of the living and working needs of beneficiaries in the people's armed forces.

Article 105. Types of project and requirements for investment projects in construction of houses for the people's armed forces; types and area standards of houses for the people's armed forces

1. Investment projects in construction of houses for the people's armed forces include projects prescribed at Points a, b, c, dd and e, Clause 1, Article 30 of this Law.

2. Investment projects in construction of houses for the people's armed forces must meet the requirements prescribed in Article 33 of this Law and other requirements

as prescribed by the Minister of National Defense and the Minister of Public Security for projects under their management. Houses for the people's armed forces shall be handed over in accordance with Clauses 3 and 4, Article 37 of this Law.

3. Owners of investment projects in construction of houses for the people's armed forces must build houses for sale, lease-purchase, or lease, and are not allowed to transfer land use rights for individuals to build their own houses.

4. Types and area standards of houses for the people's armed forces shall comply with Points a, b, and c, Clause 1, Article 82 of this Law.

Article 106. Owners of investment projects in construction of houses for the people's armed forces

1. Owners of investment projects in construction of houses for the people's armed forces invested with funding sources prescribed in Clause 1, Article 113 of this Law shall be determined in accordance with law regulations on public investment and construction

2. Owners of investment projects in construction of houses for the people's armed forces invested not with funding sources prescribed in Clause 1 of this Article shall be selected by the provincial-level People's Committees in accordance with Clause 4, Article 84 of this Law.

3. Owners of investment projects in construction of houses for the people's armed forces prescribed in Clause 2 of this Article have the rights and obligations prescribed in Clauses 5 and 6, Article 84 of this Law.

Article 107. Incentives for owners of investment projects in construction of houses for the people's armed forces

1. Owners of investment projects in construction of houses for the people's armed forces invested with public investments are entitled to the incentives prescribed at Points a and b, Clause 2, Article 85 of this Law.

2. Owners of investment projects in construction of houses for the people's armed forces not invested with funding sources prescribed in Clause 1 of this Article are entitled to the incentives prescribed in Clause 2, Article 85 of this Law.

Article 108. Determination of the selling prices, lease-purchase prices, and rent rates of houses for the people's armed forces

1. For investment projects in construction of houses for the people's armed forces invested with public investments, the determination of rent rates and rent-purchase prices shall comply with Article 86 of this Law.

2. For investment projects in construction of houses for the people's armed forces invested not with funding sources prescribed in Clause 1 of this Article, the determination of selling prices, rent-purchase prices, and rent rates shall comply with Clauses 1, 2, 3 and 4, Article 87 of this Law.

Article 109. Principles of sale, lease-purchase and lease of houses for the people's armed forces and operation management of houses for the people's armed forces

1. The sale, lease-purchase, and lease of houses for the people's armed forces must comply with Articles 88 and 89 of this Law.
2. The operation management of houses for the people's armed forces must comply with Article 90 of this Law.
3. The Government shall regulate the process and procedures for sale, lease-purchase, and lease of houses for the people's armed forces.

Section 5

HOUSING SUPPORT POLICIES FOR HOUSEHOLDS AND INDIVIDUALS THAT CONSTRUCT, RENOVATE OR REPAIR THEIR HOUSES ON THEIR OWN

Article 110. Housing support policies for households and individuals that construct, renovate or repair their houses on their own

1. The State shall provide support for households and individuals prescribed in Clauses 1, 2 and 3, Article 76 of this Law to construct, renovate or repair their houses on their own through target housing programs.

2. Housing support policies for beneficiaries mentioned in Clause 1 of this Article shall be implemented as follows:

- a) Partial financial assistance from the state budget;
- b) Preferential loans from the Vietnam Bank for Social Policies;
- c) Support for construction of technical and social infrastructure in rural housing areas;
- d) Donation of houses to beneficiaries that remain financially incapable to improve their housing conditions after receiving the assistance and support prescribed at Points a and b of this Clause.

3. The State shall provide preferential loans through the Vietnam Bank for Social Policies or credit institutions designated by the State for households and individuals prescribed in Clauses 1, 2, 3, 4, 5, 6, 7 and 8, Article 76 of this Law to construct, renovate or repair their houses on their own.

4. Conditions for beneficiaries prescribed in Clause 3 of this Article to be entitled to preferential loan support from the State through the Vietnam Bank for Social Policies and credit institutions designated by the State include:

- a) Having residential land but no houses or having damaged or dilapidated houses;
- b) Having permanent residence registration in commune-level administrative divisions where they have residential land or houses which need to be constructed, renovated or repaired.

Article 111. Forms of implementation of housing support policies for households and individuals that construct, renovate or repair their houses on their

own

1. Households and individuals organize by themselves the construction, renovation or repair of their houses.

2. The State organizes the construction, renovation and repair of houses for beneficiaries prescribed in Clauses 1, 2 and 3, Article 76 of this Law who are unable to build, renovate and repair houses on their own.

Chapter VII

FINANCE FOR HOUSING DEVELOPMENT

Article 112. Funding sources for housing development

1. Equity of organizations and individuals.
2. Funds prescribed in Clause 1, Article 113 of this Law;
3. Funds raised from organizations and individuals in accordance with Article 114 of this Law.
4. Foreign investments.
5. Trade union's financial sources in accordance with law regulations on trade unions.
6. Other lawful funding sources.

Article 113. The State's funding sources for housing development

1. The State's funding sources for housing development include:
 - a) Public investments in accordance with law regulations on public investment;
 - b) Funds from national debentures, bonds, official development assistance, preferential loans of donors or the State's development investment credit funds; funds raised from the Land Development Fund and other extra-budget State-run financial funds in accordance with the law.
2. The funding sources prescribed in Clause 1 of this Article shall be used by the State to develop official-duty houses, social houses, houses for the people's armed forces, houses for resettlement as well as renovate and build condominiums and other houses being public property in accordance with this Law.

Article 114. Forms of fund raising for housing development

1. Forms of fund raising for housing development include:
 - a) Raising funds from capital contribution, investment cooperation, business cooperation, joint venture and partnership of organizations and individuals.
 - b) Raising funds through the issuance of bonds, stocks, and fund certificates in accordance with the law;
 - c) Funding from the funding sources prescribed in Clause 1, Article 113 of this

Law;

- d) Raising funds from loans from credit and financial institutions operating in Vietnam;
- dd) Raising funds from loans from the Vietnam Bank for Social Policies;
- e) Foreign direct investments into Vietnam;
- g) Other lawful funding sources.

2. The Government shall regulate conditions for each form of fund raising for housing development.

Article 115. Funds for development for each type of house

1. Funds for development of commercial houses includes:

- a) Equity of owners of commercial housing investment projects
- b) Funds raised through capital contribution, investment cooperation, business cooperation, joint venture or partnership of organizations and individuals.
- c) Funds raised through the issuance of bonds, stocks, and fund certificates in accordance with the law;
- d) Prepayments, deferred payments, and installment payments from customers under contracts for purchase and sale or lease-purchase of off-plan houses;
- dd) Loans from credit and financial institutions operating in Vietnam.

2. Funds for development of official-duty houses includes:

- a) Funds allocated from the state budget, including central and local budgets;
- b) Other lawful funding sources.

3. Funds for implementation of social housing policies includes:

a) Equity of owners of social housing investment projects, owners of investment projects to build worker accommodations in industrial parks, owners of housing investment projects for the people's armed forces; equity of owners of commercial housing investment projects;

b) Funds raised through capital contribution, investment cooperation, business cooperation, joint venture or partnership of organizations and individuals.

c) Funds covered by beneficiaries of social housing support policies;

d) Funds prescribed in Clause 1, Article 113 of this Law;

dd) Funds given by the State as direct support for beneficiaries of social housing policies; preferential loans through the Vietnam Bank for Social Policies or credit institutions designated by the State.

e) Trade union's financial resources for implementation of projects prescribed in Clause 4, Article 80 of this Law;

g) Loans from credit and financial institutions operating in Vietnam;

h) Foreign direct investments into Vietnam;

i) Other lawful funding sources.

4. Funds for development of houses for resettlement, renovation and reconstruction of condominiums includes:

a) Equity of owners of resettlement housing investment projects; equity of owners of investment projects in renovation and reconstruction of condominiums;

b) Funds raised through capital contribution, investment cooperation, business cooperation, joint venture or partnership of organizations and individuals.

c) Funds prescribed in Clause 1, Article 113 of this Law;

d) Funds from the land development fund.

dd) Funds from compensations and supports for resettlement upon ground clearance in accordance with the law, funds contributed by resettled people to investment projects in renovation and reconstruction of condominiums;

e) Loans from credit and financial institutions operating in Vietnam;

g) Other lawful funding sources.

5. Funds for development of individual houses includes:

a) Individual funds;

b) Funds from cooperation among individuals; financial assistance of family clans and residential communities;

c) Loans of credit institutions and financial institutions currently operating in Vietnam;

d) Financial support of the State, for beneficiaries of social housing support policies;

dd) Other lawful funding sources.

Article 116. Principles of fund raising and use of funds for housing development

1. Fund raising for housing development must comply with the following principles:

a) Apply the proper form of fund raising;

b) Meet conditions to raise funds in accordance with law regulations on housing;

c) Be suitable to different types of house prescribed in this Law;

d) Comply with law regulations on anti-money laundering;

dd) Comply with law regulations on bidding and other relevant law regulations. In case of raising funds from the State in accordance with Article 113 of this Law, law regulations on state budget and public investment shall prevail;

e) Contributors of capital, parties to investment cooperation, business cooperation, joint venture, or partnership prescribed at Point a, Clause 1, Article 114 of this Law may only receive profits in cash or shares distributed on the basis of capital contribution ratio as agreed in the contracts. Owners of housing investment projects may not apply the form of fund raising prescribed in this Point or other forms of fund raising to divide housing products or to prioritize the registration, down payments, and rights

to purchase houses or to divide land use rights in the projects to the parties receiving funds, unless the funds are contributed to establish new legal entities which then are assigned by the State to be the owners of housing investment projects in accordance with the law.

2. Fund raising in improper forms and failing to fully meet the conditions prescribed by the law regulations on housing for each type of house must be legally invalid.

3. The use of funds for housing development must comply with the following principles:

a) Public and transparency; lawful rights and interests of entities, from which the funds are raised, are guaranteed.

b) The funds shall be used for housing development and implementation of housing investment projects and shall not be raised for other projects or other purposes;

c) The arrangement and use of funding sources for housing development must be consistent with the approved provincial-level housing development programs and plans.

Article 117. Preferential loans from the Vietnam Bank for Social Policies for development of social houses

1. The Vietnam Bank for Social Policies shall provide preferential loans with low interest rates and long terms through allocating state budget funds to the Vietnam Bank for Social Policies for implementation of national target programs and housing public investment programs and construction of social houses and houses for the people's armed forces in accordance with the regulations of the Government and the Prime Minister from time to time.

2. The Vietnam Bank for Social Policies may mobilize savings of domestic households and individuals that need to purchase or rent-purchase social houses, houses for people's armed forces for providing these beneficiaries loans with preferential interest rates and long terms after a certain depositing period of savings.

3. The Vietnam Bank for Social Policies shall open separate accounts for management and use of funding sources for proper purposes prescribed in Clauses 1 and 2 of this Article.

4. The Government shall detail this Article.

Chapter VIII

MANAGEMENT AND USE OF HOUSES

Section 1

GENERAL PROVISIONS

Article 118. Details of management and use of houses

1. Making, preservation handover, and management of house dossiers.
2. Management and use of houses of artistic, architectural, cultural or historical value.
3. Management and use of houses being public property
4. Insurance, warranty, maintenance, renovation and demolition of houses.

Article 119. Making of house dossiers

1. House owners or current users in case owners have not been identified yet, and organizations assigned to manage houses being public property shall make and preserve house dossiers under Clause 2 of this Article.

2. Dossiers of houses, including individual houses and condominiums, are prescribed as follows:

a) For houses in urban and rural areas constructed before July 1, 2006, house dossiers must include papers proving their lawful construction or house information declarations prescribed by the law regulations on housing;

b) For houses in urban areas constructed since July 1, 2006, house dossiers must include papers proving the lawful construction of houses; papers on consulting and construction units, drawings of designs and plans of houses and residential land, and as-built dossiers prescribed by the law regulations on construction (if any);

c) For houses in rural areas constructed since July 1, 2006, house dossiers must include papers proving the lawful construction of houses and drawings of designs and plans of houses and residential land (if any);

d) For houses constructed under projects, house dossiers must include housing investment project dossiers and as-built dossiers prescribed by law regulations on construction.

Article 120. Preservation, handover and management of house dossiers

1. Organizations and individuals that preserve house dossiers are prescribed as follows:

a) House owners or current users in case owners have not been identified yet, and organizations assigned to manage houses being public property shall preserve house dossiers. Dossiers of condominiums shall be handed over, preserved and managed in accordance with the regulations on condominium management and use.

b) District-level housing management authorities shall preserve dossiers of houses of domestic households and individuals and overseas Vietnamese in their localities;

c) Provincial-level housing management authorities shall preserve dossiers of houses of domestic organizations, foreign organizations and individuals, and of housing investment projects in their localities.

2. When carrying out procedures for granting certificates, competent State authorities shall provide information on houses prescribed in Clause 2, Article 119 of this Law to housing management authorities of the same level for making house

dossiers.

Provincial-level People's Committees shall stipulate the coordination in the provision of information on houses between State authorities competent to carry out procedures for granting certificates and local housing management authorities in order to ensure consistency of information on houses and residential land recorded in house dossiers.

Article 121. Management and use of individual houses under housing investment projects

1. In the case where the owner of a housing investment project manages the individual house area after completing the construction, such owner shall be responsible for managing the exterior architecture of the individual houses after they are handed over to the house owners in accordance with the approved design dossiers; managing and maintaining the technical and social infrastructure systems to serve the owners and users of individual houses in the project in accordance with the approved project, unless they shall be handed over to the State for management under the decision on approval of the investment policy.

In the case where the owner of a housing investment project does not manage individual house areas in the project, the provincial-level People's Committee is responsible for managing the exterior architecture of the houses in accordance with the approved master plan and architectural management regulations of the project or assigns the responsibility for management to the district-level People's Committee.

In the case where land use rights of a housing investment project may be transferred to individuals for them to build houses on their own, the houses must be built in accordance with the approved master plan and architectural management regulations.

2. The owner of a housing investment project can divide and name each individual house area planned and built separately in the project for management purposes. The naming of projects and areas within such projects shall comply with Article 33 of this Law.

3. After houses are handed over and used, the owner of the housing investment project and the owners and users of the houses may establish a homeowners' association of the housing estate to manage the maintenance of the exterior architecture of the houses, take care of trees and flower gardens, and maintain utility facilities and technical infrastructure systems serving such housing estate, except the technical infrastructure systems already assigned to the State or assigned by the State to the owner of the housing investment project for management and maintenance. A homeowners' association of the housing estate shall be composed of representatives of house owners and users in such housing estate and representatives of the owner of the housing investment project (if any).

4. Owners and users of houses in individual house areas shall hold meetings to elect a homeowners' association for the housing estate, agree on the number of members and the composition, the regulations and operational duration of the homeowners' association of the housing estate, the internal rules for management and use of the housing estate, and decide on the contribution of funds to pay remunerations for

members of the homeowners' association and the care of trees, flower gardens, and maintenance of utility facilities and technical infrastructure systems serving the housing estate for which the State or the owner of the housing investment project is not responsible for management.

5. The election of the homeowners' association of a housing estate for the first time shall be presided over by the owner of the housing investment project. Subsequent elections shall be carried out by the homeowners' association of the housing estate or by the owner of the housing investment project under authorization. In the case where the house owners and users cannot elect a homeowners' association for the housing estate, the owner of the housing investment project shall be responsible for managing such housing estate in accordance with the approved project.

6. The owner of a housing investment project can provide financial support for the homeowners' association to take care of trees and flower gardens and maintain utility facilities and technical infrastructure systems serving the housing estate not under the management of the State or the owner of the housing investment project. The tasks prescribed in this Clause shall be undertaken by the owner of the housing investment project. In the case where the owner of the housing investment project fails to perform such tasks, the homeowners' association shall hire another capable unit to perform them.

Article 122. Management and use of houses of artistic, architectural, cultural or historical value

1. Houses of artistic, architectural, cultural or historical value, also including villas that are old houses, regardless of their form of ownership, are prescribed as follows:

a) Houses which are classified by competent State authorities as national- or provincial-level historical-cultural relics;

b) Houses which are not prescribed at Point a of this Clause but are on the lists approved by provincial-level People's Committees in accordance with Clause 2 of this Article.

2. Provincial-level People's Committees shall form councils composed of representatives of provincial-level architecture, construction and culture authorities, relevant professional associations and scientists to determine criteria and draw up lists of houses of artistic, architectural, cultural or historical value in their localities. The councils are responsible for submitting lists of housing projects with artistic, architectural, cultural and historical value in the localities to the provincial-level People's Committees for approval in accordance with the law.

3. The management and use of houses prescribed in Clause 1 of this Article must comply with this Law, law regulations on architecture and cultural heritages and other relevant law regulations. In the case where the houses are public property, the regulations in Section 2 of this Chapter must be complied with in addition the foregoing. In the case of villas, Article 123 of this Law must be complied with in addition the foregoing.

4. Funding for the management, conservation, maintenance and renovation of houses prescribed at Point a, Clause 1 of this Article and houses being public property

must come from the state budget.

For houses that are not public property but prescribed at Point b, Clause 1 of this Article, depending on specific local conditions, provincial-level People's Committees shall decide to partially or wholly pay for the management, conservation, maintenance and renovation of these houses by their owners.

5. In the case where the houses must be preserved or renovated but population density must be decreased to ensure the artistic, architectural, cultural and historical value of such houses, the provincial-level People's Committees shall be responsible for allocating land areas, prepare relocation projects, arrange new residences for population decentralization; provide financial support for house owners and users to relocate their homes before preserving and renovating such houses.

Article 123. Management and use of residential villas

1. Villas are divided into the following 3 groups:

a) Group-1 villas are those classified as historical-cultural relics in accordance with law regulations on cultural heritages; villas with typical architectural value, and ancient houses identified and mentioned in the lists submitted to the provincial-level People's Committees for approval by the councils prescribed in Clause 2, Article 122 of this Law;

b) Group-2 villas are those that are not prescribed at Point a of this Clause but have artistic, architectural, cultural and historical value as identified and mentioned in the lists submitted to the provincial-level People's Committees for approval by the councils prescribed in Clause 2, Article 122 of this Law;

c) Group-3 villas are those that are not prescribed at Points a and b of this Clause.

2. The management, use, maintenance and renovation of villas must ensure the following principles:

a) Villas must be subject to this Law, the law regulations on planning, architecture and construction. In the case where they have artistic, cultural or historical value, they must be subject to the law regulations on cultural heritages in addition to the foregoing;

b) The exterior architecture, including the architectural shape; the internal structure; the construction density, the number of floors and the height of group-1 villas must be kept intact;

c) The exterior architecture of group-2 villas must be kept intact.

Article 124. Conversion of houses

1. Cases where houses can be converted include:

a) Conversion from houses for resettlement to social houses;

b) Conversion from official-duty houses or social houses no longer in need to houses for resettlement;

c) Conversion from the houses prescribed at Point d, Clause 1, Article 13 of this Law to official-duty houses or social houses for lease;

d) Other cases as decided by the Prime Minister at the proposal of the Ministry

of Construction.

2. The conversion of houses prescribed in Clause 1 of this Article must comply with the following principles:

a) It must be consistent with the approved provincial-level housing development programs and plans and not cause loss of public property;

b) After the houses are converted, they must be used effectively, for the right purpose and in accordance with the standards and technical regulations applicable to the converted houses;

c) It must be approved by the Ministry of Construction or the provincial-level People's Committees.

3. The Government shall detail this Article.

Section 2

MANAGEMENT AND USE OF HOUSES BEING PUBLIC PROPERTY

Article 125. Management and use of houses being public property

1. Houses being public property shall be used for proper purposes and with efficiency, avoiding loss and wastefulness. Such houses must be leased, lease-purchased, and sold to the eligible beneficiaries in accordance with this Law. Proceeds from the sale and lease-purchase of houses being public property, after reasonable expenses are deducted, must be included in the budget expenditure estimates for investment in building social houses being public property.

2. Official-duty houses can only be leased. Social houses and houses for the people's armed forces can be built for lease, lease-purchase, or sale. In the case where they are built with public investments, they can only be leased or lease-purchased.

In the case where it is necessary to invest in building social houses or houses for the people's armed forces, ownership representatives of houses being public property can prepare schemes to sell social houses and houses for the people's armed forces currently on lease, unless the social houses and houses for the people's armed forces are invested with funding sources prescribed at Point b, Clause 1, Article 113 of this Law, and sent them to the Ministry of Construction for appraisal and escalation to the Prime Minister for decision in accordance with the regulations of the Government.

3. Houses being public property prescribed at Point d, Clause 1, Article 13 of this Law may only be leased or sold when there are no disputes or complaints about the right to use such houses in accordance with law regulations on settlement of disputes, complaints, and denunciations and must be eligible for lease or sale in accordance with law regulations on housing.

In the case where houses being public property prescribed at Point d, Clause 1, Article 13 of this Law have been used since January 19, 2007, they shall be managed and used in accordance with this Law and law regulations on management and use of public property. If the State no longer uses them, they may be sold in accordance with

the regulations on sale of public property under law regulations on management and use of public property.

4. Official-duty house lessees who no longer fully meet the conditions for renting official-duty houses or move out or commit violations of regulations on house management and use and are subject to house recovery shall return official-duty houses to the State.

If those who return official-duty houses are not subject to house recovery for committing violations prescribed at Points a, e and h, Clause 1, Article 127 of this Law and have no houses in localities where they come to reside after returning official-duty houses, authorities or organizations directly managing and employing them shall work with provincial-level People's Committees of localities where they reside in assisting them in purchasing, rent-purchasing or renting social houses or receiving residential land for construction of houses, depending on specific local conditions.

5. Houses being public property shall be managed and used as follows:

a) Organizations or enterprises with expertise and the capability to manage house operation shall conduct such management and enjoy the same preferential mechanisms applicable to public services;

b) Ownership representatives of houses being public property invested with the funding source prescribed at Point a, Clause 1, Article 113 of this Law shall assign the operation management units to manage the operation of such houses. For condominiums, such units must be capable of performing operation management in accordance with this Law. In the case where there is not the house operation management unit or the house operation management unit fails to meet all conditions and is incapable of managing the house operation, biddings shall be conducted to select the unit capable of doing so.

6. The management and use of recovered houses must comply with Article 127 of this Law.

Article 126. Beneficiaries eligible and conditions for rent, rent-purchase and purchase of houses being public property

1. Beneficiaries eligible to rent, rent-purchase and purchase houses being public property are:

a) Beneficiaries prescribed in Clause 1, Article 45 of this Law may only rent official-duty houses;

b) Beneficiaries prescribed in Clauses 1, 2, 3, 4, 5, 6, 7, 8, 9 and 10, Article 76 of this Law may be considered and allowed to rent, rent-purchase, and purchase social houses. Beneficiaries prescribed in Clause 7, Article 76 of this Law may be considered and allowed to rent, rent-purchase, and purchase houses for the people's armed forces if they have not yet rented, rent-purchased, or purchased social houses;

c) Beneficiaries prescribed in Clause 10, Article 76 of this Law that have not yet rented, rented-purchased or purchased social houses may be allowed to rent, rent-purchase or purchase resettlement houses;

d) Beneficiaries that are actually using houses prescribed at Point d, Clause 1,  **Luật Việt Nam**
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Article 13 of this Law may be allowed to rent or purchase such houses.

dd) Beneficiaries prescribed in Clause 11, Article 76 of this Law may be considered and allowed to rent social houses.

2. Conditions for rent, rent-purchase and purchase of houses being public property are as follows:

a) Beneficiaries eligible to rent official-duty houses must meet the conditions prescribed in Clause 2, Article 45 of this Law;

b) Beneficiaries eligible to rent, rent-purchase, or purchase social houses must meet the conditions prescribed in Clause 1, Clause 2, or Clause 8, Article 78 of this Law. In addition to these conditions, beneficiaries prescribed in Clause 10, Article 76 of this Law must have not been allocated houses or residential land for resettlement; Beneficiaries eligible to rent, rent-purchase, or purchase houses for the people's armed forces must meet the conditions prescribed in Clause 6, Article 78 of this Law.

Beneficiaries prescribed in Clause 11, Article 76 of this Law may rent houses during their studying periods;

c) Beneficiaries eligible to rent, rent-purchase or purchase resettlement houses must be subject to land recovery or house clearance under decisions of competent State authorities and have not been allowed to rent, rent-purchase or purchase social houses;

d) Beneficiaries eligible to rent or purchase houses in accordance with Point d, Clause 1, Article 13 of this Law must actually use such houses, have documents proving the arrangement and use of the houses, and have actual demand to rent or purchase such houses.

3. Competence to sign contracts on rent, rent-purchase, and purchase of houses being public property are prescribed as follows:

a) In case of rent-purchase or purchase of social houses, houses for the people's armed forces or purchase and sale of houses prescribed at Point d, Clause 1, Article 13 of this Law, contracts shall be signed between the lessee-purchasers or the purchasers with the authorities assigned to manage such houses;

b) In case of rent, rent-purchase or purchase of houses for resettlement, contracts shall be signed between resettled people and units assigned to arrange houses for resettlement;

c) In case of rent of houses prescribed at Point d, Clause 1, Article 13 of this Law, official-duty houses, social houses, and houses for the people's armed forces, contracts shall be signed between the lessees and the authorities assigned to manage the houses or the operation management units of such houses;

d) If the lessees are students, the rent contracts shall be signed between the lessees and the educational institutions or authorities assigned to manage the houses.

4. The Government shall detail the determination of the time for use of houses, the beneficiaries and conditions for renting and purchasing houses, the sale and lease of houses, and the determination of rent rates and selling prices of the houses prescribed at Point d, Clause 1, Article 13 of this Law; the determination of prices and management of proceeds from lease, lease-purchase, and sale of houses being public property; the

exemption or reduction of rentals for social houses and houses for the people's armed forces being public property, rentals and selling prices of houses prescribed at Point d, Clause 1, Article 13 of this Law; management, use and operation of houses being public property.

Article 127. Cases of recovery and coercive recovery of houses being public property

1. Houses being public property shall be recovered in one of the following cases:

a) Such house has been leased, lease-purchased, or sold either by an incompetent authority or to an ineligible beneficiary or without satisfaction of the conditions prescribed in the law regulations on housing;

b) The lessee no longer needs to rent such house upon the expiration of the lease term under the rent contract or the two parties agree to terminate the house rent contract;

c) The lessee or lessee-purchaser returns such house currently under lease or lease-purchase;

d) The lessee no longer meets the conditions for house rent prescribed in this Law;

dd) The lessee dies or is declared missing by a court without any surviving cohabitants; or the lessee of an official-duty house dies or is declared missing by a court;

e) The lessee or lessee-purchaser has failed to fully pay rental under the contract for at least 3 months without any plausible reasons;

g) The house on lease or lease-purchase must be demolished for renovation or reconstruction under the decision of a competent State authority. The house is no longer safe to stay in under law regulations on construction;

h) The lessee or lessee-purchaser uses such house not for purposes agreed upon in the rent or rent-purchase contract or change its use purposes, sells, sublets, lends, extends, renovates or demolishes the house without permission;

i) The lessee of the official-duty house is assigned, has his/her position rotated, or is seconded to another locality;

k) The house is illegally occupied.

2. People who are renting, rent-purchasing, purchasing, or currently using houses that must be recovered as prescribed in Clause 1 of this Article must hand over the houses to the units assigned to manage such houses. In the case where the houses are not handed over, the ownership representatives of the houses being public property shall decide on coercive recovery. The provincial-level People's Committees shall be responsible for organizing the coercive house recovery or assign the responsibility for coercive recovery of the houses to the district-level People's Committees of the localities where the houses are located within 30 days from the date of the decisions on coercive recovery.

After the houses are recovered, on a case-by-case basis, the competent authorities shall convert such houses or continue to manage and lease, lease-purchase or sell such houses in accordance with this Law.

3. The Government shall detail the process and procedures for recovery and coercive recovery of houses being public property.

Section 3

HOUSE INSURANCE, WARRANTY, MAINTENANCE AND RENOVATION

Article 128. House insurance

1. The State encourages house owners to purchase house insurance in accordance with the law. For houses on the list of facilities vulnerable to fire or explosion prescribed by law regulations on fire prevention and fighting, their owners shall purchase compulsory fire and explosion insurance.

2. Methods of payment and levels of home insurance premiums and home insurance terms must comply with law regulations on insurance business and law regulations on fire prevention and fighting.

3. In the case where the owner of a house has paid insurance in accordance with this Article and such house is on fire, he/she shall be compensated in accordance with the signed insurance policy.

Article 129. House warranty

1. Organizations and individuals that construct houses shall provide house warranty in accordance with the law regulations on construction; organizations and individuals that supply house equipment shall provide warranty for such equipment according to their useful life recommended by manufacturers.

In the case of construction of houses for sale or lease-purchase, house sellers or lessor-sellers shall provide warranty under Clauses 2 and 3 of this Article. House sellers or lessor-sellers may request organizations and individuals that have constructed houses or supplied house equipment to provide warranty in accordance with the law.

2. House warranty shall be provided for the following period after houses are completely constructed, tested for acceptance and put into use:

- a) For condominiums: At least 60 months;
- b) For individual houses: At least 24 months.

3. House warranty covers repair and fixing of damaged or deteriorated frames, columns, beams, floors, walls, ceilings, roofs, terraces, stairways, wall tiling, flooring, plastering, fuel supply systems, residential and lighting electricity supply systems, water tanks and daily-life water supply systems, septic tanks and wastewater drainage and household waste discharge systems; fixing of house tilting, subsidence, fracture and collapse; and others as agreed upon in house purchase and sale or lease-purchase contracts. For other house fixtures, house sellers or lessor-sellers shall provide warranty by repairing or replacing them within their useful life recommended by manufacturers.

Article 130. House maintenance

1. House owners shall maintain their houses. In the case where house owners have

not been identified yet, persons currently managing and using houses shall conduct maintenance of such houses. Condominium owners shall maintain sections under private ownership and contribute funds for maintenance of condominium sections under common ownership.

2. Details and the process of maintenance and management of condominium maintenance dossiers must comply with the law regulations on construction.

For houses prescribed in Clause 1, Article 122 of this Law, law regulations on architecture, planning, and cultural heritages shall prevail.

3. House owners and units conducting house maintenance shall ensure safety for people and property, sanitation and environmental protection in the course of house maintenance. The maintenance of houses being public property must also comply with Article 133 of this Law.

Article 131. House renovation

1. House owners may renovate their houses. Persons who are not house owners may renovate houses only after obtaining consent of their owners.

2. House renovation must comply with this Law and the construction law. In the case where formulation of a project is required by law for house renovation, houses shall be renovated under approved projects. For houses being public property, their renovation must also comply with Article 133 of this Law.

3. The renovation of villas prescribed in Clause 1, Article 123 of this Law must also comply with law regulations on planning, architecture and management of cultural relics. In the case where approval of competent authorities is required by law for house renovation, house owners or housing management authorities shall comply with written approval of competent authorities.

4. The maintenance of villas that are old houses prescribed at Points a and b, Clause 1, Article 123 of this Law must also comply with the following provisions:

a) Their original state must not be changed;

b) They must not be demolished unless they are severely damaged or in danger of collapse according to inspection conclusions of provincial-level housing management authorities. In the case where demolition is required for reconstruction, reconstructed villas must strictly follow the original architectural styles, use building materials and have the same construction density, number of stories and height as those of the current villas;

c) It is prohibited to build additional structures to increase their floor areas or expand the villas or occupy their outside space.

Article 132. Maintenance and renovation of leased houses

1. The lessors may maintain and renovate the houses with the consent of the lessees, unless in emergency cases or force majeure events. The lessees shall be responsible for letting the lessors carry out maintenance and renovation of the houses.

2. Lessors are entitled to reasonably adjust rental rates after completing the renovation if the remaining lease term is equal to at least one-third of the term of the

rent contract. In the case where lessees disagree with the adjustment of the rental rates, they may unilaterally terminate their rent contracts and are entitled to compensations in accordance with the law.

3. In the case where lessees have to move out for the house maintenance or renovation, the parties shall agree on temporary residences and house rentals payable during the maintenance or renovation period. In the case where lessees are able to arrange their temporary residences and have paid in advance house rentals for the period of maintenance or renovation, lessors shall refund such rentals to lessees. The maintenance or renovation period shall not be included in the term of the rent contract. Lessees may continue renting houses after the maintenance or renovation is completed.

4. Lessees are entitled to request lessors to maintain houses, except for damage caused by lessees to the houses. In the case where lessors do not maintain houses, lessees are entitled to do so but shall notify such maintenance in writing to lessors at least 15 days in advance. Such written notification must clearly state the extent of and expenses for maintenance. Lessors shall pay maintenance expenses to lessees or gradually deduct them from rentals.

Article 133. Maintenance and renovation of houses being public property

1. The maintenance and renovation of houses being public property shall be approved by competent State authorities and must comply with this Law and the law regulations on construction. For the maintenance of condominiums being public property, the ownership representatives of the houses being public property shall assign the current operation management units to carry out the maintenance if they are capable of doing so. In the case where such units are incapable of carrying out the maintenance, biddings must be organized to select units capable of doing so.

2. The renovation of leased houses being public property must comply with Article 132 of this Law. In the case where housing management authorities grant written permission for lessees to renovate houses at their own expenses, renovated parts of the houses must still be public property and organizations assigned to manage such houses shall pay renovation expenses to lessees or gradually deduct them from rentals.

Article 134. Maintenance and renovation of houses under common ownership

1. Co-owners of houses under common ownership have the right and responsibility to maintain and renovate parts of their houses under their respective ownership. In the case where it is unable to determine the portion of ownership of each house co-owner, the responsibility for maintenance and renovation shall be equally divided among co-owners. Maintenance and renovation of houses under common ownership must be agreed upon by the co-owners. For condominiums, it shall comply with this Law and the Regulations on management and use of condominiums.

2. Expenses for maintenance and renovation of parts of houses under common ownership shall be divided among co-owners in proportion to their respective portions of ownership, unless otherwise agreed upon by co-owners. For multi-owner condominiums, the funds for maintenance shall comply with Article 4, Chapter IX of this Law.

Article 135. Rights and obligations of house owners in the house maintenance and renovation

1. House owners have the following rights in the house maintenance and renovation:

a) To conduct on their own or hire other organizations or individuals to conduct the maintenance and renovation. In the case where the house maintenance and renovation are required by law to be conducted by capable organizations or individuals, house owners shall hire such organizations or individuals;

b) To request competent State authorities to grant construction permits in case such permits are required for house renovation, and facilitate the house maintenance and renovation when fully meeting the conditions prescribed by the law regulations on construction;

c) To exercise other rights prescribed by the law.

2. House owners have the following obligations in the house maintenance and renovation:

a) To comply with law regulations on house maintenance and renovation; to create conditions for other house owners to conduct the maintenance and renovation of their houses;

b) To pay compensations if causing damage to other organizations or individuals;

c) To perform other obligations prescribed by the law.

Section 4

DEMOLITION OF HOUSES

Article 136. Houses which shall be demolished

1. Houses which shall be demolished are:

a) Houses which are severely damaged, in danger of collapse and unsafe for users according to quality inspection conclusions of provincial-level housing management authorities of localities where such houses are located, or in a state of emergency or in response to a natural disaster;

b) Condominiums which shall be demolished in accordance with Clause 2, Article 59 of this Law.

c) Houses which shall be cleared for land recovery under decisions of competent State authorities;

d) Houses constructed in areas where construction is banned or on non-residential land areas under approved master plans.

dd) Demolition of houses in accordance with law regulations on construction, other than those prescribed at Points a, b, c and d of this Clause.

2. The demolition of houses prescribed in Clause 1 of this Article shall comply

with this Law and law regulations on construction.

Article 137. Responsibility for house demolition

1. House owners or current managers or users of houses shall demolish their houses. In the case where houses shall be cleared for construction of new houses or other structures, owners of the investment projects in construction of the houses or structures shall demolish such houses.

2. House owners may demolish houses on their own if they are fully capable to do so in accordance with the law regulations on construction or hire capable construction organizations or individuals to do so.

3. Demolition of condominiums shall comply with Chapter V of this Law.

4. Commune-level People's Committees are responsible for monitoring and urging the demolition of houses in their localities.

Article 138. Requirements on house demolition

1. People and property shall be removed from places of demolition.

2. Caution signboards shall be displayed and measures taken to isolate places of demolition from surrounding areas.

3. Safety for people, property, adjacent works and technical and social infrastructure facilities not subject to demolition and sanitation and environmental protection shall be ensured in accordance with law.

4. In the case where demolition plans as prescribed in law regulations on construction are required, the house owners, the current managers and users of the houses, and the owners of the investment projects in construction of the houses or structures must prepare the demolition plans before implementation thereof.

5. Demolition of houses in residential areas may not be carried out during 12:00 p.m. - 1:00 p.m. and 10:00 p.m. - 5:00 a.m., except in urgent cases.

Article 139. Coercive house demolition

1. In the case where the house owners, the current managers and users of the houses, and the owners of the investment projects in construction of the houses or structures subject to demolition prescribed in Article 136 of this Law fail to voluntarily demolish such houses, competent State authorities prescribed in Clause 2 of this Article shall issue decisions on coercive house demolition.

2. Competence to issue decisions on coercive house demolition is prescribed as follows:

a) Chairpersons of district-level People's Committees shall issue decisions on coercive demolition of houses for land recovery in the cases prescribed at Point c, Clause 1, Article 136 of this Law, or of individual houses prescribed at Points a, d and dd, Clause 1, Article 136 of this Law;

b) Chairpersons of provincial-level People's Committees shall issue decisions on coercive demolition of condominiums in cases prescribed at Points a, b, d and dd, Clause 1, Article 136 of this Law.

3. District-level People's Committees shall organize coercive house demolition under decisions prescribed in Clause 2 of this Article.

4. Funding for coercive house demolition are prescribed as follows:

a) The house owners, the current managers and users of the houses, and the owners of the investment projects in construction of the houses or structures shall bear expenses for coercive house demolition and expenses related to the demolition;

b) In the case where the house owners, the current managers and users of the houses, and the owners of the investment projects in construction of the houses or structures refuse to pay expenses for coercive house demolition and expenses related to the demolition, competent State authorities shall issue decisions to sequester their assets to pay off demolition expenses.

Article 140. Residences for house owners when their houses are demolished

1. House owners shall find new residences for themselves when their houses are demolished, unless otherwise prescribed in Clauses 2 and 3 of this Article.

2. In the case of demolition of houses subject to land recovery, residences for their owners shall be arranged under the resettlement housing policy upon land recovery by the State in accordance with this Law and the law regulations on land.

3. In the case of demolition of condominiums, residences for owners of these condominiums shall be arranged in accordance with Article 72 of this Law.

Article 141. Demolition of leased houses

1. Lessors shall notify in writing the house demolition to lessees at least 90 days before the date on which the demolition is conducted, except in urgent cases or demolition under decisions of competent State authorities.

2. In the case of demolition of houses for reconstruction during the lease term, lessors shall arrange other residences for lessees during the house demolition and reconstruction, unless lessees agree to find residences for themselves. After the construction of houses is completed, lessees are entitled to continue the rent until the expiration of the contracts, unless they no longer need to rent such houses. In the case where lessees find residences for themselves, they are not required to pay any rental during the demolition and reconstruction period. The house demolition and reconstruction period shall not be included in the term of the rent contract.

Chapter IX

MANAGEMENT AND USE OF CONDOMINIUMS

Section 1

GENERAL PROVISIONS

Article 142. Sections under private ownership and sections under common ownership in condominiums

1. Sections under private ownership in a condominium must include:
 - a) Areas inside apartments, including also built-in balcony and loggia areas;
 - b) Other areas in the condominium recognized as under its owners' private ownership;
 - c) Equipment systems for private use built in apartments or in other areas under private ownership of the condominium owners, other than the equipment under common ownership prescribed in Clause 2 of this Article.
2. Sections under common ownership in a condominium must include:
 - a) Remaining sections of the condominium other than those prescribed in Clause 1 of this Article; the place for community activities in the condominium;
 - b) Space and systems of force-bearing structures and equipment for common use in the condominium, including frames, columns, force-bearing walls, perimeter walls, apartment party walls, floors, roofs, terraces, passageways, stairways, lifts, emergency exits, garbage chutes, riser shafts and riser shaft walls (if any); electricity, gas and water supply, information and communications, radio and television broadcasting and water drainage systems, septic tanks, lightning rod, and fire safety systems and other parts not under private ownership of condominium owners;
 - c) Technical infrastructure systems that are exterior to the condominium but connected to such condominium, except technical infrastructure systems used for public-utility purposes or subject to handover to the State or the owner of the housing investment project for management according to the approved project;
 - d) Public facilities in the location of the condominium constructed for non-commercial purposes or for handover to the State according to the approved project, including common yard, flower garden, park and other facilities prescribed in the approved project.
3. Areas and equipment under private and common ownership prescribed in this Article must be clearly mentioned in the contracts for purchase and sale or lease-purchase of the houses or other areas in the condominium. In the case where it is not clearly mentioned in the contracts for purchase and sale or lease-purchase of the houses or other areas in the condominium, the private and common ownership shall be determined in accordance with this Article.

Article 143. Methods of calculating usable areas of apartments and other areas in condominiums; grading of condominiums

1. Usable area of an apartment or other areas in the condominium under private ownership of the condominium owner shall include the apartment's carpet area and thickness of its inner partition walls as well as balcony and loggia (if any) areas, and exclude the thickness of perimeter walls and party walls as well as areas of columns, riser shaft and riser shaft wall (if any) within such apartment. The balcony area, if included, is the total area of such balcony. In case of balconies with party walls, the area shall be measured from the inner edge of the party walls.

The loggia area, if included, is the total area of such loggia measured from the inner edge of the shared wall or perimeter wall.

In the case where equipment and components of balconies or loggias are part of the facade of the building under the approved design dossiers in accordance with law regulations on construction, such equipment and components shall be under common ownership of the condominium.

2. The areas prescribed in Clause 1 of this Article shall be specifically calculated in accordance with the Regulations on management and use of condominiums.

3. The grading of condominiums must comply with the Government's regulations.

Article 144. Parking lots of condominiums

1. Parking lots for automobiles, two-wheeled and three-wheeled motorcycles, bicycles and vehicles for people with disabilities of condominium owners or users shall be constructed according to at least construction standards and regulations and approved designs by owners of the housing investment projects and used for proper purposes. Parking lots can be arranged in the basements or in other areas inside or outside the condominiums in accordance with the approved master plans or designs. The approved designs must clearly identify the parking area for automobiles and the parking area for two-wheeled and three-wheeled motorcycles, bicycles and vehicles for people with disabilities.

Areas for charging electric vehicles shall be arranged in accordance with construction standards and regulations.

2. The determination of the ownership of and the right to use parking lots are prescribed as follows:

a) Parking lots for bicycles, two-wheeled and three-wheeled motorcycles, and vehicles for people with disabilities of condominium owners or users must be under common ownership and for common use by condominium owners;

b) For parking lots reserved for automobiles of condominium owners, purchasers or lessees-purchasers of apartments or other areas in the condominium may decide to purchase or rent them. In the case where nobody purchases or rents these parking lots, they shall be managed by the owner of the housing investment project and the owner of the housing investment project is not allowed to include the construction cost of parking lots of automobiles in the sale or lease-purchase prices. The owner of the housing investment project shall publicly announce the construction cost of parking lots of automobiles. The arrangement of parking lots for automobiles in a condominium must abide by the principle that parking lots for automobiles of condominium owners shall be prioritized over public parking lots.

The purchase or rent of parking lots for automobiles prescribed in this Point shall be recorded in the apartment purchase and sale or rent-purchase contracts or in separate contracts;

c) The owner of a housing investment project must hand over to each condominium owner a layout of the parking area based on the approved project and design dossiers, which clearly identifies the parking area for condominium owners and users, including parking lots under common ownership, parking lots for automobiles and the public parking area.

3. Parking service prices shall comply with law regulations on pricing.
4. The operation of parking lots shall be managed in accordance with the Regulations on management and use of condominiums.

Section 2

CONDOMINIUM MEETINGS AND CONDOMINIUM MANAGEMENT BOARDS

Article 145. Condominium meeting

1. Condominium meeting means a meeting of condominium owners or of condominium users if the condominium owners are absent. For a single-owner condominium, the condominium meetings shall be attended by the condominium owner and the condominium users.

2. A condominium meeting shall be held to decide on issues prescribed in Clause 3 or 4 of this Article when fully meeting the conditions prescribed in the Regulation on management and use of condominiums. Condominium meetings shall be held in person. In the case where in-person meetings are impossible due to epidemics or natural disasters, online or hybrid (a mixture of in-person and online) meetings can be held.

3. For a multi-owner condominium, a condominium meeting shall decide on the following issues:

a) Nomination, election or dismissal of members of the condominium management board; adoption, amendment and supplementation of an internal regulation on condominium management and use;

b) Approve, amend and supplement operating regulations, financial revenue and expenditure regulations of the condominium management board; decide on the remunerations of members of the condominium management board and other funds for the operations of the condominium management board;

c) Approve the prices of condominium operation management services and the use of maintenance funds. For condominiums prescribed in Clause 4, Article 155 of this Law, where in the apartment purchase or lease-purchase contracts, the parties do not have an agreement on the proportional division of maintenance funds, the condominium meeting shall consider and decide on the proportional division of such funds;

d) Decision on selection of a condominium operation management unit, in the case where there is no owner of the housing investment project or the project owner has no function and capability to manage condominium operation or has the function and capability to manage condominium operation but does not participate in the operation management, or participates in the condominium operation management but fails to meet the requirements agreed upon in the service provision contract signed with the condominium management board;

dd) Approve the maintenance plans for sections under common ownership of the condominium;

e) Adoption of reports on operation management and maintenance of sections under common ownership in the condominium;

g) Other issues related to condominium management and use.

4. For a single-owner condominium, condominium meetings shall be held to decide on the issues prescribed at Points a, b and e, Clause 3 of this Article. In the case where the condominium is public property, condominium meetings shall be held to decide on the issues prescribed at Points b and e, Clause 3 of this Article.

5. Decisions of a condominium meeting on the issues prescribed in Clause 3 of this Article shall be adopted by a majority vote by show of hands or ballot and recorded in a minutes signed by the chairing members and secretary of the condominium meeting.

Article 146. Condominium management board

1. For a single-owner condominium or a multi-owner condominium with fewer than 20 apartments, its owner(s) and users shall agree on deciding whether or not to establish a condominium management board. A condominium management board shall be established as follows:

a) For a single-owner condominium, the condominium management board shall be composed of representatives of the condominium owner and users;

b) For a multi-owner condominium, the composition of the condominium management board must comply with Clause 2 of this Article.

2. For a multi-owner condominium with 20 apartments or more, a condominium management board shall be established and composed of representatives of condominium owners and a representative of the investor (if any). A condominium management board shall be composed of representatives of the condominium owners or condominium users if the respective owners do not participate in, and the owner of the housing investment project who still owns areas in the condominium, unless the owner of the housing investment project does not appoint a representative to join the condominium management board.

3. The management board of a single-owner condominium shall operate after the self-management model. In the case where it is public property, the ownership representative of such public property or the housing management authority shall establish a management board or assign a unit to manage the operation of such condominium.

For multiple-owner condominiums, the condominium management boards shall have their own seals and accounts to operate and exercise the rights and responsibilities prescribed in Article 147 and Article 148 of this Law. The convening of meetings of the condominium management boards, the conditions for meetings, voting methods and other related issues shall comply with the operating regulations of such condominium management boards approved by the condominium meetings.

4. People with experience and knowledge of construction, architecture, finance, law, fire safety are encouraged to join the condominium management boards.

5. Election and dismissal of members of the condominium management boards; determination of the number of members of the condominium management boards;

division and merger of the condominium management boards, condominium dossiers, process and procedures for recognizing the condominium management boards, and coercive handover of condominium dossiers shall comply with the Regulations on management and use of condominiums.

Article 147. Rights of the management board of a condominium

1. For a multi-owner condominium, the management board has the following rights:

a) To request the owner of the housing investment project to transfer all maintenance funds to the condominium management board after it is established and sends a written request for such transfer; to request the competent authority to enforce the coercive transfer of maintenance funds;

b) To manage and use maintenance funds in accordance with this Law and decisions of the condominium meeting;

c) To request condominium meetings to approve the price of the condominium operation management service;

d) To enjoy responsibility remuneration and other expenses under decisions of the condominium meeting;

dd) To request the competent authority to recognize the condominium management board;

e) To request the owner of the housing investment project to hand over condominium dossiers; to request the competent authority to enforce the coercive handover of condominium dossiers;

g) To perform other jobs assigned by the condominium meeting which are not against the law.

2. For a condominium being public property, the condominium management board shall exercise the rights prescribed at Points d and g, Clause 1 of this Article. For other single-owner condominium, the management board shall exercise the rights prescribed at Points d, dd and g, Clause 1 of this Article.

Article 148. Responsibilities of the management board of a condominium

1. For a multi-owner condominium, the management board has the following responsibilities:

a) To register the seal and account of the condominium management board, and account to manage and use maintenance funds; to receive and manage condominium dossiers from the owner of the housing investment project and provide them to the condominium operation management unit in accordance with the Regulations on management and use of the condominium;

b) To manage and use maintenance funds in accordance with financial revenue and expenditure regulations decided by the condominium meeting; to report to the condominium meeting on the collection and expenditure of such funds;

c) To sign a contract on provision of the condominium operation management service with the owner of the housing investment project or a unit with the function and

capacity to manage condominium operation after such unit is selected at a condominium meeting under Point d, Clause 3, Article 145 of this Law.

In the case where no operation management unit is required under Clause 1, Article 149 of this Law and the condominium management board is assigned by the condominium meeting to manage the condominium operation, the condominium management board shall collect and use operation management funds under decisions of the condominium meeting;

d) To select and sign a contract to maintain sections under common ownership of the condominium and supervise such maintenance in accordance with the Regulations on management and use of the condominium. The maintenance of sections under common ownership may be conducted by the unit currently managing the condominium operation or another capable maintenance unit as prescribed by the law regulations on construction;

dd) To urge and remind condominium owners and users to comply with internal rules and the Regulations on management and use of the condominium; to gather and summarize opinions and recommendations of condominium owners and users on the management, use and provision of condominium services, thereby coordinating with relevant authorities, organizations and individuals to consider and resolve the problems;

e) To coordinate with local administrations and population groups in building a civilized lifestyle and maintaining social order and safety in the condominium;

g) To strictly observe the condominium management board's regulations on operation and financial revenues and expenses already approved by the condominium meeting and refrain from dismissing its members or admitting new members on its own;

h) To be held responsible before law and condominium owners and users when exercising the rights and performing the responsibilities in contravention of this Clause;

i) To adhere to regulatory decisions of competent State authorities;

k) To perform other jobs assigned by the condominium meeting which are not against the law.

l) To perform other responsibilities in accordance with the law.

2. For a single-owner condominium, the management board shall perform the responsibilities prescribed at Points dd, e, g, h, i, k and l, Clause 1 of this Article.

3. Decisions of the condominium management board beyond its rights and responsibilities prescribed in this Law and the operating regulations of the condominium management board are legally invalid. Civil transactions that are established and performed ultra vires shall be handled in accordance with the Civil Code. In case of violation, depending on the nature and severity of the violation, members of the condominium management board shall be administratively sanctioned or prosecuted for criminal liability. If causing damage, compensation must be made in accordance with the law.

4. Decisions of members of the condominium management board beyond its rights and responsibilities prescribed in this Law and the operating regulations of the condominium management board are legally invalid. In case of violation, depending on

the nature and severity of the violation, they shall be administratively sanctioned or prosecuted for criminal liability. If causing damage, compensation must be made in accordance with the law.

5. In the case where the condominium management board terminates its operation and the new condominium management board has not been recognized, the commune-level People's Committee of the locality where the condominium is located shall perform the responsibilities of the condominium management board until the new condominium management board is recognized.

Section 3

CONDOMINIUM OPERATION MANAGEMENT

Article 149. Condominium operation management units

1. For condominiums with elevators, the operation management shall be conducted by a unit with the condominium operation management function and capacity. For condominiums without elevators, the condominium meetings shall decide to self-manage the condominium operation or to hire a unit with the condominium operation management function and capacity to manage the condominium operation.

In the case where the owner of the housing investment project directly manages and operates the condominium, it must have the functions and capacity for such operation management as prescribed in Article 150 of this Law.

2. In the case where a condominium must have an operation management unit as prescribed in Clause 1 of this Article, the owners and users of such condominium are not allowed to separately hire different services to perform the operation management. The condominium operation management unit can sign a contract with the service provider to carry out a number of tasks related to the condominium operation management but must be responsible for the operation management under the contract signed with the condominium management board.

3. A condominium operation management unit may manage the operation of more than one condominium in a location or in different locations.

Article 150. Conditions for condominium operation management units

1. The condominium operation management unit must meet the following conditions:

a) It is a public non-business unit or an enterprise, cooperative, or union of cooperatives with the function of managing the operation of condominiums;

b) It has departments in charge of technical issues, customer care, security, fire safety, sanitation, environmental protection, and other relevant departments to perform condominium operation management services;

c) Managers and employees directly involved in the operation management of the condominium operation management unit must have professional qualifications in the fields of construction, electrical engineering, water engineering, fire prevention, fire-

fighting, and operation of equipment attached to the condominium, and must obtain certificates of completion of training and refresher courses in expertise and skills in condominium operation management.

2. The condominium operation management unit may only provide condominium operation management services after receiving a written notification that the unit is qualified to manage the operation of the condominium from a competent State authority.

3. The Government shall detail this Article.

Article 151. Condominium operation management service prices

1. The determination of condominium operation management service prices must be public and transparent and based on operation management tasks and services for each type of condominium.

2. Condominium operation management service prices do not cover expenses for fire insurance and maintenance, parking service, charges for use of fuel, energy, daily-life water, television and communication services, remunerations for the condominium management board, and expenses for other services privately used by condominium owners and users.

The condominium operation management service prices shall be determined in Vietnamese currency and calculated per square meter of apartment usable area or other areas in the condominiums.

3. For a multi-owner condominium, the condominium operation management service price is prescribed as follows:

a) In the case where no condominium meeting has not been held yet, the condominium operation management service price must comply with the agreement made in the house purchase and sale or rent-purchase contracts;

b) In the case where a condominium meeting can be held, the condominium operation management service price shall be negotiated and decided by the condominium operation management unit and the condominium meeting.

4. For a single-owner condominium, the condominium operation management service price shall be agreed between the condominium owner and users in the rent contracts. For a condominium being public property, the condominium operation management service price must comply with Clause 7 of this Article.

5. For mixed-use condominiums, the condominium operation management service prices applicable to the service and business areas and the areas under private ownership used as parking lots for automobiles shall be determined on the following principles:

a) The condominium operation management service prices applicable to the service and business areas shall be agreed upon by the parties depending on the actual business activities in the business quarter and the actual condition of each location in the condominiums;

b) The condominium operation management service prices applicable to the areas under private ownership used as parking lots for automobiles shall be agreed upon by the parties and may be lower than the condominium operation management service

prices applicable to apartments in the same condominium.

6. For solely residential condominiums, the condominium operation management service prices applicable to the areas under private ownership used as parking lots for automobiles shall comply with Point b, Clause 5 of this Article.

7. Provincial-level People's Committees shall promulgate condominium operation management service price frames for application in the following cases:

a) Collection of operation management proceeds for condominiums being public property in their localities;

b) Use as a reference for parties to reach agreement on specific operation management service prices for houses that are not public property or in case of disputes over service prices between condominium operation management units and condominium owners or users. In the case where no agreement on the condominium operation management service price can be reached, the prices in the service price frames promulgated by provincial-level People's Committees shall be applied.

Section 4

MANAGEMENT AND USE OF FUNDS FOR MAINTENANCE OF MULTI-OWNER CONDOMINIUMS

Article 152. Funds for maintenance of multi-owner condominiums

1. For apartments or other areas in the condominium which are put for sale or lease-purchase by the owner of the housing investment project, the purchasers or lessee-purchasers shall contribute maintenance funds equal 2% of the value of such apartments or other areas. This amount shall be separated from the payments for purchase or lease-purchase of the apartments or other areas in the condominium and prescribed in purchase and sale or rent-purchase contracts.

2. For apartments or other areas in the condominium which are retained by the owner of the housing investment project not for sale or lease-purchase or have not yet been put for sale or lease-purchase at the time of handover of the condominium for use, except areas under common ownership for which the owner of the housing investment project shall contribute maintenance funds equal to 2% of the value of retained apartments or areas. Such value shall be calculated according to the highest sale price of apartments in the condominium at the time of handover of the condominium for use.

3. In the case where the owner of the housing investment project signed contracts on purchase and sale or lease-purchase of apartments or other areas in a condominium before July 1, 2006, but has not collected any funds for maintenance, condominium owners shall hold a condominium meeting to agree on the contribution level. The contributions may be made every month into the account at a credit institution or foreign bank's branch operating in Vietnam opened by the condominium management board or when maintenance work arise.

4. In the case where the owner of the housing investment project has signed contracts on purchase and sale or lease-purchase of apartments or other areas in a

condominium after July 1, 2006 until the effective date of this Law, which contain no agreement on maintenance funds, the owner of the housing investment project shall contribute such amount. In the case where purchase or lease-purchase prices in house purchase and sale or lease-purchase contracts do not include maintenance funds, house owners shall contribute maintenance funds in accordance with Clause 3 of this Article.

Article 153. Management and handover of funds for maintenance of multi-owner condominiums

1. The owner of a housing investment project shall open an account to manage maintenance funds in accordance with the following regulations:

a) Before signing contracts for purchase and sale or lease-purchase of apartments and other areas in the condominium, the owner of the housing investment project shall open a payment account at a credit institution or a foreign bank's branch operating in the locality where the condominium is located, to which purchasers or lease-purchasers of apartments and other areas in the condominium, and the owner of the housing investment project can contribute maintenance funds in accordance with Article 152 of this Law. Within 05 working days from the date of opening such account, the owner of the housing investment project must notify in writing the housing management authority of the province where the project is located about the name of the account holder and the account number of the account it just opens, the name of the credit institution or the foreign bank's branch where the account is opened, and the deposit period. The owner of the housing investment project may not request the credit institution or the foreign bank's branch to deduct the funds paid by the parties into the account opened in accordance with this Point for any purpose without handing over the maintenance funds to the condominium management board.

In the case where the maintenance funds have not yet been handed over to the condominium management board and the maintenance of items and equipment under common ownership of the condominium is no longer warranted in accordance with regulations, the owner of the housing investment project shall be responsible for using its own funds to carry out the maintenance of such items and equipment under the facility maintenance plans and processes made in accordance with law regulations on construction. When handing over maintenance funds to the condominium management board, the funds used for such maintenance shall be refunded to the owner of the housing investment project but a specific written report shall be made and attached with the maintenance plans and processes as well as invoices and documents proving this maintenance;

b) When signing contracts for purchase and sale or lease-purchase of apartments and other areas in the condominium, the parties must clearly state in such contracts the details of the account opened in accordance with Point a of this Clause. Before the apartments and other areas in the condominium are handed over to them, the purchasers or lease-purchasers must pay maintenance funds in accordance with Article 152 of this Law to the account stated in the contracts and send copies of payment confirmations to the owner of the housing investment project. In case of failure to pay maintenance funds, the apartments or other areas in the condominium that have been purchased or lease-purchased shall not be handed over. If the owner of the housing investment project still hands over them, the owner of the housing investment project must pay maintenance

funds for such apartments and areas.

2. The handover of maintenance funds is prescribed as follows:

a) After the decision on recognition of the condominium management board is made by the competent authority, the condominium management board shall open an account at a credit institution or a foreign bank's branch operating in Vietnam to manage maintenance funds and send a written request to the owner of the housing investment project to hand over the maintenance funds it has collected in accordance with Clause 1 of this Article;

b) Within 30 days from the date of the written request from the condominium management board, the owner of the housing investment project and the condominium management board shall finalize the data on maintenance funds as a basis for handing over the maintenance funds in accordance with the Regulations on management and use of the condominium;

c) Based on the finalized data on maintenance funds prescribed at Point b of this Clause, the owner of the housing investment project shall request the credit institution or the foreign bank's branch managing its account to transfer the maintenance funds and interests on such maintenance funds to the account established by the condominium management board;

d) The credit institution or the foreign bank's branch shall be responsible for transferring the funds prescribed at Point c of this Clause to the condominium management board according to the data finalized by both parties. Expenses incurred in the transfer of the maintenance funds shall be deducted from the maintenance funds.

3. After the maintenance funds are handed over to the condominium management board, the owner of the housing investment project shall be responsible for closing its account in accordance with the law and notifying in writing the provincial-level housing management authority of the locality where the condominium is located for monitoring.

4. In the case where service operations for the sections under common ownership of the condominium generate revenues, such revenues must be paid into the account of maintenance funds managed by the condominium management board or the person assigned to manage such account, in the case where the establishment of a condominium management board is not required, for the purpose of maintaining the condominium.

The revenues prescribed in this Clause and interests on deposited maintenance funds shall be used for the purpose of maintaining the condominium.

Article 154. Coercive handover of funds for maintenance of multi-owner condominiums

1. In the case where the owner of a housing investment project does not hand over maintenance funds as prescribed in Clause 2, Article 153 of this Law, the condominium management board shall send a written request to the district-level People's Committee of the locality where the condominium is located asking it to request the owner of the housing investment project to hand over maintenance funds.

2. Within 15 days from the date of receiving the written request from the condominium management board, the district-level People's Committee must send a

written request to the owner of the housing investment project asking it to hand over the maintenance funds to the condominium management board.

3. Within 10 days from the date of receiving the written request from the district-level People's Committee, if the owner of the housing investment project fails to hand over the maintenance funds, the district-level People's Committee shall issue a decision on coercive recovery of the maintenance funds and enforce such decision to recover and hand over the funds to the condominium management board.

While enforcing the decision on coercive handover of maintenance funds, if the signs of crime committed by the owner of the housing investment project have been detected, the district-level People's Committee shall send a written recommendation enclosed with relevant evidence and documents to the competent investigation body for further consideration and handling in accordance with the law.

4. The Government shall detail this Article.

Article 155. Use of funds for maintenance of multi-owner condominiums

1. Maintenance funds shall only be used to maintain and replace items and equipment under common ownership of the condominium under the maintenance plans approved by the condominium meeting. The condominium management board may be allowed to use such maintenance funds for the purpose of managing the operation of the condominium and other purposes. In the case where a condominium must be demolished in accordance with this Law but the maintenance funds have not been used up, the remaining funds shall be used to support the resettlement or included in the funds for maintenance of the sections under common ownership of the new condominium after the reconstruction

2. The use of maintenance funds must be recorded in invoices and supporting documents and reported to the condominium meeting.

3. In the case where the paid maintenance funds are used up, condominium owners shall pay maintenance funds when performing maintenance under the maintenance plans approved by the condominium meeting or when items or equipment of the condominium should be maintained in an ad-hoc manner.

4. In the case where in the same mixed-use condominium there are different functional quarters, including apartments and business and service quarters, each having sections under common ownership separated from those under common ownership of the whole condominium and independently managed and operated, the owner of the housing investment project and purchasers or lessee-purchasers of apartments or other areas in such condominium shall agree in purchase and sale or lease-purchase contracts, or make addenda to such contracts, on division of maintenance funds into smaller portions for management and use.

The proportional division of maintenance funds under agreement prescribed in this Clause shall be calculated as the percentage of the floor area of each functional quarter in the condominium to the total floor area of the condominium.

5. The funds for maintenance prescribed in Clause 4 of this Article shall be managed as follows:

a) Maintenance funds of the condominium and the sections under common ownership of the apartment complex shall be transferred to the account opened by the condominium management board in accordance with Point a, Clause 2, Article 153 of this Law for management and use thereof;

b) The fund portion for maintenance of the business and service quarter may be managed and used by owners of the business and service quarter for maintenance of sections under common ownership of this functional quarter.

6. For condominiums where the establishment of condominium management boards is not required in accordance with this Law, the condominium owners and users shall agree to appoint a representative to manage the account of maintenance funds and the use of the condominium maintenance funds.

Section 5

MANAGEMENT AND USE OF TECHNICAL INFRASTRUCTURE FACILITIES IN AREAS WHERE CONDOMINIUMS ARE LOCATED

Article 156. Technical infrastructure facilities in areas where condominiums are located that must be handed over and the time of handover

1. Technical infrastructure facilities in areas where condominiums are located, which are constructed under projects and must be handed over to the local governments or specialized authorities or managed by the owner of the housing investment project after the projects are completed, must be identified in the approved investment policies or projects.

2. For facilities that must be handed over, after acceptance in accordance with law regulations on construction, the owners of housing investment projects shall be responsible for handing over such facilities. Based on the approved progress or phasing of the projects, the owners of housing investment projects can hand over all facilities or separate facilities to the local governments or specialized authorities for management.

Article 157. Handover, reception and management of technical infrastructure facilities in areas where condominiums are located

1. The owner of a housing investment project shall submit a written request for handover, accompanied by a dossier of technical infrastructure in the area where the condominium is located, to the competent receiving authority.

2. The authority receiving the technical infrastructure facilities in the area where the condominium is located is responsible for receiving it for management and utilization thereof. The handover and reception must be made in writing.

3. While the technical infrastructure facilities in the area where the condominium is located has not yet been handed over, the owner of the housing investment project is responsible for maintenance, management, operation and utilization thereof under the approved projects.

Article 158. Management and utilization of technical infrastructure facilities

in areas where condominiums are located

1. For technical infrastructure facilities in areas where condominiums are located that must be handed over, the receiving authority must manage and utilize them in line with their objectives and functions and must maintain them in accordance with law regulations on construction, ensuring that such facilities operate normally.

The State shall be responsible for allocating the State budget to manage the operation, maintenance, and utilization of technical infrastructure facilities in areas where condominiums are located, which have been handed over to local governments or specialized authorities.

2. For technical infrastructure facilities in areas where condominiums are located that shall not be handed over, the owner of the housing investment project shall be responsible for managing, utilizing, and maintaining them in line with their objectives and functions, in accordance with the law and agreements with the condominium owners and users, ensuring that such facilities operate normally.

Chapter X

HOUSING TRANSACTIONS

Section 1

GENERAL PROVISIONS

Article 159. Housing transactions

Housing transactions include purchase and sale, lease-purchase, lease, donation, exchange, inheritance, mortgage, contribution as capital, lending, permission for stay at, and authorized management of houses.

Article 160. Conditions for houses to be transacted

1. Houses in transactions of purchase and sale, lease-purchase, donation, exchange, mortgage and contribution as funds must fully meet the following conditions:

a) The houses are granted certificates as prescribed by the law, unless otherwise prescribed in Clause 2 of this Article;

b) The houses are not involved in any disputes, complaints or lawsuits regarding ownership rights in accordance with law regulations on settlement of disputes, complaints and denunciations;

c) The houses are currently within house ownership term in case of definite-term house ownership;

d) The houses are not sequestered to execute court judgments or to adhere to effective administrative decisions of competent State authorities, or not subject to interim urgent measures or preventive measures under decisions of the courts or competent State authorities;

dd) Not being subject to a land recovery decision, ground clearance or house demolition notice of a competent authority;

e) The conditions prescribed at Points b and c of this Clause are not applicable to purchase and sale or lease-purchase of off-plan houses.

2. Houses in the following house transactions are not required to have certificates:

a) Purchase and sale, rent-purchase, and mortgage of off-plan houses; sale of houses in case of dissolution or bankruptcy;

b) Donation of houses of gratitude, houses of compassion, and houses of great national unity;

c) Purchase and sale or lease-purchase of existing houses from owners of housing investment projects in the following cases: houses being public property; social houses, houses for the people's armed forces, houses for resettlement that are not public property;

d) Lease, lending, permission for stay at or authorized management of houses;

dd) Inheritance of houses.

Papers proving the satisfaction of the conditions for houses to be transacted prescribed in this Clause must comply with regulations of the Government.

3. Houses for lease must, in addition to the conditions prescribed at Points c, d and dd, Clause 1 of this Article, also ensure quality and safety for lessees, have sufficient electricity, water supply, and drainage systems and ensure environmental sanitation, unless otherwise agreed upon by the parties.

Article 161. Conditions on parties to housing transactions

1. The seller, lessor-seller, lessor, donor, exchanging party, testator, mortgagor, capital contributor, lender, or the one that permits stay at, or authorize the management of a house must meet the conditions for participants in such transaction in accordance with civil law regulations.

2. An individual who purchases, rent-purchases, rents, receives, accepts house exchange, inherits, accepts as mortgage, receives as capital contribution, borrows or is permitted stay at or authorized to manage a house shall meet the conditions for participants in such transaction in accordance with civil law regulations and the following regulations:

a) If such person resides in Vietnam, he/she may not register his/her residence in the house in such transaction;

b) If such person is a foreigner or an overseas Vietnamese national, he/she must be eligible to own a house in Vietnam in accordance with this Law and may not register his/her residence in the house in such transaction. In addition to the foregoing, an overseas Vietnamese national must comply with the Law on Land.

3. An organization that purchases, rent-purchases, rents, receives, accepts house exchange, inherits, accepts as mortgage, receives as capital contribution, borrows or is permitted stay at or authorized to manage a house shall meet the conditions for participants in transactions in accordance with civil law regulations, regardless of its

place of business registration or establishment. Foreign organizations must be entitled to own houses in Vietnam in accordance with this Law. Organizations authorized to manage houses must have the function of real estate service provision and be operating in Vietnam in accordance with the law regulations on real estate business.

Article 162. Order and procedures for conducting housing transactions

1. Parties to a housing transaction shall reach agreement on making a contract on purchase and sale, lease-purchase, lease, donation, exchange, mortgage, contribution as funds, lending, permission for stay at, authorized management of a house (hereinafter collectively referred to as house contract) which must contain the details prescribed in Article 163 of this Law. In the case where organizations donate houses of gratitude, houses of compassion, and houses of great national unity, only a donation document shall be made.

2. Parties shall agree to choose one of them to submit to a competent State authority a dossier of application for a certificate for such house. In the case of purchase or rent-purchase of houses from project owners, such owners shall carry out procedures for competent State authorities to grant certificates to purchasers or lessee-purchasers, unless purchasers or lessee-purchasers voluntarily carry out procedures to apply for certificates.

3. In the case where a party purchases, rent-purchases, rents, receives, accepts house exchange, inherits, accepts as mortgage, receives as capital contribution a house together with transfer of residential land use rights and has the right to receive residential land use rights together with such house, the competent State authority shall recognize the house ownership and residential land use rights for the party receiving the house ownership at the same time it is granting the certificate for such house.

Article 163. House contract

A house contract shall be agreed upon by parties and established in writing and must include the following details:

1. Full names of individuals, names of organizations and addresses of the parties;
2. Description of characteristics of the house and characteristics of the residential land parcel to which the house is attached.

For apartment purchase and sale contracts and lease-purchase contracts, the parties must clearly state the sections under common ownership and for common use; the useful life of the condominium according to the design dossier; usable area under private ownership; apartment floor area; use purposes of sections under common ownership and for common use in the condominium in accordance with the approved design purposes; condominium operation management service prices in the case where the first condominium meeting has not yet been held; the responsibility for payment and the levels of maintenance funds and the details of the account receiving maintenance funds;

3. Capital contribution value or house transaction price if the contract has a price agreement. For house purchase and sale, lease-purchase, and lease subject to price regulations promulgated by the State, parties shall comply with such regulations;

4. Payment time and method, for house purchase and sale, lease-purchase, and lease;

5. Time for house handover; house warranty period, for purchase or lease-purchase of newly constructed houses; house lease-purchase or lease term, mortgage, lending, period of stay or authorized management; funds contribution time limit; house ownership duration in case of sale and purchase of houses with definite-term house ownership;

6. Rights and obligations of the parties.

In case of rent-purchase of houses, the rights and obligations of the parties regarding repair of damages to the houses during the rent-purchase period must be clearly stated;

7. Commitments of the parties;

8. Other agreements;

9. Effective time of the contract;

10. Signing date of the contract;

11. Signatures and full names of the parties, and seals (if any) and positions of the signatories, for organizations.

Article 164. Notarization or certification of house contracts and effective time of house contracts

1. Contracts on purchase and sale, rent-purchase, donation, exchange, contribution as funds and mortgage of houses shall be notarized or certified, unless otherwise prescribed in Clause 2 of this Article.

For transactions prescribed in this Clause, the effective date of the contract is the date of completion of notarization or authentication in accordance with law regulations on notarization and authentication.

2. In case of donation of houses of gratitude, houses of compassion, and houses of great national unity; purchasing, purchase and sale or lease-purchase of houses being public property; purchase and sale or lease-purchase of houses to which either party is an organization, including: social houses, houses for the people's armed forces, houses for resettlement; contribution of houses as capital to which either party is an organization; lease, lending, permission for stay at or authorized management of houses, notarization or authentication of the contracts is not required, unless the parties need it.

For a transaction prescribed in this Clause, the effective time of the contract shall be agreed upon by the parties. In the case where they reach no agreement, the effective time of the contract is the time of its signing.

3. House inheritance documents shall be notarized or certified in accordance with the civil law regulations.

4. House contracts shall be notarized by notarization-practicing organizations. House contracts shall be certified by commune-level People's Committees of localities where houses are located.

Section 2

PURCHASE AND SALE OF HOUSES

Article 165. House sale and purchase transactions

1. House purchase and sale shall be conducted under a contract which must contain the details prescribed in Article 163 of this Law. The parties can agree on the definite-term ownership of the house from the seller to the purchaser in accordance with Clause 2 of this Article.

2. The purchaser and seller of a house shall agree on:

a) The house ownership term of the purchaser; the purchaser's rights and obligations during the house ownership term; the responsibility for registration and procedures for issuance of a certificate to the purchaser.

In the case where the parties agree that the purchaser has the right to sell, donate, bequeath, or contribute the house as capital during the house ownership term, the purchaser, the donee, the heir, or the capital contribution recipient can only own such house for the term stated in the certificate granted to the seller, the donor, the testator, or the capital contributor;

b) Handover of the house and the recipient of the house after the expiration of the house ownership term;

c) Handling of the certificate at the end of the house ownership term and the responsibilities of the parties in implementing the house purchase and sale contract;

d) Other agreements.

3. In the case where the definite-term house ownership is agreed upon in a house purchase and sale transaction, the competent authority issuing the certificate must clearly state the house ownership term in the certificate.

Article 166. Sale and purchase of houses with definite-term house ownership

Sale and purchase of a house with definite-term house ownership as prescribed in Clause 1, Article 165 of this Law shall be prescribed as follows:

1. During the house ownership term, the house purchaser exercises the rights and obligations as agreed in the contract;

2. When the ownership term expires, the certificate issued to the purchaser is no longer legally valid. House ownership is transferred back to the house seller.

The house seller or the seller's lawful heir(s) requests the competent authority to issue a certificate for such house. The process and procedures for grant of certificates prescribed in this Clause must comply with the law regulations on land.

3. In the case where the initial owner is an organization that goes bankrupt, dissolves itself or ceases its operations, the house of such organization shall be handled in accordance with law regulations on bankruptcy, dissolution or cease of operations and its ownership of such house shall be transferred to the individual or organization entitled to own such house in accordance with law regulations on bankruptcy,

dissolution or cease of operation.

In the case where the initial owner is an individual who dies without any heir(s) or the heir(s) refuses to inherit the house, the establishment of the house ownership shall comply with the Civil Code;

4. While the house owner is being identified, the organization or individual managing the house may continue to manage it and may not exercise the owner's rights to such house. The handover of the house is carried out within 3 months from the date the house owner is identified.

Article 167. House purchase and sale with deferred payment or installment payment

1. The house purchase and sale with deferred payment or installment payment shall be agreed upon by the parties and clearly stated in the house purchase and sale contracts. During the period of deferred payment or installment payment, purchasers are entitled to use houses and responsible for maintaining such houses, except houses which remain in the warranty period in accordance with this Law or the parties agree otherwise.

2. Purchasers of houses on deferred payment or installment payment may conduct transactions of purchase and sale, donation, exchange, mortgage or contribution as funds of such houses with other parties only after making full payments for the houses, unless otherwise agreed by the parties.

In the case where during the period of deferred payment or installment payment, the house purchaser that is an organization goes bankrupt, dissolves itself or ceases its operations, the rights and obligations of the house purchaser shall comply with law regulations on bankruptcy, dissolution or cease of operations.

In the case where the purchaser dies during the period of deferred payment or installment payment, his/her lawful heir(s) may continue exercising his/her rights and performing his/her obligations and be granted a certificate by a competent State authority after making full payments to the seller.

3. In the case where the purchaser wishes to return the purchased house during the period of deferred payment or installment payment and obtain consent of the seller, the parties shall reach agreement on the method of returning the house and refund of the house payment.

Article 168. Purchase and sale of houses currently on lease

1. In the case where the house owner sells the house currently on lease, he/she must notify the lessee in writing about the sale and the conditions for selling such house. The lessee has the right of priority to purchase the house if he/she has fully paid the rents to the lessor by the time the lessor notifies the sale of the house currently on lease, unless otherwise prescribed in the Civil Code. Within 30 days from the date the lessee receives the notice but fails to purchase the house, the house owner has the right to sell the house to another person, unless the parties have otherwise agreed on a time limit.

2. The sale of houses being public property currently on lease must comply with Section 2, Chapter VIII of this Law.

In the case where parties have signed a house purchase and sale contract but the State needs to buy such house for use for national defense or security purposes or in the national interest, or in state of emergency or for natural disaster prevention and control, the chairperson of the provincial-level People's Committee shall issue a decision on prior purchase of such house. The purchase price, conditions and payment method must comply with the agreements in the house purchase and sale contract signed by the parties. The State shall pay compensations for damage (if any) to the parties. The house purchase and sale contract signed by the parties must become legally invalid.

Section 3

HOUSE RENT

Article 170. Lease term, rent rates, house sublease

1. The lessor and lessee may agree on the lease term and rental rate and payment method, installment or lump-sum payment. In the case where the State has regulations on house rent rates, the parties shall comply with such regulations.

2. In the case where the lessor renovates the house and receives the lessee's consent, the lessor is entitled to adjust the house rent rates if the remaining rent term is one-third or less of the term of the house rent contract. The new rent rate shall be agreed upon by the parties. If they cannot reach agreement, the lessor is entitled to unilaterally terminate the house rent contract and shall pay compensations to the lessee in accordance with the law.

3. Their lawful rights and interests of lessors and lessees shall be protected by the State in the course of lease.

4. A lessee may sublet leased houses with the consent of the lessor.

Article 171. Cases of termination of house rent contracts

1. In the case of lease of a house being public property, the house rent contract may be terminated in one of the cases prescribed in Clause 1, Article 127 of this Law.

2. In the case of lease of a house being public property, the house rent contract may be terminated in one of the following cases:

a) The contract expires. A contract with an indefinite term shall be terminated 90 days after the lessor notifies the lessee of the contract termination;

b) The parties agree to terminate the contract;

c) The leased house no longer exists;

d) The individual lessee dies or is declared missing by a court without anybody sharing the house;

dd) The organization which rents the house has dissolved itself, gone bankrupt, or ceased its operations;

e) The leased house is severely damaged or in danger of collapse or located in an area subject to a land recovery, house clearance or demolition decision issued by a

competent State authority; the leased house is subject to compulsory purchase or requisition by the State for use for other purposes.

The lessor shall notify in writing the lessee of the termination of the rent contract prescribed at this Point at least 30 days before the termination, unless in force majeure events or otherwise agreed by the parties;

g) The cases prescribed in Article 172 of this Law.

Article 172. Unilateral termination of performance of house rent contracts

1. During the house lease term as agreed upon in the contract, the lessor may not unilaterally terminate the contract and recover the leased house, unless otherwise prescribed in Clause 2 of this Article.

2. The lessor may unilaterally terminate the house rent contract and recover the leased house in one of the following cases:

a) The lessor of a house being public property, social house, house for the people's armed forces, and worker accommodation in an industrial park leases it ultra vires or to an inappropriate or ineligible beneficiary in accordance with law regulations on housing;

b) The lessee has failed to pay rental as agreed upon in the contract for 3 or more consecutive months without reasons as agreed upon in the contract;

c) The lessee uses the house not for purposes agreed upon in the contract;

d) The lessee breaks, expands, renovates or demolishes the leased house without permission;

dd) The lessee exchanges, lends or sublets the leased house without consent of the lessor;

e) The lessee causes disorder or environmental insanitation, seriously affecting the daily life of the neighborhood and fails to stop his/her act after having been warned in writing for the third time by the lessor, head of the residential quarter or chief of the village or hamlet;

g) The cases prescribed in Clause 2, Article 170 of this Law;

3. The lessee may unilaterally terminate the performance of the house rent contract when he/she is in one of the following cases:

a) The house lessor fails to repair the house when it is severely damaged;

b) The house lessor increases the house rent rate unreasonably or without notifying such in advance to the lessee as agreed upon in the contract;

c) When the house use right is restricted by the interests of a third person.

4. Any party that unilaterally terminates the house rent contract shall notify in writing or otherwise agreed upon in the contract the other party at least 30 days in advance, unless otherwise agreed upon by the parties. If violating this Clause and causing damage, the party unilaterally terminating the house rent contract shall pay compensation in accordance with the law.

1. In the case where the house owner dies while the house lease term has not expired, the lessee may continue renting the house until the expiration of the contract. The heir shall continue performing the previously signed house rent contract, unless otherwise agreed upon by the parties. In the case where the owner does not have any lawful heir(s), the Civil Code shall prevail.

2. In the case where the house owner transfers the ownership of the house currently on lease to another person while the house lease term has not expired, the lessee may continue renting the house until the expiration of the contract, and the new house owner shall continue performing the previously signed house rent contract, unless otherwise agreed upon by the parties.

3. When the lessee dies while the house lease term has not expired, the person who lives together with the lessee may continue renting the house until the rent contract expires, except for lease of official-duty houses and otherwise agreed upon by the parties or prescribed by law.

Section 4

HOUSE RENT-PURCHASE

Article 174. House rent-purchase

1. Rent-purchase of a house shall be conducted under a contract containing the details prescribed in Article 163 of this Law. In the case of rent-purchase of houses constructed by an organization or individual, a rent-purchase contract shall be signed between such organization or individual and the lessee-purchaser. In the case of rent-purchase of houses being public property, the signing of rent-purchase contracts must comply with Points a and b, Clause 3, Article 126 of this Law.

2. Upon the expiration of the contractual rent-purchase term, if the lessee-purchaser has fully paid the rental-purchase payment as agreed upon, the lessor-seller shall carry out the procedures requesting a competent State authority to grant a certificate to the lessee-purchaser, unless the latter voluntarily carries out such procedures.

Article 175. Rights and obligations of lessee-purchasers of houses under lease-purchase

1. The lessee-purchasers shall comply with this Law and perform other rights and obligations as agreed upon in house rent-purchase contracts.

In the case of termination of a house rent-purchase contract after the lessee-purchaser receives the house, he/she shall return such house to the lessor-seller and may be refunded the amount he/she has initially paid, unless otherwise prescribed at Point d, Clause 2 of this Article, Points e and h, Clause 1, Article 127, and Points a, b, c, d and dd, Clause 2, Article 176 of this Law.

2. Where a lessee-purchaser dies, the case shall be settled as follows:

a) If his/her lawful heir(s) is living in such house, such lawful heir(s) may

continue to rent-purchase that house, unless the lawful heir(s) voluntarily return(s) the house;

b) If his/her lawful heir(s) is not living in such house and the lessee-purchaser has completed two-thirds or more of the lease-purchase term, such lawful heir(s) may pay the remaining amount to own the house and such house shall be granted a certificate by the competent State authority thereafter. In the case of lease-purchase of social houses or houses for the people's armed forces, less than two-thirds of the lease-purchase term is completed, the lawful heir who is an individual beneficiary prescribed in Article 76 of this Law may continue to rent-purchase and perform the obligations of the lessee-purchaser of such house under the contract signed earlier;

c) If his/her lawful heir(s) fails to meet the conditions prescribed at Points a and b of this Clause, the lessor-seller may recover the house and the lawful heir(s) is entitled to refund of the amount initially paid by the lessee-purchaser plus an interest calculated under regulations on inter-bank demand deposit interests at the time of refund;

d) If the lessee has no lawful heir(s), the initially paid rent-purchase amount must belong to the State in accordance with the Civil Code and the lessor-seller may recover the house for signing a lease or lease-purchase contract with another person eligible for rent or rent-purchase of houses in accordance with this Law.

Article 176. Cases of termination of rent-purchase contracts and recovery of houses on rent-purchase

1. In the case of rent-purchase of a house being public property, the rent-purchase contract may be terminated and the house may be recovered in one of the cases prescribed at Points a, c, e, g and h, Clause 1, Article 127 of this Law.

2. In the case of rent-purchase of a social house or a house for people's armed forces that is not public property, the lessor-seller may terminate the rent-purchase contract and recover the house under lease-purchase in one of the following cases:

a) The lessee-purchaser sub-leases or sells the house to another person within the rent-purchase term without permission;

b) After signing the rent-purchase contract, the lessee-purchaser is identified as inappropriate or ineligible for such rent-purchase in accordance with this Law;

c) The lessee-purchase has failed to pay rental as agreed upon in the contract for 3 or more consecutive months without reasons as agreed upon in the contract;

d) The lessee-purchaser breaks, expands, renovates or demolishes the house;

dd) The lessee-purchaser uses the houses not for the purpose as agreed upon in the rent-purchase contract;

e) The cases prescribed at Points c and d, Clause 2, Article 175 of this Law;

g) Other cases prescribed in Clause 3 of this Article;

3. Lessee-purchasers not prescribed in Clauses 1 and 2 of this Article may terminate rent-purchase contracts according to the contractual agreements. In the case where they have received houses, they shall return such houses to the lessor-sellers.

Section 5

DONATION, EXCHANGE, CONTRIBUTION AS CAPITAL, LENDING OF, AND PERMISSION FOR STAY AT, HOUSES

Article 177. House donation

1. Donation of houses under common ownership is prescribed as follows:

a) The donation of a house under common ownership by integration must obtain written consolidated consent of all co-owners of such house.

b) In case of donating a house under common ownership by shares, co-owners of such house can only donate the house sections under their respective ownership.

2. Donation of houses on lease is prescribed as follows:

a) The owner of a house currently on lease shall notify in writing the lessee of the house donation at least 30 days in advance.

b) The lessee is entitled to continue renting the house until the expiration of the rent contract signed with the donor, unless otherwise agreed by the parties.

3. The donation of houses in other cases shall comply with civil law regulations and other relevant law regulations.

Article 178. House exchange

1. Exchange of houses under common ownership is prescribed as follows:

a) The exchange of a house under common ownership by integration must obtain written consolidated consent of all co-owners of the house;

b) In case of exchanging a house under common ownership by shares, co-owners of such house can only exchange the house sections under their respective ownership.

2. Exchange of houses on lease is prescribed as follows:

a) The owner of a house currently on lease shall notify in writing the lessee of the house exchange at least 30 days in advance.

b) The lessee is entitled to continue renting the house until the expiration of the rent contract signed with the former owner, unless otherwise agreed by the parties.

c) If the house and house ownership exchange entail a difference in the value of the house, the parties to the house exchange shall pay such value difference, unless otherwise agreed by the parties.

3. The exchange of houses in other cases shall comply with civil law regulations and other relevant law regulations.

Article 179. Contribution of houses as capital

1. Conditions for contribution of houses as capital are prescribed as follows:

a) House owners or owners of commercial housing investment projects are entitled to contribute houses as funds for participation in business activities in sectors not banned by law at such houses. The contribution of a house as capital shall be made

under a contract which must contain the details prescribed in Article 163 of this Law.

b) Houses to be contributed as funds must be ready-built houses and meet the conditions prescribed in Clause 1, Article 160 of this Law.

2. Contribution as capital of houses under common ownership is prescribed as follows:

a) The contribution as capital of a house under common ownership by integration must obtain written consolidated consent of all co-owners of the house;

b) In case of contributing as capital a house under common ownership by shares, co-owners of such house can only contribute as capital the house sections under their respective ownership.

3. Contribution as capital of houses on lease is prescribed as follows:

a) The owner of a house currently on lease shall notify in writing the lessee of the contribution as capital of such house at least 30 days in advance.

b) The lessee is entitled to continue renting the house until the expiration of the rent contract signed with the capital contributor, unless otherwise agreed by the parties.

4. The contribution of houses as capital in other cases shall comply with civil law regulations and other relevant law regulations.

Article 180. Lending of houses, permission for stay at houses

1. The lending of, and permission for stay at, a house under common ownership by integration must obtain written consent of all co-owners of such house. For a house under common ownership by shares, co-owners may lend or permit stay at the house sections under their respective ownership without affecting the interests of other co-owners. A person lending his/her house is entitled to reclaim the house and a person permitting stay at his/her house is entitled to terminate the stay upon termination of the contract as prescribed in Clause 2 of this Article and as agreed in the contract.

2. A contract for lending of, or permitted stay at, a house shall be terminated in the following cases:

- a) The period of lending of, or permitted stay at, the house has expired;
- b) The house lent or permitted for stay no longer exists;
- c) The person who borrows or stays at the house dies or is missing as declared by a court;
- d) The organization which borrows or stays at the house has dissolved itself, gone bankrupt or ceased its operations;
- dd) The house lent or permitted for stay is in danger of collapse or subject to ground clearance, demolition or land recovery under a decision of a competent State authority;
- e) Other cases as agreed by the parties.

HOUSE MORTGAGE

Article 181. House mortgagor and mortgagee

1. A house owner that is an organization may mortgage its house at a credit institution operating in Vietnam.
2. A house owner that is an individual may mortgage his/her house at a credit institution or an economic organization operating in Vietnam or to an individual in accordance with the law, unless otherwise prescribed in Clause 3 of this Article.
3. In case of mortgage of housing investment projects and off-plan houses, Article 183 of this Law shall be complied with.

Article 182. Mortgage of houses currently on lease

1. An owner may mortgage his/her house currently on lease but shall notify in writing the lessee of the mortgage and the mortgagor of the current lease of the house in advance. The lessee is entitled to continue renting the house until the expiration of the rent contract, unless otherwise agreed by the parties.
2. In the case where a house currently on lease is handled for the performance of the obligations of the house mortgagor, the lessee is entitled to continue renting the house until the expiration of the rent contract, unless he/she violates Clause 2, Article 172 of this Law or otherwise agreed by the parties.

Article 183. Mortgage of housing investment projects and mortgage of off-plan houses

1. Owners of housing investment projects may mortgage part or the whole of the projects or mortgage houses in the projects at credit institutions operating in Vietnam for loans to construct, purchase, renovate or repair such houses. The mortgage of projects or houses must include mortgage of land use rights.
2. In the case where the owner of a housing investment project has mortgaged part or the whole of its project or houses and needs to raise funds in accordance with law regulations on housing or wants to sell or lease-purchase such houses, the mortgage of part or the whole of such project or houses and land use rights shall be released before contracts for capital mobilization, house purchase and sale, or house lease-purchase with its customers, unless otherwise prescribed at Point b, Clause 3 and Point a, Clause 4, Article 88 of this Law.

The certification that the house mortgage has been released before signing house purchase and sale or lease-purchase contracts with customers under this Clause shall be clearly stated in the notice of satisfaction of the sale conditions of houses issued by the provincial-level housing management authority of the locality where the houses are located. The owner shall be responsible for providing customers with written notification that the houses are eligible to be sold when signing house purchase or lease-purchase contracts. In case of fund raising, the owner must provide the capital contributors with the mortgage release document by the credit institution when signing the capital contribution contracts.

residential land parcels; and organizations and individuals that purchase off-plan houses under housing investment projects from the project owners may mortgage such houses at credit institutions operating in Vietnam for loans to construct, purchase, renovate or repair such houses.

Article 184. Conditions for mortgage of housing investment projects and mortgage of off-plan houses

1. Conditions for partial or wholly mortgage of a housing investment project and mortgage of off-plan houses are prescribed as follows:

a) In the case where an owner of the housing investment project mortgages part or the whole of its housing investment project, an approved project dossier and technical design and a certificate or land allocation or lease decision of a competent State authority are required;

b) In the case where an owner of a residential housing investment project mortgages off-plan houses to be constructed under a project, such houses must, in addition to the conditions prescribed at Point a of this Clause, have their foundations completely constructed in accordance with the law regulations on construction and must not belong to the part of the project or to the whole residential housing investment project already mortgaged by the owner under Point a of this Clause, unless the mortgage has been released;

c) In the case where an organization or individual mortgages a off-plan house in its/his/her lawful residential land plot, it/he/she must have papers proving its/his/her lawful residential land use rights as prescribed by the law regulations on land and a construction permit, in case such permit is required.

In the case where the a organization or individual mortgages an off-plan house purchased from an owner of a housing investment project, it/he/she must have a house purchase and sale contract signed with the owner of such housing investment project or a house purchase and sale contract transfer document if it/he/she acquires a house purchase and sale contract, and papers proving that it/he/she has made payments for the house to the owner of the project according to the schedule agreed upon in the house purchase and sale contract and there is no dispute, complaint, or lawsuit over the house purchase and sale contract or documents on transfer of such contract in accordance with law regulations on settlement of disputes, complaints and denunciations.

2. Conditions for mortgage of a part of or the whole housing investment project and mortgage of off-plan houses shall comply with this Law. Mortgage of a part of or the whole housing investment project or mortgage of off-plan houses in contravention of this Law must be legally invalid.

Article 185. Handling of mortgaged houses or housing investment projects

1. The handling of mortgaged houses, including handling of mortgaged off-plan houses, must comply with this Law, the civil law regulations and other relevant law regulations.

2. Mortgaged property that are part or the whole of a housing investment project shall be handled in accordance with civil law regulations and other relevant law regulations. The organization receiving the transfer of part or the whole of the project

must be qualified to be the owner of such housing investment project and must carry out procedures for receiving the transfer of part or the whole of such project in accordance with this Law and other relevant law regulations.

Section 7

HOUSE MANAGEMENT AUTHORIZATION

Article 186. Details and scope of house management authorization

1. House management authorization means that a house owner authorizes another organization or individual to exercise his/her rights and perform his/her obligations in the management of his/her house during the period of authorization. Management authorization is applicable only to ready-built houses.

2. The details and duration of housing management authorization shall be agreed upon by the parties and recorded in the housing management authorization contract in accordance with civil law regulations.

3. The house management authorizer shall pay management expenses, unless otherwise agreed by the parties.

Article 187. Authorized management of houses under common ownership

1. The authorized management of a house under common ownership by integration must be consented by co-owners of the house.

2. Co-owners of a house under common ownership by shares may authorize other organizations or individuals to manage house sections under their respective ownership without affecting the interests of other co-owners and shall be responsible for notifying other co-owners of the authorization to manage such house sections.

Article 188. Termination of house management authorization contracts

House management authorization contracts shall be terminated in accordance with civil law regulations or at the request of competent authorities resolving disputes or handling housing-related law violations.

Chapter XI

SATE-LEVEL GOVERNANCE OF HOUSING

Article 189. Tasks of State-level governance of housing

1. Developing the National Housing Development Strategy, directing and guiding the implementation of housing development strategies, projects, programs and plans.

2. Promulgating legal documents on housing, mechanisms and policies for housing development and management, and organizing the implementation thereof.

3. Elaborating and promulgating house standards and technical regulations, classifying houses, and managing housing quality; grading condominiums.

4. Appraising details related to housing during the process of deciding or approving investment policies for housing investment projects; deciding on the owners of housing investment projects.

5. Managing house dossiers; managing houses being public property; managing housing investment projects.

6. Conducting surveys and collecting statistics, developing the housing database and information system; managing and operating the housing database and information system and providing housing data and information.

7. Researching and applying science and technology, and popularizing legal knowledge in the housing field.

8. Training and retraining human resources to meet housing development and management requirements.

9. Managing housing-related public services; promulgating price frames for rent rates of social houses, houses for the people's armed forces, worker accommodations in industrial parks, and houses being public property.

10. Providing guidance on, urging, examining and inspecting the settlement of, and settling complaints, disputes and denunciations, and handling housing-related law violations.

11. Implementing international cooperation on housing.

Article 190. State authorities in charge of housing

1. The Government shall perform the uniform State-level governance of housing nationwide.

2. The Ministry of Construction shall be the body in charge of helping the Government perform uniform State-level governance of housing.

3. Related ministries, ministerial-level authorities and sectoral authorities shall, within the ambit of their tasks and powers, perform the State-level governance of housing and coordinate with the Ministry of Construction in governing housing at State level.

4. People's Committees at all levels shall, within the ambit of their tasks and powers, perform the State-level governance of housing in their localities.

Article 191. The Ministry of Construction shall

1. Assume the prime responsibility for formulating and submitting to the Government and Prime Minister legal documents, strategies, and schemes on housing.

2. Develop and submit to competent authorities for promulgation or itself promulgate within its ambit the mechanisms and policies to mobilize resources to invest in housing development; key housing development programs, schemes and projects as the tasks assigned by the Government and the Prime Minister, and guide, inspect and implement them after approval thereof. Develop and submit to the Government for promulgation or itself promulgate within its ambit the detailed regulations and guidelines on the implementation of Article 198 of this Law.

3. Determine basic targets for housing development in the socio-economic

development tasks from time to time in accordance with the National Housing Development Strategy. Provide specific regulations on funding levels to develop provincial-level housing development programs and plans.

4. Promulgate and organize the implementation of legal documents on housing within its ambit; specify standards and technical regulations for houses and worker accommodations in industrial parks; issue sample contracts for purchase and sale, lease-purchase, and lease of social houses, houses for resettlement, and houses being public property.

5. Perform some of the following task regarding official-duty houses:

a) Develop standards and norms of official-duty houses and submit them to the Prime Minister for promulgation, report the beneficiaries entitled to use official-duty houses to the Prime Minister for decision in accordance with this Law;

b) Appraise or give opinions on the demand for official-duty houses and plans for development of official-duty houses in accordance with this Law;

c) Organize the construction, operation management, and lease of official-duty houses of Central-level authorities as assigned by the Prime Minister.

6. Provide guidance on the inspection and evaluation of factors to determine the quality of condominiums in accordance with this Law and law regulations on construction.

7. Appraise housing-related details in housing investment projects whose investment policies shall be decided or approved by the Prime Minister.

8. Approve or report to the Prime Minister to decide on conversion of houses in accordance with this Law.

9. Check the reservation of land areas for development of social houses, worker accommodations in industrial parks, and houses for the people's armed forces in the plans prescribed in Article 32 of this Law as well as the appropriateness thereof; check provincial-level housing development programs and plans in accordance with this Law.

10. Based on the National Housing Development Strategy and depending on actual conditions, develop national target programs that mention housing support and development of social houses for the beneficiaries prescribed in Article 76 of this Law and submit such programs to the Prime Minister for decision on investment therein; organize and direct the implementation of the national target programs mentioning housing support and development of social houses.

11. Manage houses and store dossiers of houses being public property of central-level authorities in accordance with this Law.

12. Conduct surveys and collect statistics, develop the national housing database and information system, and organize the management, operation of such database and information system and provision of national housing data and information.

13. Organize scientific and technological research and application and dissemination of legal knowledge in the housing field. Organize training and refresher courses in housing development and management knowledge and expertise within their ambit.

14. Specify the framework program for training and refresher courses in condominium operation management expertise. Publicize the list of units qualified to manage the operation of condominiums on the Ministry of Construction's electronic web portal.

15. Provide guidance on, urge, monitor, inspect and examine the settlement of, and settle, complaints, disputes and denunciations, and handle housing-related law violations within their ambit.

16. Implement international cooperation on housing.

17. Perform other tasks in the housing field prescribed in this Law or as assigned by the Government and Prime Minister.

Article 192. Housing inspection

1. Construction Inspectorate under the Ministry of Construction and the provincial-level housing management authorities shall perform specialized housing inspections in accordance with law regulations on inspection.

2. The Ministry of Construction shall direct and organize specialized inspection of housing nationwide. Provincial-level housing authorities shall organize specialized housing inspections in their localities.

Article 193. Training and retraining in housing development and management knowledge and expertise

1. Civil servants and public employees engaged in housing development and management in different sectors and at different levels shall participate in training and refresher courses on housing development and management.

2. The Minister of Construction shall issue training and retraining programs and contents on housing development and management for civil servants and public employees engaged in housing nationwide.

Chapter XII

SETTLEMENT OF HOUSING-RELATED DISPUTES AND HANDLING OF HOUSING-RELATED LAW VIOLATIONS

Article 194. Settlement of housing-related disputes

1. The State shall encourage disputing parties to settle their housing-related disputes through conciliation.

2. Disputes over ownership of or rights to use houses of organizations and individuals, disputes related to house or condominium operation management transactions shall be settled by courts or commercial arbitration in accordance with the law.

3. Disputes over management and use of houses being public property shall be settled as follows:

a) Provincial-level People's Committees shall resolve disputes over houses that

local authorities are assigned to manage;

b) The Ministry of Construction shall resolve disputes over houses that Central-level authorities are assigned to manage, other than those managed by the Ministry of National Defense and the Ministry of Public Security;

c) The Ministry of National Defense and the Ministry of Public Security shall resolve disputes over houses managed by the Ministry of National Defense and the Ministry of Public Security;

d) The courts shall resolve disputes in accordance with law regulations on administrative proceedings.

4. Disputes over funds for operation management of condominiums, management and use of maintenance funds shall be resolved by the district-level People's Committees of the localities where the houses are located or the courts or commercial arbitrators in accordance with the law.

5. The Government shall detail Clause 3 of this Clause.

Article 195. Handling of housing-related law violations

Organizations and individuals that commit violations of law regulations on housing shall, depending on the nature and seriousness of their violations, be disciplined, administratively sanctioned or examined for penal liability, or compensate for any possible damages in accordance with law.

Chapter XIII IMPLEMENTATION PROVISIONS

Article 196. Amendment and supplementation of a number of articles of relevant laws

1. To amend and supplement Clause 1, Article 19 of Law No. 61/2020/QH14 on Investment, of which a number of articles were amended and supplemented under Law No. 72/2020/QH14, Law No. 03/2022/QH15, Law No. 05/2022/QH15, Law No. 08/2022/QH15, Law No. 09/2022/QH15, Law No. 20/2023/QH15 and Law No. 26/2023/QH15 as follows:

“1. Based on the master plans that have been decided or approved in accordance with law regulations on planning, the ministries, ministerial-level authorities, and provincial-level People's Committees shall develop their development investment plans and construct technical and social infrastructure systems outside the fences of industrial parks, export processing zones, high-tech zones, and functional quarters of economic zones. For industrial parks where worker accommodations are built, the Housing Law shall prevail.”.

2. To amend and supplement Clause 4, Article 3 of Law No. 39/2019/QH14 on Public Investment, of which a number of articles were amended and supplemented under Law No. 64/2020/QH14, Law No. 72/2020/QH14 and Law No. 03/2022/QH15 as follows:

“4. State investments in enterprises shall be managed and used in accordance with law regulations on management and use of State capital invested in production and business at enterprises. Investment policies and investments in official-duty house investment projects and purchase of commercial houses to use as official-duty houses shall be decided on in accordance with the Housing Law.”.

Article 197. Effect

1. This Law takes effect on January 1, 2025.
2. The Housing Law No. 65/2014/QH13, of which a number of articles were amended and supplemented under Law No. 40/2019/QH14, Law No. 61/2020/QH14, Law No. 62/2020/QH14, Law No. 64/2020/QH14 and Law No. 03/2022/QH15, ceases to be effective on the effective date of this Law, except for the provisions of Point b, Clause 1, Points a, c, dd, e and g, Clause 2, Clause 3, Points a, b, c, d, dd and e, Clause 5, Article 198 of this Law.
3. State-owned houses defined in legal documents on housing promulgated before the effective date of this Law are public property.

Article 198. Transitional provisions

1. Transitional provisions on provincial-level housing development programs and plans that have been passed or approved before the effective date of this Law:

a) The approved provincial-level housing development programs and plans shall continue to be implemented. In the case where adjustment is required, it shall comply with this Law, except for the cases prescribed at Point b of this Clause.

In the case where the provincial-level People's Councils have passed the provincial-level housing development programs before the effective date of this Law, but by the effective date of this Law the provincial-level People's Committees has not approved such programs, the programs shall be approved with contents as passed by the People's Councils. In the case where the provincial-level People's Committees have approved the provincial-level housing development programs but have not approved the provincial-level housing development plans, they must develop and approve the provincial-level housing development plans in accordance with this law. In the case where the provincial-level housing development plans are not consistent with the approved provincial-level housing development programs, such programs shall be adjusted in accordance with this Law;

b) In the case where provincial-level housing development programs and plans have been approved before the effective date of this Law but their contents have been changed due to increasing housing demand of the beneficiaries prescribed in Clause 7, Article 76 of this Law at the request of the Ministry of National Defense and the Ministry of Public Security, such provincial-level housing development programs and plans shall be adjusted once in accordance with law regulations on housing before the effective date of this Law.

2. Transitional provisions on residential housing development:

a) For housing investment projects or urban area development projects, if provincial-level People's Committees issued documents determining the areas and

locations where land use rights are transferred for people to build house on their own in accordance with the law, such documents shall continue to be complied with;

b) If housing investment projects and urban area development projects that are in the phase of selecting the project owners but by the effective date of this Law, the competent authorities have not issued documents stating the selected project owners, the project owners shall be selected in accordance with this Law, unless otherwise prescribed at Point a, Clause 3 and Point d, Clause 5 of this Article;

c) In the case where the competent authorities decided or approved the investment policies of and investments in social housing investment projects and condominium renovation and reconstruction projects or decided to approve such projects before the effective date of this Law, the project owners shall continue to be entitled to the preferential mechanisms under such decisions or approvals, unless the project owner are entitled to new or higher investment incentives if prescribed in this Law or new legal documents during the remaining incentive period of the investment projects;

d) In the case where multiple investors whose investment policies and themselves as project owners are approved at the same time are going through procedures to be recognized as the project owners but the competent authorities have not yet issued documents recognizing such project owners in accordance with law regulations on housing before the effective date of this Law, this Law shall prevail;

dd) Investment projects to build official-duty houses whose investment decisions have been made before the effective date of this Law shall continue to be implemented under such decisions;

e) In the case where investment policies, investment decisions, written project approvals of projects on construction of houses for resettlement are approved or the investments in such projects are accepted before the effective date of this Law, such approved decisions, approvals, and acceptance shall prevail;

g) For individual houses of households and individuals prescribed in Clause 2, Article 46 of the Housing Law No. 65/2014/QH13, of which a number of articles have been amended and supplemented under Law No. 40/2019/QH14, Law No. 61/2020/QH14, Law No. 62/2020/QH14, Law No. 64/2020/QH14 and Law No. 03/2022/QH15, if a certificate has been issued for each apartment in such house, the owner of such apartment shall continue to exercise the rights and obligations of the owner in accordance with law regulations on housing before the effective date of this Law.

In the case where the houses prescribed in this Clause meet the requirements under the law regulations on housing and other relevant law regulations before the effective date of this Law but by the effective date of this Law, the households and individuals have not yet been granted certificates and they wish to obtain such certificates, they may request competent State authorities to grant the certificates in accordance with law regulations on housing before the effective date of this Law and law regulations on land.

In the case where the houses prescribed in this Clause fail to not meet the requirements under the law regulations on housing and other relevant law regulations

before the effective date of this Law, the violations must be handled in accordance with law regulations on housing, construction, fire safety and other relevant law regulations applicable at the time such violations were committed. Separate certificates shall not be granted to each apartment in such houses. The housing transactions shall be handled in accordance with the Civil Code.

3. Transitional provisions on renovation or reconstruction of condominiums:

a) For condominium renovation or reconstruction projects that are in the phase of selecting the project owners but by the effective date of this Law, the competent authorities have not issued documents stating the selected project owners, the project owners shall be selected in accordance with law regulations on housing before the effective date of this Law. The implementation of projects shall comply with this Law and other relevant law regulations.

b) For valid dossiers of request for approval of the investment policies and approval of investors as owners of condominium renovation or reconstruction projects; valid dossiers of request for approval of the investment policies of condominium renovation or reconstruction projects that have been received by competent State authorities before the effective date of this Law but have not yet been processed shall continue to be processed in accordance with law regulations on housing before the effective date of this Law;

c) In the case where the owner of a condominium renovation or reconstruction project has compensated under the compensation, support and resettlement plan made before July 1, 2015 or approved in accordance with the Housing Law No. 65/2014/QH13, of which a number of articles have been amended and supplemented under Law No. 40/2019/QH14, Law No. 61/2020/QH14, Law No. 62/2020/QH14, Law No. 64/2020/QH14 and Law No. 03/2022/QH15 and the documents detailing and guiding implementation thereof, such approved plan shall continue to be implemented, but not applicable to houses, land areas, and construction works that have not been included in such compensation, support, and resettlement plan. Compensation for houses, land, and construction works not included in the compensation, support, and resettlement plans shall be carried out in accordance with this Law;

d) The K coefficients of compensation set by the provincial-level People's Committees for the apartment usable area in old condominiums, applicable to investment projects to renovate and reconstruct condominiums in accordance with law regulations on housing before the effective date of this Law, shall continue to be used to determine the amounts of compensation and support for resettlement of condominium owners.

4. Transitional provisions on management and use of condominiums:

a) For condominiums that are accepted, handed over and used before the effective date of this Law, but according to the decisions or approvals of investment policies or documents with equivalent legal value in accordance with the law, the technical infrastructure facilities shall not be handed over, the project owners shall be responsible for maintaining and utilizing such technical infrastructure facilities, and ensuring that they are used for the proper purposes and design functions. In the case where such technical infrastructure facilities must be handed over but have not yet been so, it then

shall be handed over for management and use in accordance with this Law;

b) For technical infrastructure facilities in areas where condominiums are located, which are accepted and used before the effective date of this Law, but according to the decisions or approvals of investment policies or documents with equivalent legal value in accordance with the law, the technical infrastructure facilities shall not be handed over, the project owners shall be responsible for maintaining and utilizing such technical infrastructure facilities, and ensuring that they are used for the proper purposes and design functions. In the case where such technical infrastructure facilities must be handed over but have not yet been so, it then shall be handed over for management and use in accordance with this Law.

5. Transitional regulations applicable to Chapter VI of this Law as follows:

a) In the case where investment policies, investment decisions, written project approvals of social housing investment projects are approved or the investments in such projects are accepted or the documents stating the selected owners of such projects are issued before the effective date of this Law, such approved decisions, approvals, acceptance, and documents shall prevail, unless the investment policies and details of the projects must be adjusted in accordance with law regulations on investment;

b) In the case where investment policies, investment decisions, written project approvals of commercial housing investment projects or urban area development projects are approved or the investments in such projects are accepted before the effective date of this Law, the project owners shall fulfill the obligation to reserve part of residential land areas in such projects in which a technical infrastructure system has been built for construction of social houses according to the approved decisions, approvals, or acceptance;

c) For commercial housing investment projects or urban area development projects that have been implemented but by the date this Law takes effect, the project owners have not yet fulfilled the obligation to reserve part of residential land areas in such projects in which a technical infrastructure system has been built for construction of social houses, the project owners shall continue to perform this obligation in accordance with law regulations on housing before the effective date of this Law;

d) In the case where the social housing investment project is in the stage of selecting the project owner but the document stating the selected project owner has not yet issued in accordance with law regulations on housing before the effective date of this Law, the law regulations on housing before the effective date of this Law shall prevail;

dd) In case of selling social houses for which land use levies shall be paid in accordance with law regulations on housing before the effective date of this Law but have not been paid by the effective date of this Law, such payment shall continue in accordance with the law regulations on housing before the effective date of this Law;

e) Registration and review of dossiers, price appraisal, signing of contracts for purchase and sale, lease-purchase, lease, and resale of social houses, which were initiated in accordance with the law regulations on housing before the effective date of this Law but have not been completed by the effective date of this Law, shall continue

to comply with the respective law regulations on housing before the effective date of this Law;

g) In the case where the owner of a social housing investment project has reserved the social houses in such social housing investment project for lease in accordance with Clause 3, Article 54 of the Housing Law No. 65/2014/QH13, of which a number of articles have been amended and supplemented under Law No. 40/2019/QH14, Law No. 61/2020/QH14, Law No. 62/2020/QH14, Law No. 64/2020/QH14 and Law No. 03/2022/QH15, but they have not been rented by the effective date of this Law, such houses can be sold or lease-purchased in accordance with this Law.

6. For condominium operation management units that have posted information in accordance with law regulations on housing before the effective date of this Law, they do not have to carry out the procedures to request written announcements of their eligibility to manage the operation of condominiums in accordance with this Law, unless their information and details related to service provision are changed or they no longer meet the conditions prescribed in this Law.

7. For households that owned houses before the effective date of this Law, legal relations from the effective date of this Law shall be participated by their individual members and such members shall have the rights and obligations of individuals who are house owners in accordance with this Law.

This Law was passed on November 27, 2023, by the 15th National Assembly of the Socialist Republic of Vietnam at its 6th session.

**CHAIRMAN
OF THE NATIONAL ASSEMBLY**

**(Signed)
Vuong Dinh Hue**